

RETAIL LEASE AGREEMENT

WESTFIELD PLAZA SHOPPING CENTER

LANDLORD: Westfield Plaza Holdings, LLC
TENANT: Premium Retail Concepts, Inc.
PREMISES: Suite 245, Westfield Plaza Shopping Center
ADDRESS: 1500 Commerce Boulevard, Metro City, State 12345

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1. BASIC LEASE INFORMATION AND DEFINITIONS

1.1 PARTIES TO THE LEASE This Retail Lease Agreement ("Lease" or "Agreement") is entered into on December 1, 2024, between Westfield Plaza Holdings, LLC, a Delaware limited liability company with its principal place of business at 500 Corporate Plaza Drive, Suite 2000, Business City, State 54321 ("Landlord"), and Premium Retail Concepts, Inc., a State Corporation with its principal place of business at 789 Technology Drive, Corporate City, State 67890 ("Tenant").

1.2 PREMISES IDENTIFICATION AND DESCRIPTION The leased premises ("Premises") consists of approximately 3,850 square feet of ground floor retail space designated as Suite 245 within the Westfield Plaza Shopping Center ("Shopping Center" or "Property"), located at 1500 Commerce Boulevard, Metro City, State 12345. The Premises is more particularly described and depicted in Exhibit A attached hereto and incorporated herein by reference. The legal description of the Property is set forth in Exhibit A-1.

1.3 SHOPPING CENTER DESCRIPTION The Shopping Center consists of approximately 135,000 square feet of gross leasable area situated on approximately 15.5 acres of land. The Shopping Center is improved with retail buildings, parking areas, landscaping, and other improvements and amenities. The Shopping Center is anchored by major retailers including MegaMart (45,000 sq ft), Fashion Central Department Store (35,000 sq ft), and Fresh Foods Market (25,000 sq ft), along with approximately 28 in-line retail spaces and 2 restaurant outparcels.

1.4 LEASE TERM DETAILS

- **Commencement Date:** January 1, 2025, or such earlier date as Tenant takes possession of the Premises for the conduct of business
- **Expiration Date:** December 31, 2034, unless sooner terminated pursuant to the provisions hereof
- **Initial Term:** Ten (10) years
- **Renewal Options:** Two (2) consecutive five-year renewal options, exercisable by Tenant subject to the terms and conditions set forth herein

1.5 BASE RENT SCHEDULE Base Rent shall be paid in the following amounts:

- **Year 1 (2025):** \$28.50 per square foot annually (\$109,725.00 annually, \$9,143.75 monthly)
- **Year 2 (2026):** \$29.25 per square foot annually (\$112,612.50 annually, \$9,384.38 monthly)
- **Year 3 (2027):** \$30.00 per square foot annually (\$115,500.00 annually, \$9,625.00 monthly)
- **Year 4 (2028):** \$30.75 per square foot annually (\$118,387.50 annually, \$9,865.63 monthly)
- **Year 5 (2029):** \$31.50 per square foot annually (\$121,275.00 annually, \$10,106.25 monthly)
- **Year 6 (2030):** \$32.25 per square foot annually (\$124,162.50 annually, \$10,346.88 monthly)
- **Year 7 (2031):** \$33.00 per square foot annually (\$127,050.00 annually, \$10,587.50 monthly)
- **Year 8 (2032):** \$33.75 per square foot annually (\$129,937.50 annually, \$10,828.13 monthly)
- **Year 9 (2033):** \$34.50 per square foot annually (\$132,825.00 annually, \$11,068.75 monthly)
- **Year 10 (2034):** \$35.25 per square foot annually (\$135,712.50 annually, \$11,309.38 monthly)

1.6 ADDITIONAL RENT COMPONENTS Tenant shall pay as Additional Rent: (a) Tenant's Proportionate Share of Common Area Maintenance charges ("CAM Charges"), (b) Tenant's Proportionate Share of Real Estate Taxes, (c) Tenant's Proportionate Share of Insurance premiums, (d) utilities consumed within the Premises, (e) merchant association dues and marketing fees, and (f) all other charges and expenses specified in this Lease as Additional Rent.

1.7 SECURITY DEPOSIT AND GUARANTIES Tenant shall deposit with Landlord the sum of Twenty-Seven Thousand Four Hundred Thirty-One Dollars and Twenty-Five Cents (\$27,431.25), representing three (3)

months of initial Base Rent, as security for Tenant's faithful performance of its obligations hereunder. This Lease is guaranteed by Premium Retail Holdings, LLC, which shall execute a separate guaranty agreement substantially in the form attached as Exhibit B.

1.8 PERMITTED USE AND EXCLUSIVE RIGHTS The Premises shall be used solely for the retail sale of premium consumer electronics, computer equipment, mobile devices, audio-visual equipment, gaming systems, accessories, and related services including technical support, device repair, and customer training. Subject to existing tenant rights, Landlord grants Tenant the exclusive right within the Shopping Center to sell new smartphones and tablets with retail prices exceeding Five Hundred Dollars (\$500.00).

1.9 TENANT'S PROPORTIONATE SHARE Tenant's Proportionate Share for purposes of calculating Additional Rent shall be 2.85%, which represents the ratio of the rentable square footage of the Premises (3,850 sq ft) to the total rentable square footage of the Shopping Center (135,000 sq ft), subject to adjustment as provided herein.

1.10 KEY DEFINITIONS For purposes of this Lease, the following terms shall have the meanings set forth below:

"Additional Rent" means all sums payable by Tenant under this Lease other than Base Rent.

"Affiliate" means, with respect to any Person, any other Person that directly or indirectly controls, is controlled by, or is under common control with, such Person.

"Base Year" means the calendar year 2025 for purposes of calculating increases in Operating Expenses and Real Estate Taxes.

"Business Day" means any day that is not a Saturday, Sunday, or federal holiday.

"CAM Charges" means Common Area Maintenance charges as defined in Section 5 hereof.

"Common Areas" means all areas of the Shopping Center that are not leased or held for lease to tenants, including parking areas, driveways, sidewalks, landscaping, and common facilities.

"Environmental Laws" means all federal, state, and local laws, regulations, ordinances, and other requirements relating to environmental protection, health, safety, or the use, handling, transportation, production, disposal, discharge, or storage of Hazardous Materials.

"Force Majeure Event" means any cause beyond the reasonable control of the affected party, including acts of God, war, terrorism, government actions, labor disputes, utility failures, pandemics, or natural disasters.

"Gross Sales" means the total amount of all sales, receipts, and income of every kind derived by Tenant from business conducted in or from the Premises, subject to permitted deductions as specified herein.

"Hazardous Materials" means any substance, material, or waste that is regulated by any Environmental Law, including petroleum products, asbestos, lead-based paint, polychlorinated biphenyls, and radioactive materials.

"Landlord's Mortgagee" means the holder of any mortgage, deed of trust, or other security instrument encumbering the Shopping Center.

"Operating Expenses" means all reasonable costs and expenses incurred by Landlord in operating, maintaining, managing, repairing, and providing security for the Shopping Center and Common Areas.

"Person" means any individual, corporation, partnership, limited liability company, trust, estate, association, or other entity.

"Property Management Company" means the entity engaged by Landlord to manage the day-to-day operations of the Shopping Center.

"Real Estate Taxes" means all taxes, assessments, and governmental charges levied against the Shopping Center.

"Renewal Term" means each five-year period for which this Lease may be renewed pursuant to Tenant's renewal options.

"Shopping Center Rules" means the rules and regulations established by Landlord for the operation and use of the Shopping Center, as may be amended from time to time.

"Tenant Improvements" means all improvements, alterations, and additions made to the Premises by or for Tenant.

2. PREMISES DESCRIPTION AND COMMON AREAS

2.1 DETAILED PREMISES DESCRIPTION The Premises consists of the retail space more particularly described as follows: a ground-floor retail unit containing approximately 3,850 square feet of floor area, including approximately 3,200 square feet of main retail space, 400 square feet of storage area, 150 square feet of employee break room, and 100 square feet of private restroom facility. The Premises is bounded by demising walls separating it from adjacent tenant spaces and includes all interior areas within such demising walls from the finished floor to the underside of the roof deck or suspended ceiling system, as applicable.

The Premises includes all fixtures, improvements, and equipment that are permanently affixed thereto as of the Commencement Date, including but not limited to: interior partition walls, floor coverings, ceiling systems, lighting fixtures, plumbing fixtures, HVAC equipment serving the Premises exclusively, electrical panels and wiring within the Premises, and any built-in cabinetry or millwork. The Premises does not include the exterior walls, structural elements, roof, or any portion of the building's main utility systems except to the extent such systems serve the Premises exclusively.

2.2 COMMON AREAS DEFINITION AND SCOPE The Common Areas of the Shopping Center include all areas and facilities that are available for the common use and benefit of Landlord, tenants, and their respective customers, employees, and invitees. Common Areas specifically include: (a) parking areas and driveways; (b) pedestrian walkways, sidewalks, and covered walkways; (c) landscaped areas, courtyards, and outdoor seating areas; (d) public restrooms; (e) common corridor areas within enclosed portions of the Shopping Center; (f) loading docks and service areas designated for common use; (g) trash collection and recycling areas; (h) utility rooms and mechanical equipment areas serving Common Areas; (i) directory and information kiosks; (j) seasonal decoration areas; (k) outdoor event and promotional spaces; and (l) any other areas designated by Landlord for common use.

2.3 COMMON AREA RIGHTS AND RESTRICTIONS Tenant and its customers, employees, suppliers, and other invitees shall have the non-exclusive right to use the Common Areas in common with Landlord, other tenants, and their respective customers, employees, suppliers, and invitees, subject to reasonable rules and regulations established by Landlord from time to time. Such use shall be limited to the purposes for which the

Common Areas are reasonably intended and shall not interfere with the use and enjoyment of other tenants or the general public.

Tenant's use of Common Areas is subject to the following restrictions: (a) compliance with all Shopping Center Rules and regulations; (b) no storage of merchandise, equipment, or personal property in Common Areas; (c) no solicitation or distribution of materials without Landlord's consent; (d) no posting of signs or advertising materials except in designated areas; (e) compliance with all applicable laws and regulations; and (f) such other reasonable restrictions as Landlord may establish to ensure the proper operation and maintenance of the Shopping Center.

2.4 MEASUREMENT STANDARDS AND VERIFICATION The square footage of the Premises has been calculated in accordance with the measurement standards established by the Building Owners and Managers Association International (BOMA) for retail space, specifically the BOMA 2017 for Retail Buildings standard. The measurement includes all floor area within the Premises bounded by the interior surfaces of exterior walls and the centerline of demising walls, excluding vertical penetrations such as elevator shafts, stairwells, and utility chases.

Tenant acknowledges that it has had the opportunity to measure the Premises independently and accepts the stated square footage for all purposes under this Lease. If there is a discrepancy of more than two percent (2%) between the stated square footage and the actual square footage as determined by a licensed surveyor, the parties agree to adjust the rental calculations accordingly, but only if such measurement is completed within ninety (90) days after the Commencement Date.

2.5 EXCLUSIVE USE AREAS AND SPECIAL RIGHTS In addition to the Premises itself, Tenant shall have the exclusive right to use the following areas: (a) designated storage space within the basement level of the building, consisting of approximately 200 square feet located in Storage Unit B-12; (b) exclusive use of one (1) designated employee parking space located behind the building; and (c) priority scheduling rights for use of the common area conference room for customer presentations, subject to advance reservation and payment of applicable fees.

2.6 ACCESS RIGHTS AND HOURS OF OPERATION Tenant shall have access to the Premises and necessary Common Areas twenty-four (24) hours per day, seven (7) days per week, subject to reasonable security measures implemented by Landlord and temporary restrictions during emergencies, maintenance activities, or special events. Landlord reserves the right to implement reasonable security measures including key card access systems, security guards, and surveillance equipment.

The Shopping Center's general operating hours are Monday through Saturday from 6:00 AM to 11:00 PM, and Sunday from 8:00 AM to 10:00 PM. Tenant may operate outside these hours but shall coordinate with Landlord regarding security arrangements and shall pay any additional costs associated with extended access hours, including security personnel and utility costs.

2.7 PARKING ALLOCATION AND MANAGEMENT Tenant is allocated parking spaces for the use of its customers and employees as follows: (a) fifteen (15) general customer parking spaces located in the front parking area within 200 feet of the Premises entrance; (b) three (3) designated employee parking spaces located in the rear parking area; and (c) two (2) spaces designated for delivery and service vehicles, available on a scheduled basis.

All parking spaces shall be used only for parking of motor vehicles and shall not be used for vehicle repairs, washing, or long-term storage. Recreational vehicles, boats, trailers, and inoperable vehicles are prohibited

except in designated areas with Landlord's consent. Tenant shall ensure that its employees park only in designated employee areas and shall implement reasonable measures to encourage customers to use designated customer parking areas.

2.8 COMMON AREA MAINTENANCE AND IMPROVEMENTS Landlord shall maintain the Common Areas in good condition and repair, consistent with the standards of a first-class shopping center. Such maintenance includes: regular cleaning and trash removal; landscape maintenance including mowing, pruning, and seasonal plantings; parking lot sweeping and maintenance; snow and ice removal; exterior lighting maintenance; signage maintenance; and general repairs and improvements necessary to maintain the Common Areas in an attractive and functional condition.

Landlord reserves the right to make changes, alterations, additions, and improvements to the Common Areas from time to time, provided such changes do not materially impair Tenant's access to the Premises or use of reasonably necessary Common Areas. Landlord shall use reasonable efforts to minimize disruption to tenant operations during any construction or major maintenance activities.

3. TERM, COMMENCEMENT, AND RENEWAL OPTIONS

3.1 LEASE TERM COMMENCEMENT The term of this Lease shall commence on January 1, 2025 ("Commencement Date"), or such earlier date as Tenant takes possession of the Premises for the conduct of business, whichever occurs first. If Tenant enters the Premises prior to January 1, 2025, for the purpose of installing fixtures, equipment, or inventory, or for employee training, such early entry shall be deemed to be under the terms and conditions of this Lease except that no Base Rent shall be due until the Commencement Date.

The Lease term shall continue for a period of ten (10) years from the Commencement Date and shall expire at 11:59 PM on December 31, 2034 ("Expiration Date"), unless sooner terminated in accordance with the provisions of this Lease or extended pursuant to renewal options granted herein.

3.2 DELIVERY OF PREMISES AND LANDLORD'S WORK Landlord shall deliver the Premises to Tenant on or before the Commencement Date in good condition and repair, free of debris and hazardous materials, and in compliance with all applicable laws, codes, and regulations. Prior to delivery, Landlord shall complete the work described in Exhibit C ("Landlord's Work"), which includes basic building improvements and systems necessary for Tenant's occupancy.

Landlord's Work includes but is not limited to: (a) installation of demising walls with appropriate fire ratings; (b) provision of basic electrical service including a 400-amp electrical panel and standard outlet configuration; (c) installation of HVAC system adequate for retail use; (d) provision of basic plumbing including restroom facilities and utility connections; (e) installation of storefront entrance and security systems; (f) concrete floor finishing and basic lighting systems; and (g) all necessary permits and approvals for the base building improvements.

3.3 TENANT IMPROVEMENT ALLOWANCE AND CONSTRUCTION Landlord shall provide Tenant with a tenant improvement allowance of Fifty Dollars (\$50.00) per square foot of the Premises (\$192,500.00 total) to be used toward the cost of tenant improvements designed and constructed in accordance with plans and specifications approved by Landlord. The allowance may be used for architectural and engineering fees, permits, construction costs, and other hard and soft costs associated with tenant improvements.

Tenant improvements shall be constructed in accordance with plans prepared by a licensed architect and approved by Landlord, which approval shall not be unreasonably withheld, conditioned, or delayed. All work shall be performed by licensed contractors approved by Landlord and shall comply with all applicable building codes, ADA requirements, and Shopping Center construction standards.

The tenant improvement allowance shall be paid by Landlord to Tenant in progress payments as work is completed, upon submission of invoices, lien waivers, and evidence of completion satisfactory to Landlord. Any unused portion of the allowance shall remain with Landlord, and any costs exceeding the allowance shall be paid by Tenant.

3.4 CONDITIONS PRECEDENT TO COMMENCEMENT The effectiveness of this Lease and Tenant's obligation to pay rent are conditioned upon the satisfaction of the following conditions precedent on or before the Commencement Date: (a) completion of Landlord's Work in accordance with the specifications; (b) delivery of the Premises in the condition required hereunder; (c) issuance of all necessary certificates of occupancy and permits; (d) execution of the lease guaranty by Premium Retail Holdings, LLC; and (e) delivery of required insurance certificates and the security deposit.

If any condition precedent is not satisfied by the scheduled Commencement Date due to Landlord's default, the Commencement Date shall be postponed until such conditions are satisfied, and Landlord shall pay Tenant's actual damages resulting from the delay, not to exceed \$500 per day. If conditions are not satisfied within sixty (60) days after the scheduled Commencement Date, either party may terminate this Lease upon written notice.

3.5 DELAY IN DELIVERY AND FORCE MAJEURE If Landlord is unable to deliver the Premises by the Commencement Date due to causes beyond Landlord's reasonable control, including but not limited to Force Majeure Events, construction delays caused by weather, labor disputes, material shortages, or governmental actions, the Commencement Date shall be postponed until delivery can be made. In such event, Landlord shall not be liable for any damages resulting from such delay, but the Lease term shall be extended by the period of delay.

Notwithstanding the foregoing, if delivery is delayed for more than ninety (90) days beyond the scheduled Commencement Date for any reason other than Tenant's actions or failures, Tenant may terminate this Lease upon written notice, in which case all deposits shall be returned and neither party shall have further obligations hereunder.

3.6 EARLY POSSESSION AND RENT COMMENCEMENT If Landlord permits Tenant to enter the Premises prior to the Commencement Date for the purpose of installing fixtures, equipment, or inventory, or for conducting employee training, such entry shall be subject to all terms and conditions of this Lease except the payment of Base Rent. However, Tenant shall be responsible for Additional Rent, utilities, and insurance coverage during any period of early possession.

Any business operations conducted from the Premises prior to the Commencement Date shall cause Base Rent to commence immediately. "Business operations" means the sale of goods or services to customers, but does not include installation activities, training, or preparation for opening.

3.7 RENEWAL OPTIONS - FIRST RENEWAL TERM Provided Tenant is not in default under this Lease beyond applicable cure periods at the time of exercise and as of the commencement of the renewal term, Tenant shall have the option to renew this Lease for a first renewal term of five (5) years ("First Renewal Term") commencing on January 1, 2035, and expiring on December 31, 2039.

To exercise the first renewal option, Tenant must give Landlord written notice of its election to renew not less than one hundred eighty (180) days nor more than three hundred sixty (360) days prior to the expiration of the initial term. Time is of the essence with respect to the giving of such notice.

The First Renewal Term shall be upon the same terms and conditions contained in this Lease, except that: (a) the Base Rent shall be determined as provided in Section 3.9 below; (b) Tenant shall have no further improvement allowance; (c) the Premises shall be accepted in its then-existing condition; and (d) Tenant shall have the second renewal option as provided in Section 3.8.

3.8 RENEWAL OPTIONS - SECOND RENEWAL TERM Provided Tenant is not in default under this Lease beyond applicable cure periods at the time of exercise and as of the commencement of the second renewal term, and provided Tenant has properly exercised its first renewal option, Tenant shall have the option to renew this Lease for a second renewal term of five (5) years ("Second Renewal Term") commencing on January 1, 2040, and expiring on December 31, 2044.

To exercise the second renewal option, Tenant must give Landlord written notice of its election to renew not less than one hundred eighty (180) days nor more than three hundred sixty (360) days prior to the expiration of the First Renewal Term. The Second Renewal Term shall be upon the same terms and conditions as the First Renewal Term, except that Base Rent shall be determined as provided in Section 3.9 and Tenant shall have no further renewal options.

3.9 RENEWAL RENT DETERMINATION The Base Rent for each Renewal Term shall be ninety-five percent (95%) of the fair market rental rate for the Premises as of the commencement of the applicable Renewal Term, taking into account the size, location, condition, and permitted use of the Premises, and rental rates for comparable space in the market area, but in no event shall the Base Rent for any Renewal Term be less than the Base Rent payable during the last year of the preceding term, increased by ten percent (10%).

If the parties cannot agree on the fair market rental rate within thirty (30) days after Tenant's exercise of a renewal option, either party may initiate the appraisal process set forth in Exhibit D. The determination of fair market rental rate shall be binding on both parties, and Tenant's renewal option shall remain in effect pending such determination.

3.10 CONDITIONS TO RENEWAL RIGHTS Tenant's renewal options are personal to the original named Tenant and may not be exercised by any assignee or subtenant without Landlord's consent. The renewal options shall be void if: (a) Tenant is in monetary default beyond applicable cure periods; (b) Tenant is in material non-monetary default beyond applicable cure periods; (c) Tenant has assigned this Lease or sublet more than fifty percent (50%) of the Premises without Landlord's consent; or (d) this Lease has been terminated or Tenant has abandoned the Premises.

3.11 HOLDING OVER PROVISIONS If Tenant remains in possession of the Premises after the expiration of the Lease term without Landlord's written consent, Tenant shall be deemed a holdover tenant and shall pay Base Rent at one hundred fifty percent (150%) of the rate in effect during the last month of the Lease term, plus all Additional Rent and other charges. Such holdover tenancy shall be month-to-month and may be terminated by either party upon thirty (30) days' written notice.

Holdover tenancy shall be subject to all other terms and conditions of this Lease except as to term and rental rate. Tenant shall be liable for all damages suffered by Landlord resulting from Tenant's holdover, including any claims by prospective tenants. Acceptance of rent during holdover shall not constitute consent to holdover or create a new lease term.

4. RENT, ADDITIONAL CHARGES, AND PAYMENT TERMS

4.1 BASE RENT PAYMENT OBLIGATIONS Tenant shall pay Base Rent to Landlord in advance on the first day of each calendar month during the Lease term in the amounts specified in Section 1.5. If the Commencement Date is other than the first day of a calendar month, the first month's Base Rent shall be prorated on a daily basis. Base Rent for any partial month at the end of the Lease term shall likewise be prorated.

Base Rent shall be paid without demand, deduction, or offset except as expressly provided in this Lease. All payments shall be made in lawful money of the United States, in immediately available funds, to Landlord at the address specified for notices or to such other address as Landlord may designate in writing from time to time.

4.2 ADDITIONAL RENT COMPONENTS AND CALCULATION In addition to Base Rent, Tenant shall pay as Additional Rent the following charges: (a) Tenant's Proportionate Share of Operating Expenses; (b) Tenant's Proportionate Share of Real Estate Taxes; (c) Tenant's Proportionate Share of insurance premiums paid by Landlord; (d) utilities consumed within the Premises as separately metered or reasonably allocated; (e) merchant association dues and marketing fund contributions; (f) percentage rent as provided in Section 4.8; and (g) any other charges specifically designated as Additional Rent under this Lease.

Additional Rent shall be estimated by Landlord annually and paid in monthly installments together with Base Rent. Within ninety (90) days after the end of each calendar year, Landlord shall provide an annual reconciliation statement showing actual costs and Tenant's share thereof. Any overpayment shall be credited against future rent, and any underpayment shall be due within thirty (30) days after billing.

4.3 LATE CHARGES AND INTEREST If any installment of Base Rent or Additional Rent is not received by Landlord within five (5) days after the due date, Tenant shall pay a late charge equal to five percent (5%) of the overdue amount. In addition to the late charge, any unpaid rent shall bear interest at the rate of eighteen percent (18%) per annum (or the maximum rate permitted by law, if less) from the due date until paid in full.

The late charge is intended to compensate Landlord for administrative costs and other damages that are difficult to ascertain, and shall not be deemed to waive Tenant's default or Landlord's right to pursue other remedies. The assessment of late charges and interest shall not excuse or cure any default by Tenant.

4.4 PAYMENT METHODS AND PROCEDURES All rent and other charges shall be paid by one of the following methods: (a) electronic funds transfer to Landlord's designated bank account; (b) certified check or cashier's check; (c) money order; or (d) such other method as Landlord may specify in writing. Personal checks may be accepted at Landlord's discretion but may be discontinued if any check is returned for insufficient funds.

Landlord may require electronic payment as the sole method of payment upon thirty (30) days' written notice. All bank charges, wire transfer fees, and other costs associated with payment shall be borne by Tenant. Payments shall be deemed made when received by Landlord, not when sent by Tenant.

4.5 SECURITY DEPOSIT PROVISIONS The security deposit of \$27,431.25 shall be held by Landlord as security for Tenant's faithful performance of all obligations under this Lease. The security deposit may be applied by Landlord to cure any default by Tenant, including but not limited to unpaid rent, damage to the Premises beyond normal wear and tear, and costs of re-letting following Tenant's default.

If any portion of the security deposit is applied against Tenant's obligations, Tenant shall restore the security deposit to its original amount within ten (10) days after written demand. The security deposit shall not bear interest unless required by law. Within thirty (30) days after the termination of this Lease and Tenant's surrender of the Premises in the required condition, Landlord shall return any unapplied portion of the security deposit, less any amounts properly applied as provided herein.

4.6 RENT ESCALATION AND ADJUSTMENTS Base Rent is subject to the scheduled increases set forth in Section 1.5. In addition, commencing with the second Lease year and continuing each year thereafter, Base Rent shall be increased annually by the lesser of: (a) three percent (3%); or (b) the percentage increase in the Consumer Price Index for All Urban Consumers (CPI-U) for the region, as published by the U.S. Bureau of Labor Statistics, from the previous year.

If the CPI-U is discontinued or substantially revised, Landlord may substitute a comparable index. In no event shall Base Rent be decreased due to a decline in the CPI-U. CPI adjustments shall be calculated based on the index figures available sixty (60) days prior to the adjustment date.

4.7 OPERATING EXPENSE ESCALATIONS Operating Expenses for the Base Year (2025) are estimated at \$4.25 per square foot of the Shopping Center. Beginning with the second Lease year, Tenant shall pay Tenant's Proportionate Share of any increase in Operating Expenses over the Base Year amount. Operating Expenses include all reasonable costs of operating, maintaining, repairing, replacing, and managing the Shopping Center and Common Areas.

If the Shopping Center is not fully occupied during the Base Year or any comparison year, Operating Expenses shall be grossed up to reflect the amount that would have been incurred if the Shopping Center had been fully occupied. Variable expenses that increase with occupancy shall be calculated on an actual basis.

4.8 PERCENTAGE RENT PROVISIONS If Tenant's Gross Sales from the Premises exceed the Natural Breakpoint of Three Million Dollars (\$3,000,000) during any calendar year, Tenant shall pay percentage rent equal to two percent (2%) of Gross Sales exceeding the Natural Breakpoint, less the Base Rent actually paid for such calendar year. Percentage rent, if any, shall be paid annually within sixty (60) days after the end of each calendar year.

For purposes of this Section, "Gross Sales" means the total amount of all sales, receipts, and income of every kind derived by Tenant from business conducted in or from the Premises, whether for cash, credit, or otherwise, without deduction for returns and refunds made in good faith, but excluding: (a) sales tax and other taxes collected from customers; (b) returns and refunds made in good faith; (c) sales to employees at discount (not exceeding 10% of total sales); (d) insurance proceeds; and (e) sales of fixtures and equipment not in the ordinary course of business.

4.9 SALES REPORTING REQUIREMENTS Tenant shall provide Landlord with monthly sales reports within twenty (20) days after the end of each month, showing Gross Sales for such month and the year to date. Annual sales reports shall be certified by Tenant's principal financial officer and, if annual Gross Sales exceed Two Million Dollars (\$2,000,000), shall be prepared or reviewed by an independent certified public accountant.

Landlord shall have the right to audit Tenant's sales records during normal business hours upon reasonable notice. If an audit reveals that reported sales were understated by more than three percent (3%), Tenant shall pay the cost of the audit in addition to any additional percentage rent due.

4.10 NO DEDUCTION OR OFFSET RIGHTS Except as expressly provided in this Lease, Tenant shall not deduct or offset any amount from rent for any reason whatsoever, including without limitation: (a) claims for

damages against Landlord; (b) alleged breaches of this Lease by Landlord; (c) failure of Landlord to provide services; (d) condemnation awards; (e) insurance proceeds; or (f) any other claim or right of setoff. This provision shall survive the termination of this Lease.

4.11 RENT PAYMENT DURING DISPUTES During the pendency of any dispute between Landlord and Tenant, Tenant shall continue to pay all rent and other charges when due. The payment of rent during a dispute shall not constitute a waiver of Tenant's right to contest any charge or to recover any overpayment, but Tenant's failure to pay undisputed amounts when due shall constitute a default under this Lease.

4.12 ANNUAL RENT STATEMENTS Landlord shall provide Tenant with annual statements showing: (a) actual Operating Expenses for the preceding calendar year; (b) Tenant's Proportionate Share thereof; (c) amounts paid by Tenant on account of Operating Expenses; (d) any adjustment due to or from Tenant; and (e) the estimated Operating Expenses for the current year and Tenant's monthly payment obligation.

Such statements shall be accompanied by reasonable supporting documentation, including invoices for major expenditures, contracts for recurring services, and reconciliations of estimated versus actual expenses. Tenant may inspect Landlord's books and records relating to Operating Expenses upon reasonable notice during normal business hours.

5. OPERATING EXPENSES AND CAM CHARGES

5.1 DEFINITION OF OPERATING EXPENSES "Operating Expenses" means all reasonable costs and expenses of every kind incurred by Landlord in connection with the ownership, operation, maintenance, repair, replacement, security, management, and administration of the Shopping Center and Common Areas, whether paid by Landlord or by others on behalf of Landlord. Operating Expenses include both direct costs and a reasonable allocation of indirect costs attributable to the Shopping Center.

Operating Expenses specifically include but are not limited to: (a) all Common Area Maintenance charges as defined below; (b) costs of utilities serving Common Areas; (c) insurance premiums for property, liability, and other coverage maintained by Landlord; (d) Real Estate Taxes and assessments; (e) management fees; (f) security services and equipment; (g) landscaping and grounds maintenance; (h) repairs and maintenance of parking areas, walkways, and building exteriors; (i) snow removal and de-icing; (j) trash collection and disposal; (k) pest control services; (l) common area lighting and electrical costs; (m) water and sewer charges for Common Areas; (n) costs of compliance with governmental requirements; and (o) administrative costs reasonably allocable to the Shopping Center.

5.2 COMMON AREA MAINTENANCE (CAM) CHARGES CAM Charges include all costs of maintaining, repairing, replacing, operating, and managing the Common Areas of the Shopping Center, including but not limited to: (a) cleaning and janitorial services for Common Areas; (b) maintenance and repair of parking lots, driveways, and walkways; (c) parking lot sweeping, striping, and seal coating; (d) landscape installation, maintenance, and replacement; (e) irrigation system operation and maintenance; (f) exterior lighting maintenance and utility costs; (g) signage maintenance and replacement; (h) common area furniture and amenities; (i) holiday decorations and seasonal displays; (j) common area restroom maintenance and supplies; (k) directory and wayfinding signage; and (l) general repairs and maintenance of Common Area improvements.

5.3 EXCLUDED EXPENSES Notwithstanding the broad definition of Operating Expenses, the following costs shall be excluded from Operating Expenses and shall not be charged to tenants: (a) capital improvements and

capital expenditures, except as specifically provided below; (b) costs of initial construction and development of the Shopping Center; (c) leasing commissions, attorneys' fees, and other costs incurred in procuring tenants; (d) costs of renovating space for specific tenants; (e) interest, principal payments, and other debt service costs; (f) depreciation and amortization except for capital improvements; (g) costs covered by warranties or insurance proceeds; (h) fines and penalties resulting from Landlord's violations of law; (i) charitable contributions and political contributions; (j) costs of services provided exclusively to other tenants; (k) overhead and administrative costs of Landlord's parent company or other entities; and (l) costs that are reimbursed by insurance or third parties.

5.4 CAPITAL IMPROVEMENTS AND REPLACEMENTS Capital improvements and replacements shall be excluded from Operating Expenses except for the following, which may be included on an amortized basis over their useful life with interest at the prime rate plus two percent (2%): (a) capital improvements required by changes in law enacted after the Commencement Date; (b) capital improvements that reduce Operating Expenses, but only to the extent of actual savings achieved; (c) capital improvements that improve the safety or security of the Shopping Center; and (d) replacement of major building systems and equipment that have reached the end of their useful life.

The useful life for amortization purposes shall be determined by Landlord in accordance with generally accepted accounting principles, but in no event shall be less than the period permitted for depreciation under the Internal Revenue Code. Tenant's obligation to pay for amortized capital improvements shall cease upon the expiration or termination of this Lease.

5.5 TENANT'S PROPORTIONATE SHARE CALCULATION Tenant's Proportionate Share of Operating Expenses shall be 2.85%, representing the ratio of the rentable square footage of the Premises to the total rentable square footage of the Shopping Center. The total rentable square footage of the Shopping Center is currently 135,000 square feet, but may be adjusted from time to time to reflect changes in the Shopping Center configuration.

If the rentable area of the Shopping Center is increased or decreased during the Lease term due to additions, modifications, or remeasurement, Tenant's Proportionate Share shall be recalculated accordingly. Any such recalculation shall be based upon a survey or measurement by a licensed architect or surveyor, and the revised Proportionate Share shall take effect as of the date of the change.

5.6 ESTIMATION AND PAYMENT PROCEDURES Prior to the beginning of each calendar year, Landlord shall estimate the Operating Expenses for such year and Tenant's Proportionate Share thereof. Tenant shall pay one-twelfth (1/12) of such estimated annual amount each month together with the monthly Base Rent payment. Landlord may revise the estimate during the year upon thirty (30) days' written notice if actual or projected costs vary significantly from the estimate.

If this Lease commences or terminates during a calendar year, Tenant's obligation for Operating Expenses shall be prorated based on the number of days this Lease was in effect during such year. Proration shall be calculated on a daily basis using a 365-day year.

5.7 ANNUAL RECONCILIATION PROCEDURES Within ninety (90) days after the end of each calendar year (or as soon thereafter as reasonably possible), Landlord shall provide Tenant with a written statement showing: (a) the actual Operating Expenses for such year; (b) Tenant's Proportionate Share thereof; (c) the total amount paid by Tenant on account of Operating Expenses for such year; and (d) the amount of any overpayment or underpayment.

If Tenant has overpaid, the excess shall be credited against Tenant's next monthly payment(s) of estimated Operating Expenses, or refunded if the Lease has terminated. If Tenant has underpaid, the deficiency shall be paid within thirty (30) days after Tenant's receipt of the reconciliation statement.

5.8 SUPPORTING DOCUMENTATION AND AUDIT RIGHTS The annual reconciliation statement shall be accompanied by reasonable supporting documentation, including but not limited to: (a) invoices for major expenditures exceeding \$5,000; (b) contracts for recurring services; (c) insurance policies and premium statements; (d) property tax assessments and payment records; (e) utility bills and usage reports; (f) management agreements and fee calculations; and (g) any other documentation reasonably requested by Tenant.

Tenant shall have the right, upon reasonable advance notice and during normal business hours, to inspect and audit Landlord's books, records, and supporting documentation relating to Operating Expenses for any calendar year during which this Lease was in effect. Such inspection shall be conducted at Landlord's office or the office of its management company, and may be performed by Tenant or its authorized representative, including certified public accountants.

5.9 AUDIT PROCEDURES AND DISPUTE RESOLUTION Any audit of Operating Expenses must be completed within two (2) years after Tenant's receipt of the annual reconciliation statement for the year in question, and Tenant waives the right to contest any Operating Expenses after such period. If an audit reveals that Operating Expenses were overstated by more than five percent (5%) for the year in question, Landlord shall pay the reasonable cost of the audit, not to exceed \$5,000.

Any disputes regarding Operating Expenses that cannot be resolved between the parties shall be submitted to binding arbitration in accordance with the procedures set forth in Section 25 of this Lease. Pending resolution of any dispute, Tenant shall continue to pay estimated Operating Expenses as billed by Landlord.

5.10 MANAGEMENT FEES Landlord may include in Operating Expenses a management fee for the administration and management of the Shopping Center equal to the lesser of: (a) three percent (3%) of the gross rental income collected from the Shopping Center for the year in question; or (b) the amount that would be charged by an independent professional property management company for similar services in the local market area.

If Landlord or an Affiliate of Landlord provides management services, the management fee shall not exceed the amount that would be charged by an independent management company. The management fee shall be included in Operating Expenses only to the extent it represents compensation for services actually provided and shall not include any profit margin above market rates.

5.11 GROSS-UP PROVISIONS FOR VARIABLE EXPENSES If the Shopping Center is not fully occupied during any year, or if any tenant is separately paying for services that are normally included in Operating Expenses, Landlord may make appropriate adjustments ("gross-up") to reflect the Operating Expenses that would have been incurred if the Shopping Center had been fully occupied and all tenants were paying their proportionate share of such expenses.

The gross-up adjustment shall apply only to variable Operating Expenses that increase with occupancy levels, such as utilities, janitorial services, and trash collection. Fixed expenses such as insurance, property taxes, and management fees shall not be subject to gross-up adjustments.

5.12 SPECIAL ASSESSMENTS AND EXTRAORDINARY EXPENSES Special assessments levied against the Shopping Center by governmental authorities shall be included in Operating Expenses, except for assessments

resulting from improvements that benefit only specific tenants. Extraordinary expenses resulting from casualty, condemnation, or other events beyond Landlord's control may be included in Operating Expenses, but shall be amortized over a reasonable period if they exceed \$25,000 in any single year.

Tenant shall be responsible for its Proportionate Share of special assessments and extraordinary expenses only during the period this Lease is in effect. If a special assessment is payable in installments, Tenant shall be responsible only for installments that become due during the Lease term.

6. USE AND OCCUPANCY RESTRICTIONS

6.1 PERMITTED USE SPECIFICATION The Premises shall be used and occupied solely for the retail sale of premium consumer electronics, computer equipment, mobile communication devices, audio-visual equipment, gaming systems, smart home technology, wearable technology devices, accessories and peripherals for electronic devices, extended warranty and service protection plans, and related services including but not limited to technical support, device setup and training, repair services, data transfer and backup services, and software installation and training. No other use is permitted without Landlord's prior written consent, which may be withheld in Landlord's sole discretion.

Tenant's business shall be conducted under the trade name "Premium Tech Solutions" or such other name as may be approved by Landlord. The business shall maintain an inventory of high-quality, name-brand merchandise consistent with the image and reputation of the Shopping Center as a premier retail destination.

6.2 PROHIBITED USES AND ACTIVITIES Tenant shall not use or permit the Premises to be used for any of the following purposes or activities: (a) any illegal activity or purpose; (b) any activity that would violate any federal, state, or local law, ordinance, or regulation; (c) sale of tobacco products, alcoholic beverages, or controlled substances; (d) adult entertainment or adult bookstore operations; (e) auction sales or flea market operations; (f) used merchandise sales except for trade-in programs incidental to new product sales; (g) wholesale operations or warehouse-style retail; (h) restaurants, food service, or food preparation; (i) medical, dental, or healthcare services; (j) financial services or check cashing; (k) temporary or seasonal operations; (l) going-out-of-business, bankruptcy, or liquidation sales without Landlord's consent; (m) any use that creates unusual fire, explosion, or safety hazards; (n) any use that generates excessive noise, odors, or vibrations; (o) any use that interferes with other tenants' operations; or (p) any use that damages the reputation or desirability of the Shopping Center.

6.3 EXCLUSIVE USE RIGHTS AND RESTRICTIONS Subject to the existing rights of tenants as of the date of this Lease, Landlord hereby grants to Tenant the exclusive right within the Shopping Center to sell the following merchandise: (a) new smartphones with retail prices of Five Hundred Dollars (\$500) or more; (b) new tablet computers with retail prices of Three Hundred Dollars (\$300) or more; and (c) premium noise-canceling headphones with retail prices of Two Hundred Dollars (\$200) or more.

The exclusive rights granted herein shall not prevent other tenants from selling such merchandise as part of a broader product line, provided that such merchandise does not comprise more than fifteen percent (15%) of their total inventory or sales volume. Landlord agrees not to lease space to any tenant whose primary business is the sale of premium consumer electronics in direct competition with Tenant's permitted use.

6.4 CONTINUOUS OPERATION REQUIREMENTS Tenant covenants and agrees to continuously operate its business in the Premises throughout the entire Lease term and to keep the Premises open for business during

all days and hours that the Shopping Center is open for business, except for reasonable vacation periods not exceeding one (1) week at a time and not more than four (4) weeks total in any calendar year.

The minimum required hours of operation are: Monday through Saturday from 10:00 AM to 9:00 PM, and Sunday from 11:00 AM to 7:00 PM. During the period from November 1 through January 15 of each year, Tenant shall extend its hours to match the Shopping Center's holiday hours, which may include earlier opening times and later closing times.

Tenant shall maintain adequate staffing during all required operating hours, with at least two (2) qualified sales associates present during peak hours (defined as weekdays from 5:00 PM to 9:00 PM and weekends from 12:00 PM to 6:00 PM). At least one (1) manager-level employee shall be present during all operating hours.

6.5 INVENTORY AND MERCHANDISE STANDARDS Tenant shall maintain a retail inventory with a minimum wholesale value of Two Hundred Thousand Dollars (\$200,000) at all times during the Lease term. The inventory shall consist primarily of new, name-brand merchandise from recognized manufacturers in the consumer electronics industry.

All merchandise shall be displayed in an attractive, professional manner consistent with high-end retail operations. Tenant shall not permit the Premises to appear vacant, understocked, or unprofessional. Window displays shall be maintained and updated regularly to attract customer interest and enhance the Shopping Center's overall appearance.

6.6 COMPLIANCE WITH SHOPPING CENTER STANDARDS Tenant shall comply with all reasonable rules and regulations established by Landlord for the Shopping Center, as such rules may be amended from time to time upon reasonable notice to tenants. Current Shopping Center Rules are attached as Exhibit E and incorporated herein by reference.

Tenant shall maintain the Premises and conduct its business in a manner that is compatible with and enhances the Shopping Center's reputation as a premier retail destination. This includes maintaining high standards of cleanliness, customer service, merchandise quality, and professional appearance.

6.7 BUSINESS LICENSE AND PERMIT REQUIREMENTS Tenant shall obtain and maintain in full force and effect all licenses, permits, approvals, and certifications required by federal, state, and local authorities for the operation of its business in the Premises. Such licenses and permits include but are not limited to: business license, sales tax permit, reseller's permit, and any permits required for electronic device repair services.

Copies of all licenses and permits shall be provided to Landlord within thirty (30) days after issuance and annually thereafter upon renewal. Tenant shall promptly notify Landlord of any suspension, revocation, or modification of any required license or permit.

6.8 CUSTOMER SERVICE AND BUSINESS STANDARDS Tenant shall operate its business in accordance with the highest standards of customer service and professional conduct. Tenant shall maintain reasonable return and exchange policies, honor manufacturer warranties, and handle customer complaints promptly and professionally.

Tenant shall train all employees in proper customer service techniques, product knowledge, and Shopping Center policies. Employees shall dress professionally and maintain a courteous, helpful demeanor when dealing with customers and other tenants.

6.9 ADVERTISING AND MARKETING COMPLIANCE All advertising and marketing materials used by Tenant shall be truthful, accurate, and in compliance with applicable laws and regulations. Tenant shall not engage in any misleading or deceptive advertising practices or make any representations that could damage the reputation of the Shopping Center.

Any advertising that references the Shopping Center or its location must conform to Landlord's marketing guidelines and shall not disparage the Shopping Center, Landlord, or other tenants. Tenant shall submit copies of any major advertising campaigns to Landlord for review upon request.

6.10 PROHIBITED BUSINESS PRACTICES Tenant shall not engage in any of the following business practices: (a) high-pressure sales techniques or aggressive solicitation; (b) bait-and-switch advertising; (c) pyramid schemes or multi-level marketing; (d) price discrimination based on race, gender, religion, or other protected characteristics; (e) unfair or deceptive trade practices; (f) violations of consumer protection laws; or (g) any practice that could result in negative publicity for the Shopping Center.

6.11 SEASONAL AND SPECIAL EVENT PARTICIPATION Tenant agrees to participate in reasonable cooperative advertising and marketing efforts organized by Landlord or the merchant's association, subject to Tenant's approval of the content and costs involved.

17.11 SIGN PERMITS AND APPROVALS Tenant shall obtain all necessary permits and approvals for signage at its sole cost and expense, including building permits, electrical permits, and any special approvals required by local authorities. Tenant shall provide copies of all permits to Landlord before installing any signage.

If any signage is installed without proper permits or approvals, Tenant shall immediately cease installation and obtain required permits, or remove the signage if permits cannot be obtained.

17.12 COMPLIANCE WITH LAWS AND REGULATIONS All signage shall comply with applicable federal, state, and local laws, ordinances, and regulations, including zoning restrictions, building codes, electrical codes, and any historic district requirements. Tenant shall be responsible for ensuring ongoing compliance and for making any modifications required by changes in applicable laws.

18. SECURITY, SAFETY, AND EMERGENCY PROCEDURES

18.1 SHOPPING CENTER SECURITY MEASURES Landlord shall provide reasonable security measures for the Common Areas of the Shopping Center, which may include but are not limited to: (a) security patrols by uniformed personnel during evening hours and weekends; (b) closed-circuit television surveillance of parking areas and common walkways; (c) adequate lighting in all Common Areas; (d) emergency call boxes or stations; (e) coordination with local police and emergency services; and (f) access control systems for after-hours entry.

Landlord makes no representation or warranty regarding the adequacy of security measures and shall not be liable for any criminal acts or security breaches. All security measures are provided for the benefit of tenants and customers but do not guarantee protection against criminal activity.

18.2 TENANT'S INTERIOR SECURITY Tenant shall be responsible for security within the Premises and may install additional security measures with Landlord's consent, including: (a) burglar alarm systems connected to central monitoring; (b) internal security cameras; (c) motion detectors and door sensors; (d) safe or vault for cash and valuable merchandise; (e) security window film or grating; and (f) other reasonable security devices.

All security installations must comply with building codes and shall not interfere with building systems or other tenants' operations. Tenant shall provide Landlord with emergency contact information and alarm system details for security coordination.

18.3 EMERGENCY PROCEDURES AND PROTOCOLS Tenant shall comply with all emergency procedures established by Landlord for the Shopping Center, including: (a) evacuation procedures for fire, natural disasters, or other emergencies; (b) shelter-in-place procedures for severe weather or security threats; (c) coordination with emergency responders; (d) communication procedures during emergencies; and (e) business continuity planning.

Tenant shall designate at least two (2) employees as emergency coordinators who shall be trained in emergency procedures and shall be responsible for coordinating with Shopping Center management and emergency responders during any emergency situation.

18.4 FIRE SAFETY AND PREVENTION Tenant shall comply with all applicable fire codes and safety regulations, including: (a) maintaining clear egress routes and emergency exits; (b) proper storage and handling of flammable materials; (c) installation and maintenance of required fire extinguishers; (d) compliance with occupancy load limits; (e) proper disposal of combustible waste; and (f) employee training in fire safety procedures.

Tenant shall not block or obstruct any fire exits, emergency equipment, or evacuation routes, and shall immediately report any fire safety hazards to Landlord and appropriate authorities.

18.5 HEALTH AND SAFETY PROTOCOLS Tenant shall maintain the Premises in a safe and healthy condition for employees and customers, including: (a) regular cleaning and sanitization; (b) proper maintenance of equipment and fixtures; (c) adequate lighting and ventilation; (d) safe storage of materials and inventory; (e) compliance with OSHA and other workplace safety requirements; and (f) immediate correction of any safety hazards.

Tenant shall provide appropriate safety training to all employees and shall maintain safety equipment as required by applicable regulations.

18.6 INCIDENT REPORTING AND DOCUMENTATION Tenant shall promptly report to Landlord any accidents, injuries, security incidents, or other emergencies occurring in or around the Premises. Reports shall include: (a) date, time, and location of incident; (b) description of what occurred; (c) names of persons involved; (d) extent of any injuries or property damage; (e) actions taken; and (f) contact information for witnesses.

Tenant shall maintain records of all incidents and shall cooperate with any investigations by Landlord, insurance companies, or governmental authorities.

18.7 ACCESS CONTROL AND KEY MANAGEMENT Landlord shall provide Tenant with appropriate keys, access cards, or other access devices for the Premises and necessary Common Areas. Tenant shall: (a) maintain strict control over all access devices; (b) immediately report any lost or stolen keys or cards; (c) not duplicate keys or cards without authorization; (d) return all access devices upon lease termination; and (e) pay for replacement of locks if security is compromised.

Tenant may install additional locks or access control devices with Landlord's consent, provided that Landlord is provided with keys or access codes for emergency purposes.

18.8 EMERGENCY CONTACT INFORMATION Tenant shall provide Landlord with current emergency contact information, including: (a) primary and secondary contacts available 24 hours per day; (b) telephone numbers for key personnel; (c) alarm system monitoring company information; (d) vendor contacts for emergency repairs; and (e) any other contacts necessary for emergency response.

Contact information shall be updated immediately upon any changes, and Tenant shall ensure that designated contacts are available to respond to emergencies within a reasonable time.

18.9 SECURITY DURING CONSTRUCTION During any construction or alteration work in the Premises, Tenant shall implement appropriate security measures to protect the Shopping Center and other tenants, including: (a) securing construction areas after hours; (b) controlling access by construction personnel; (c) protecting against theft of tools and materials; (d) maintaining security of the overall Premises; and (e) coordinating with Landlord regarding any security concerns.

18.10 EMPLOYEE SAFETY AND TRAINING Tenant shall provide appropriate safety training to all employees, including: (a) emergency evacuation procedures; (b) handling of hazardous materials; (c) workplace safety practices; (d) customer service safety protocols; (e) crime prevention awareness; and (f) proper use of safety equipment.

Tenant shall maintain records of safety training provided to employees and shall ensure that all employees are familiar with Shopping Center emergency procedures.

18.11 CUSTOMER SAFETY MEASURES Tenant shall implement reasonable measures to ensure customer safety within the Premises, including: (a) maintaining clear walkways and entrances; (b) proper lighting in all customer areas; (c) secure storage of hazardous materials; (d) warning signs for any potential hazards; (e) prompt cleanup of spills or obstacles; and (f) adequate supervision of customer areas.

18.12 COORDINATION WITH EMERGENCY SERVICES Tenant shall cooperate with local police, fire department, and emergency medical services, including: (a) providing access for emergency response; (b) maintaining current contact information with emergency services; (c) participating in emergency drills or training exercises; (d) providing facility information to emergency responders; and (e) following all emergency service protocols and procedures.

19. TECHNOLOGY, TELECOMMUNICATIONS, AND DATA SYSTEMS

19.1 TELECOMMUNICATIONS INFRASTRUCTURE Landlord shall maintain adequate telecommunications infrastructure to support modern retail operations, including: (a) fiber optic connections to the building; (b) telecommunications closets with adequate space and power; (c) conduits and pathways for tenant cabling; (d) cellular signal enhancement systems; (e) common area Wi-Fi infrastructure; and (f) compatibility with major telecommunications providers.

Tenant shall have access to telecommunications services from multiple providers and may install additional telecommunications equipment with Landlord's consent, subject to building standards and capacity limitations.

19.2 INTERNET AND DATA SERVICES Tenant shall have access to high-speed internet services adequate for modern retail operations, including: (a) broadband internet access with minimum speeds of 100 Mbps download and 10 Mbps upload; (b) redundant internet connections for reliability; (c) ability to upgrade to

higher speeds as needed; (d) support for cloud-based applications and services; and (e) compatibility with modern point-of-sale and inventory management systems.

Tenant shall be responsible for arranging and paying for its own internet services, and may install additional networking equipment as needed for its operations.

19.3 POINT-OF-SALE AND PAYMENT SYSTEMS Tenant shall install and maintain modern point-of-sale systems capable of processing all major forms of payment, including: (a) credit cards and debit cards; (b) mobile payment systems (Apple Pay, Google Pay, etc.); (c) contactless payment options; (d) gift cards and loyalty programs; (e) electronic benefit transfer (EBT) if applicable; and (f) any other payment methods commonly used by customers.

All payment processing systems shall comply with Payment Card Industry (PCI) security standards and shall incorporate appropriate security measures to protect customer data.

19.4 DATA SECURITY AND PRIVACY PROTECTION Tenant shall implement appropriate data security measures to protect customer information and business data, including: (a) secure networks with firewalls and intrusion detection; (b) encryption of sensitive data in transit and at rest; (c) regular security updates and patches; (d) employee training on data security practices; (e) incident response procedures for data breaches; and (f) compliance with applicable privacy laws and regulations.

Tenant shall maintain cyber liability insurance and shall promptly notify Landlord of any data security incidents that could affect the Shopping Center or other tenants.

19.5 CUSTOMER WI-FI AND CONNECTIVITY Tenant may provide complimentary Wi-Fi access to customers within the Premises, subject to appropriate security measures and bandwidth management. Customer Wi-Fi networks shall: (a) be separate from business networks; (b) include appropriate content filtering and security measures; (c) comply with applicable laws regarding internet access; (d) not interfere with other tenants' networks; and (e) include appropriate terms of use and privacy policies.

19.6 TECHNOLOGY EQUIPMENT INSTALLATION Tenant may install technology equipment necessary for its business operations, including: (a) computer servers and networking equipment; (b) telecommunications equipment; (c) security systems and cameras; (d) audio-visual equipment; (e) kiosks and interactive displays; and (f) other technology infrastructure.

All equipment installations must comply with building codes, electrical requirements, and HVAC considerations, and shall not interfere with building systems or other tenants' operations.

19.7 BACKUP POWER AND UNINTERRUPTIBLE POWER SUPPLY Tenant may install backup power systems to protect critical business operations, including: (a) uninterruptible power supply (UPS) systems for point-of-sale equipment; (b) backup generators for extended power outages; (c) battery backup for security systems; and (d) other power protection measures as needed.

All backup power installations must comply with applicable codes and regulations and must be properly maintained to ensure safety and reliability.

19.8 TECHNOLOGY SUPPORT AND MAINTENANCE Tenant shall maintain service contracts with qualified technology support providers to ensure reliable operation of all technology systems, including: (a) regular maintenance and updates; (b) 24/7 technical support availability; (c) prompt response to system failures; (d) regular backup of business data; and (e) disaster recovery planning.

19.9 TELECOMMUNICATIONS COORDINATION Tenant shall coordinate with Landlord regarding any telecommunications installations that could affect building systems or other tenants, including: (a) installation of external antennas or satellite dishes; (b) major cable runs through common areas; (c) equipment installations in telecommunications closets; (d) modifications to building telecommunications infrastructure; and (e) any installations requiring building permits.

19.10 OBSOLETE TECHNOLOGY REMOVAL Upon lease termination, Tenant shall remove all technology equipment and cabling installed by Tenant, unless Landlord elects to retain such equipment. Removal shall include: (a) all computers, servers, and networking equipment; (b) telecommunications cabling and equipment; (c) security systems and cameras; (d) point-of-sale equipment; and (e) restoration of any areas modified for technology installations.

19.11 TECHNOLOGY STANDARDS AND COMPATIBILITY All technology installations shall comply with industry standards and best practices, including: (a) use of standard networking protocols and equipment; (b) compatibility with existing building systems; (c) compliance with FCC regulations for radio frequency equipment; (d) adherence to electrical and fire safety codes; and (e) use of certified and licensed installation contractors.

19.12 FUTURE TECHNOLOGY UPGRADES Landlord reserves the right to upgrade building technology infrastructure from time to time to maintain compatibility with current technology standards. Tenant shall cooperate with such upgrades and may be required to modify its systems for compatibility, provided that Landlord bears the cost of any required modifications to Tenant's existing systems.

20. MARKETING, PROMOTIONS, AND MERCHANT ACTIVITIES

20.1 MERCHANT ASSOCIATION PARTICIPATION Tenant shall be a member of the Westfield Plaza Merchant Association and shall pay monthly dues as established by the association, currently Fifty Dollars (\$50) per month. The merchant association coordinates joint marketing efforts, special events, and promotional activities for the benefit of all Shopping Center tenants.

Tenant shall participate in reasonable merchant association activities, including: (a) monthly meetings and planning sessions; (b) joint advertising and promotional campaigns; (c) special events and seasonal celebrations; (d) community outreach programs; and (e) customer service initiatives.

20.2 MARKETING FUND CONTRIBUTIONS In addition to merchant association dues, Tenant shall contribute to the Shopping Center marketing fund at a rate of \$0.50 per square foot annually (\$1,925 per year for the Premises). Marketing fund contributions shall be used for: (a) Shopping Center advertising and promotion; (b) special events and entertainment; (c) seasonal decorations and displays; (d) directory and wayfinding signage; (e) website development and maintenance; and (f) other marketing activities benefiting all tenants.

Marketing fund expenditures shall be managed by Landlord in consultation with the merchant association, and an annual accounting shall be provided to all participating tenants.

20.3 JOINT ADVERTISING AND PROMOTIONS Tenant agrees to participate in joint advertising and promotional campaigns organized by Landlord or the merchant association, subject to Tenant's approval of the content, placement, and costs involved. Joint advertising may include: (a) newspaper and magazine advertisements; (b) radio and television commercials; (c) online and social media campaigns; (d) direct mail and coupon programs; (e) outdoor advertising and billboards; and (f) community event sponsorships.

Tenant's share of joint advertising costs shall not exceed its proportionate share based on square footage, unless Tenant specifically requests additional exposure or premium placement.

20.4 SPECIAL EVENTS AND SEASONAL PROMOTIONS Tenant shall participate in Shopping Center special events and seasonal promotions, including: (a) grand opening celebrations for new tenants; (b) holiday shopping events and decorations; (c) back-to-school and seasonal sales; (d) customer appreciation events; (e) community festivals and celebrations; and (f) charity fundraising activities.

Participation may include staying open during extended hours, offering special promotions, contributing to event costs, and providing volunteers or support staff for events.

20.5 INDIVIDUAL MARKETING AND ADVERTISING Tenant may conduct individual marketing and advertising activities, provided such activities: (a) do not conflict with Shopping Center marketing efforts; (b) maintain professional standards consistent with the Shopping Center's image; (c) comply with applicable laws and regulations; (d) do not disparage the Shopping Center or other tenants; and (e) accurately represent the Shopping Center's location and contact information.

Any individual advertising that references the Shopping Center must be approved by Landlord and must conform to established marketing guidelines.

20.6 PROMOTIONAL ACTIVITIES IN COMMON AREAS Tenant may request permission to conduct promotional activities in Common Areas, such as: (a) product demonstrations and displays; (b) sampling programs; (c) promotional booths or kiosks; (d) entertainment or educational presentations; and (e) customer registration drives.

All Common Area promotional activities require advance approval from Landlord and must comply with Shopping Center rules, insurance requirements, and local regulations. Tenant shall pay any additional costs associated with Common Area activities.

20.7 CUSTOMER LOYALTY AND REWARDS PROGRAMS Tenant may implement customer loyalty and rewards programs, and is encouraged to coordinate such programs with other Shopping Center tenants to provide enhanced value to customers. Loyalty programs may include: (a) points-based rewards systems; (b) discount programs for frequent customers; (c) special member pricing and promotions; (d) exclusive access to sales and events; and (e) cross-promotional opportunities with other tenants.

20.8 SOCIAL MEDIA AND ONLINE MARKETING Tenant is encouraged to maintain an active social media presence and online marketing efforts that promote both Tenant's business and the Shopping Center as a retail destination. Online marketing activities may include: (a) business website and e-commerce platform; (b) social media accounts and regular posting; (c) online advertising and search engine marketing; (d) customer review management; (e) email marketing campaigns; and (f) participation in online directories and review sites.

Tenant shall ensure that all online content is accurate, professional, and consistent with the Shopping Center's marketing standards.

20.9 COMMUNITY INVOLVEMENT AND OUTREACH Tenant is encouraged to participate in community involvement and outreach activities that benefit the local community and enhance the Shopping Center's reputation, including: (a) sponsorship of local events and organizations; (b) participation in charity fundraising drives; (c) support for local schools and educational programs; (d) environmental sustainability initiatives; and (e) partnerships with local businesses and organizations.

20.10 MARKETING COMPLIANCE AND STANDARDS All marketing and promotional activities shall comply with applicable laws and regulations, including: (a) truth in advertising requirements; (b) consumer protection laws; (c) data privacy regulations; (d) intellectual property laws; (e) accessibility requirements for marketing materials; and (f) any industry-specific marketing regulations.

Tenant shall maintain professional standards in all marketing activities and shall not engage in any practices that could damage the reputation of the Shopping Center or other tenants.

20.11 PROMOTIONAL CALENDAR AND COORDINATION Landlord shall maintain a promotional calendar coordinating Shopping Center-wide events, sales, and marketing activities. Tenant shall provide advance notice of major promotional activities to avoid conflicts and to enable coordination with other tenants and Shopping Center marketing efforts.

The promotional calendar shall include: (a) seasonal sales and events; (b) holiday promotions and decorations; (c) special events and entertainment; (d) grand opening celebrations; and (e) community outreach activities.

20.12 MARKETING PERFORMANCE AND EVALUATION Landlord and the merchant association shall regularly evaluate the effectiveness of marketing and promotional activities through: (a) customer traffic counts and analysis; (b) sales performance tracking; (c) customer surveys and feedback; (d) marketing return on investment analysis; and (e) comparison with industry benchmarks.

Tenant shall provide reasonable cooperation with marketing evaluation efforts and may be asked to provide feedback on the effectiveness of various promotional activities.

21. FINANCIAL REPORTING AND AUDITING REQUIREMENTS

21.1 MONTHLY SALES REPORTING Tenant shall provide Landlord with monthly sales reports within twenty (20) days after the end of each calendar month. Monthly reports shall include: (a) gross sales for the month; (b) year-to-date gross sales; (c) number of transactions; (d) average transaction value; (e) sales tax collected; (f) returns and refunds; and (g) any other sales-related information reasonably requested by Landlord.

Sales reports shall be prepared on forms provided by Landlord or in a format approved by Landlord, and shall be signed by Tenant's authorized representative certifying the accuracy of the information provided.

21.2 ANNUAL FINANCIAL STATEMENTS Tenant shall provide Landlord with annual financial statements within ninety (90) days after the end of each calendar year. Annual financial statements shall include: (a) profit and loss statement; (b) balance sheet; (c) cash flow statement; (d) statement of equity; and (e) notes to financial statements.

If Tenant's annual gross sales exceed Two Million Dollars (\$2,000,000), the annual financial statements shall be prepared by an independent certified public accountant. For smaller operations, financial statements may be prepared by Tenant's internal accounting staff, provided they are certified as accurate by Tenant's principal financial officer.

21.3 PERCENTAGE RENT CALCULATIONS If Tenant's gross sales exceed the natural breakpoint specified in this Lease, Tenant shall pay percentage rent as provided in Section 4.8. Percentage rent calculations shall be based on gross sales as defined in this Lease, and shall be submitted with annual sales reports.

Tenant shall provide detailed calculations showing: (a) total gross sales for the year; (b) allowable deductions; (c) net sales subject to percentage rent; (d) base rent paid during the year; (e) percentage rent due; and (f)

supporting documentation for all calculations.

21.4 RECORD KEEPING REQUIREMENTS Tenant shall maintain complete and accurate records of all sales, receipts, and financial transactions relating to the Premises for a period of at least three (3) years. Records shall be maintained in accordance with generally accepted accounting principles and shall include: (a) daily sales registers and receipts; (b) bank deposit records; (c) tax returns and filings; (d) inventory records; (e) accounts receivable and payable records; and (f) general ledger and supporting documentation.

All records shall be maintained at Tenant's principal place of business or at the Premises, and shall be available for inspection by Landlord upon reasonable notice during normal business hours.

21.5 AUDIT RIGHTS AND PROCEDURES Landlord shall have the right to audit Tenant's sales records and financial information relating to the Premises upon reasonable notice during normal business hours. Audits may be conducted by Landlord's representatives or by independent certified public accountants selected by Landlord.

Audit rights shall include: (a) examination of all books and records relating to sales and receipts; (b) review of bank statements and deposit records; (c) analysis of point-of-sale system data; (d) verification of tax returns and filings; (e) reconciliation of reported sales with business records; and (f) such other review procedures as may be reasonably necessary.

21.6 AUDIT COSTS AND ADJUSTMENTS If an audit reveals that reported sales were understated by more than three percent (3%) for any audited period, Tenant shall pay the reasonable cost of the audit in addition to any additional percentage rent due, plus interest at the rate specified in this Lease.

If an audit reveals overpayment of percentage rent, Landlord shall credit the overpayment against future rent obligations or refund the overpayment if the Lease has terminated.

21.7 CONFIDENTIALITY OF FINANCIAL INFORMATION Landlord agrees to maintain the confidentiality of Tenant's financial information and sales data, and shall not disclose such information to third parties except: (a) as required by law or legal process; (b) to Landlord's professional advisors under appropriate confidentiality agreements; (c) to prospective purchasers or mortgagees under appropriate confidentiality agreements; (d) in connection with enforcement of this Lease; and (e) in aggregated form that does not identify specific tenant information.

21.8 FINANCIAL STATEMENT ANALYSIS Landlord may review Tenant's financial statements to assess Tenant's financial condition and ability to perform under this Lease. If financial statements reveal material deterioration in Tenant's financial condition, Landlord may require: (a) additional security deposits; (b) personal or corporate guaranties; (c) letters of credit; (d) advance payment of rent; or (e) other reasonable security measures.

21.9 ELECTRONIC REPORTING SYSTEMS Landlord may require the use of electronic reporting systems for sales reporting and financial data submission. Electronic systems may include: (a) online portals for data submission; (b) integration with point-of-sale systems; (c) automated data collection and reporting; (d) real-time sales monitoring; and (e) electronic document management.

Tenant shall cooperate with the implementation of electronic reporting systems and shall provide necessary technical support and access for system integration.

21.10 COMPLIANCE WITH ACCOUNTING STANDARDS All financial reporting shall comply with generally accepted accounting principles (GAAP) and applicable tax regulations. Tenant shall maintain consistent accounting methods and shall notify Landlord of any material changes in accounting practices that could affect reported sales or financial results.

21.11 THIRD-PARTY VERIFICATION Landlord may require third-party verification of sales data through: (a) credit card processing company reports; (b) point-of-sale system vendor reports; (c) tax authority filings and payments; (d) bank account analysis; and (e) other independent verification methods.

Tenant shall cooperate with third-party verification efforts and shall provide necessary authorizations for Landlord to obtain verification information.

21.12 REMEDIES FOR REPORTING VIOLATIONS Failure to provide required financial reports or maintain adequate records shall constitute a default under this Lease. Remedies for reporting violations may include: (a) monetary penalties; (b) requirement for enhanced reporting; (c) third-party monitoring of sales; (d) additional security deposits; and (e) other remedies available under this Lease.

22. CONSTRUCTION, DEVELOPMENT, AND FUTURE EXPANSION

22.1 SHOPPING CENTER DEVELOPMENT RIGHTS Landlord reserves the right to develop, construct, alter, or modify the Shopping Center and surrounding property as Landlord deems appropriate, including: (a) construction of additional retail buildings; (b) expansion of existing buildings; (c) modification of parking areas and traffic patterns; (d) construction of outparcels and pad sites; (e) installation of additional signage and landscaping; and (f) other improvements that enhance the Shopping Center's value and appeal.

Landlord shall use reasonable efforts to minimize disruption to Tenant's business operations during any construction activities, but Tenant acknowledges that some inconvenience may be unavoidable during major construction projects.

22.2 CONSTRUCTION STANDARDS AND PROCEDURES All construction activities in the Shopping Center shall be performed in accordance with the following standards: (a) compliance with all applicable building codes and regulations; (b) use of licensed and insured contractors; (c) coordination with existing tenants to minimize disruption; (d) maintenance of safe conditions for customers and employees; (e) adequate insurance coverage for construction activities; and (f) prompt cleanup and restoration of affected areas.

Construction activities shall generally be limited to normal business hours, except for emergency repairs or activities that require after-hours work to minimize disruption to tenant operations.

22.3 TENANT COORDINATION DURING CONSTRUCTION During any construction activities that could affect Tenant's operations, Landlord shall: (a) provide advance notice of construction schedules and activities; (b) coordinate with Tenant regarding access and deliveries; (c) maintain reasonable access to the Premises; (d) provide alternative parking arrangements if necessary; (e) minimize noise and disruption during business hours; and (f) address any specific concerns raised by Tenant.

Tenant shall cooperate with construction activities and shall make reasonable accommodations for temporary inconveniences, provided that such accommodations do not materially impair Tenant's ability to conduct business.

22.4 EXPANSION AND MODIFICATION RIGHTS Landlord may expand or modify the Shopping Center in ways that benefit the overall retail environment, including: (a) addition of anchor tenants or major retailers; (b) reconfiguration of tenant spaces; (c) construction of entertainment or dining facilities; (d) addition of office or service components; (e) modification of Common Areas; and (f) integration with adjacent developments.

Any expansion or modification that reduces Tenant's allocated parking or materially impairs access to the Premises may be grounds for lease modification or rent adjustment to be negotiated in good faith between the parties.

22.5 INFRASTRUCTURE IMPROVEMENTS Landlord may make improvements to Shopping Center infrastructure, including: (a) utility system upgrades; (b) telecommunications infrastructure enhancements; (c) security system improvements; (d) HVAC system modifications; (e) parking lot improvements; and (f) landscaping and aesthetic enhancements.

The cost of infrastructure improvements may be included in Operating Expenses to the extent permitted under this Lease, or may be funded through other means as determined by Landlord.

22.6 TENANT IMPROVEMENT COORDINATION If Tenant desires to make major improvements or modifications to the Premises that could be coordinated with Landlord's construction activities, the parties shall cooperate to achieve cost efficiencies and minimize disruption. Coordination opportunities may include: (a) shared use of contractors and equipment; (b) bulk purchasing of materials; (c) coordinated scheduling of work; (d) shared utility and infrastructure improvements; and (e) joint permit applications and approvals.

22.7 FUTURE LEASE MODIFICATIONS If Landlord's development activities materially change the character or operation of the Shopping Center, the parties may negotiate appropriate modifications to this Lease, including: (a) rent adjustments reflecting changed conditions; (b) modification of operating hours or requirements; (c) changes to exclusive use provisions; (d) adjustment of parking allocations; (e) modification of signage rights; and (f) other changes necessary to address new circumstances.

22.8 ENVIRONMENTAL CONSIDERATIONS All construction and development activities shall comply with applicable environmental laws and regulations, and Landlord shall implement reasonable measures to minimize environmental impact, including: (a) proper handling and disposal of construction waste; (b) erosion and sediment control measures; (c) protection of air and water quality; (d) noise control measures; (e) preservation of existing vegetation where feasible; and (f) compliance with sustainability standards.

22.9 TEMPORARY DISRUPTIONS AND COMPENSATIONS If construction activities result in temporary loss of access, parking, or other services essential to Tenant's operations, Landlord may provide reasonable compensation or alternative arrangements, including: (a) temporary rent abatement; (b) alternative parking arrangements; (c) temporary signage or advertising; (d) modified operating requirements; and (e) other accommodations appropriate to the circumstances.

22.10 PERMANENT IMPROVEMENTS AND BENEFITS Tenant acknowledges that construction and development activities may result in permanent improvements that benefit all Shopping Center tenants, including: (a) increased customer traffic and sales; (b) enhanced Shopping Center reputation and desirability; (c) improved infrastructure and amenities; (d) better parking and access; (e) increased property values; and (f) stronger tenant mix and synergies.

22.11 CONSTRUCTION SAFETY AND SECURITY During construction activities, Landlord shall maintain appropriate safety and security measures, including: (a) adequate barriers and warning signs; (b) safe pedestrian walkways; (c) security patrols in construction areas; (d) protection of existing utilities and systems;

(e) emergency access for fire and medical services; and (f) coordination with local authorities regarding traffic and safety issues.

22.12 COMPLETION SCHEDULES AND COMMITMENTS While Landlord shall use reasonable efforts to complete construction projects on schedule, Tenant acknowledges that construction activities may be subject to delays due to weather, permit approvals, labor issues, material availability, and other factors beyond Landlord's control. Landlord shall not be liable for damages resulting from construction delays, except as may be specifically provided in this Lease.

23. PROPERTY MANAGEMENT AND LANDLORD SERVICES

23.1 PROPERTY MANAGEMENT COMPANY Landlord has engaged Metro Property Management, LLC ("Property Manager") to provide day-to-day management services for the Shopping Center. The Property Manager serves as Landlord's agent for most operational matters and is authorized to: (a) collect rent and other charges; (b) coordinate maintenance and repairs; (c) enforce lease provisions and Shopping Center rules; (d) manage vendor relationships; (e) coordinate with tenants on operational issues; and (f) handle routine administrative matters.

Tenant's primary contact for operational matters shall be the Property Manager, while major lease issues and modifications shall be handled directly with Landlord.

23.2 MANAGEMENT SERVICES PROVIDED The Property Manager shall provide the following services for the Shopping Center: (a) financial management including rent collection and expense management; (b) maintenance coordination and oversight; (c) vendor management and contract administration; (d) tenant relations and communication; (e) emergency response coordination; (f) security management and oversight; (g) marketing and promotional support; and (h) regulatory compliance monitoring.

Management services are provided for the benefit of all tenants and the Shopping Center as a whole, and the cost of management services is included in Operating Expenses as provided in this Lease.

23.3 MAINTENANCE COORDINATION The Property Manager shall coordinate all maintenance activities for the Shopping Center, including: (a) preventive maintenance programs; (b) emergency repair response; (c) vendor scheduling and oversight; (d) quality control and inspection; (e) maintenance cost management; (f) compliance with warranty requirements; and (g) coordination with tenant maintenance activities.

Tenants shall report maintenance issues to the Property Manager, who shall coordinate appropriate response and resolution.

23.4 TENANT COMMUNICATIONS The Property Manager shall maintain regular communication with tenants regarding Shopping Center operations, including: (a) monthly newsletters or bulletins; (b) notices of maintenance activities and disruptions; (c) information about promotional events and opportunities; (d) updates on Shopping Center developments; (e) policy changes and regulatory updates; and (f) emergency notifications and procedures.

Tenant shall provide current contact information to the Property Manager and shall promptly update such information when changes occur.

23.5 EMERGENCY RESPONSE SERVICES The Property Manager shall maintain 24-hour emergency response capabilities for the Shopping Center, including: (a) emergency contact numbers for tenants; (b) coordination

with emergency services; (c) emergency repair and restoration services; (d) security response and investigation; (e) utility emergency response; and (f) communication with tenants during emergencies.

Tenant shall provide the Property Manager with emergency contact information and shall respond promptly to emergency situations affecting the Premises or Shopping Center.

23.6 VENDOR MANAGEMENT AND OVERSIGHT The Property Manager shall manage relationships with service providers and contractors, including: (a) selection and qualification of vendors; (b) contract negotiation and administration; (c) performance monitoring and quality control; (d) cost management and budget oversight; (e) insurance and licensing verification; and (f) coordination of vendor activities to minimize tenant disruption.

Tenant may recommend qualified vendors for Property Manager consideration, but final vendor selection shall be at the Property Manager's discretion.

23.7 FINANCIAL MANAGEMENT SERVICES The Property Manager shall provide financial management services including: (a) rent collection and processing; (b) operating expense management and reporting; (c) budget preparation and monitoring; (d) financial reporting to Landlord and tenants; (e) audit coordination and support; and (f) accounts payable and receivable management.

Financial management services are designed to ensure accurate and timely financial reporting and to maintain the financial health of the Shopping Center.

23.8 REGULATORY COMPLIANCE SUPPORT The Property Manager shall monitor regulatory compliance for the Shopping Center and shall provide support to tenants regarding: (a) building code compliance; (b) fire safety requirements; (c) accessibility standards; (d) environmental regulations; (e) health and safety requirements; and (f) other applicable regulations.

While the Property Manager provides compliance support, each tenant remains responsible for compliance with all applicable laws and regulations affecting its operations.

23.9 MARKETING AND PROMOTIONAL SUPPORT The Property Manager shall provide marketing and promotional support for the Shopping Center, including: (a) development and implementation of marketing strategies; (b) coordination of special events and promotions; (c) management of advertising and promotional campaigns; (d) tenant participation coordination; (e) community relations and outreach; and (f) online and social media management.

Marketing and promotional activities are designed to benefit all tenants by increasing customer traffic and enhancing the Shopping Center's reputation and appeal.

23.10 TENANT SERVICES AND SUPPORT The Property Manager shall provide various services and support to tenants, including: (a) assistance with operational issues; (b) coordination of tenant improvements and construction; (c) facilitation of tenant meetings and communications; (d) resolution of tenant disputes and conflicts; (e) assistance with regulatory compliance; and (f) general business support and advice.

Tenant services are provided to enhance tenant satisfaction and success, which benefits the entire Shopping Center community.

23.11 PERFORMANCE STANDARDS AND MONITORING The Property Manager's performance shall be monitored based on various standards, including: (a) tenant satisfaction surveys; (b) financial performance

metrics; (c) maintenance response times; (d) regulatory compliance records; (e) emergency response effectiveness; and (f) overall Shopping Center performance indicators.

Tenants may provide feedback on Property Manager performance, and such feedback shall be considered in ongoing management evaluation.

23.12 CHANGES IN PROPERTY MANAGEMENT Landlord reserves the right to change property management companies or to manage the Shopping Center directly. Any change in property management shall be coordinated to ensure continuity of services and minimal disruption to tenant operations.

Tenant shall be notified of any changes in property management and shall be provided with new contact information and procedures as necessary.

24. TENANT OPERATIONS AND BUSINESS STANDARDS

24.1 BUSINESS OPERATIONS STANDARDS Tenant shall operate its business in accordance with the highest professional standards appropriate for a premier retail shopping center, including: (a) maintaining high-quality merchandise and services; (b) providing excellent customer service; (c) maintaining clean and attractive premises; (d) employing knowledgeable and courteous staff; (e) implementing efficient business processes; and (f) contributing positively to the Shopping Center's reputation and customer experience.

All business operations shall be conducted in a manner that enhances the Shopping Center's appeal as a retail destination and that supports the success of other tenants.

24.2 CUSTOMER SERVICE REQUIREMENTS Tenant shall maintain exceptional customer service standards, including: (a) prompt and courteous service to all customers; (b) knowledgeable staff capable of answering product questions; (c) fair and reasonable return and exchange policies; (d) resolution of customer complaints in a professional manner; (e) accessibility accommodations for customers with disabilities; and (f) consistent service quality during all operating hours.

Customer service standards shall be maintained through regular staff training, performance monitoring, and implementation of customer feedback systems.

24.3 INVENTORY AND MERCHANDISING STANDARDS Tenant shall maintain appropriate inventory levels and merchandising standards, including: (a) adequate inventory to meet customer demand; (b) attractive and professional merchandise displays; (c) regular rotation and updating of inventory; (d) proper storage and handling of merchandise; (e) competitive pricing and value proposition; and (f) seasonal and promotional merchandise planning.

Inventory and merchandising shall be managed to optimize sales performance and customer satisfaction while maintaining the professional appearance of the Premises.

24.4 STAFF TRAINING AND DEVELOPMENT Tenant shall provide comprehensive training to all staff members, including: (a) product knowledge and technical expertise; (b) customer service skills and techniques; (c) sales processes and procedures; (d) safety and emergency procedures; (e) company policies and procedures; and (f) ongoing professional development opportunities.

Staff training programs shall be designed to ensure consistent service quality and to support business growth and success.

24.5 OPERATIONAL EFFICIENCY AND TECHNOLOGY Tenant shall implement operational systems and technology to ensure efficient business operations, including: (a) modern point-of-sale systems; (b) inventory management systems; (c) customer relationship management systems; (d) financial management and reporting systems; (e) employee scheduling and management systems; and (f) other technology tools that enhance operational efficiency.

Operational systems shall be designed to provide accurate business information, improve customer service, and support business growth.

24.6 QUALITY CONTROL AND ASSURANCE Tenant shall implement quality control measures to ensure consistent service and product quality, including: (a) regular performance monitoring and evaluation; (b) customer feedback collection and analysis; (c) staff performance reviews and coaching; (d) product quality verification and testing; (e) service delivery standards and monitoring; and (f) continuous improvement processes.

Quality control measures shall be designed to identify and address issues before they affect customer satisfaction or business performance.

24.7 BUSINESS CONTINUITY PLANNING Tenant shall develop and maintain business continuity plans to ensure continued operations during emergencies or disruptions, including: (a) emergency response procedures; (b) backup systems and processes; (c) alternative suppliers and vendors; (d) staff cross-training and backup coverage; (e) communication plans for customers and stakeholders; and (f) recovery procedures for business disruptions.

Business continuity planning shall be coordinated with Shopping Center emergency procedures and shall be designed to minimize disruption to customers and other tenants.

24.8 FINANCIAL MANAGEMENT AND CONTROLS Tenant shall maintain sound financial management practices, including: (a) accurate financial record keeping; (b) regular financial reporting and analysis; (c) cash management and security procedures; (d) expense control and budget management; (e) tax compliance and reporting; and (f) audit and internal control procedures.

Financial management practices shall be designed to ensure business profitability, regulatory compliance, and long-term sustainability.

24.9 VENDOR AND SUPPLIER RELATIONSHIPS Tenant shall maintain professional relationships with vendors and suppliers, including: (a) selection of reputable and reliable suppliers; (b) negotiation of favorable terms and conditions; (c) performance monitoring and quality control; (d) timely payment of invoices and obligations; (e) compliance with supplier requirements and standards; and (f) development of backup supplier relationships.

Vendor relationships shall be managed to ensure reliable supply of merchandise and services while maintaining cost effectiveness and quality standards.

24.10 COMMUNITY INVOLVEMENT AND CITIZENSHIP Tenant is encouraged to participate in community activities and to demonstrate good corporate citizenship, including: (a) support for local charities and organizations; (b) participation in community events and initiatives; (c) employment of local residents when possible; (d) environmental responsibility and sustainability practices; (e) ethical business practices and social responsibility; and (f) positive contribution to the local business community.

Community involvement activities shall be consistent with Tenant's business objectives and shall enhance the reputation of both Tenant and the Shopping Center.

24.11 PERFORMANCE MONITORING AND IMPROVEMENT Tenant shall regularly monitor business performance and implement improvement measures, including: (a) sales performance analysis and reporting; (b) customer satisfaction measurement and improvement; (c) operational efficiency monitoring and enhancement; (d) staff performance evaluation and development; (e) competitive analysis and market positioning; and (f) strategic planning and business development.

Performance monitoring shall be used to identify opportunities for improvement and to ensure continued business success and growth.

24.12 COMPLIANCE WITH SHOPPING CENTER STANDARDS Tenant shall comply with all Shopping Center standards and requirements, including: (a) adherence to Shopping Center rules and regulations; (b) participation in Shopping Center activities and programs; (c) cooperation with other tenants and Shopping Center management; (d) maintenance of standards consistent with Shopping Center image; (e) compliance with lease requirements and obligations; and (f) support for Shopping Center marketing and promotional efforts.

Compliance with Shopping Center standards shall be monitored through regular communication with Shopping Center management and through participation in tenant meetings and activities.

25. DISPUTE RESOLUTION AND LEGAL PROCEDURES

25.1 GOOD FAITH NEGOTIATION REQUIREMENT Before initiating any formal dispute resolution procedures, the parties agree to attempt to resolve any disputes through good faith negotiations. Upon written request by either party, senior representatives of both parties shall meet within thirty (30) days to discuss the dispute and attempt to reach a mutually acceptable resolution.

Good faith negotiations shall include: (a) full disclosure of relevant facts and circumstances; (b) consideration of each party's interests and concerns; (c) exploration of creative solutions and alternatives; (d) commitment to reaching a fair and reasonable resolution; and (e) documentation of any agreements reached.

25.2 MEDIATION PROCEDURES If good faith negotiations fail to resolve a dispute within sixty (60) days, either party may initiate mediation proceedings. Mediation shall be conducted by a qualified mediator selected by mutual agreement of the parties, or if the parties cannot agree, by a mediator appointed by the American Arbitration Association.

Mediation proceedings shall be conducted in accordance with the Commercial Mediation Procedures of the American Arbitration Association, and shall take place in the metropolitan area where the Shopping Center is located. The cost of mediation shall be shared equally by the parties.

25.3 ARBITRATION PROCEDURES If mediation fails to resolve the dispute within ninety (90) days after initiation, either party may demand binding arbitration. Arbitration shall be conducted by a single arbitrator selected by mutual agreement of the parties, or if the parties cannot agree, by an arbitrator appointed by the American Arbitration Association.

Arbitration proceedings shall be conducted in accordance with the Commercial Arbitration Rules of the American Arbitration Association, and shall take place in the metropolitan area where the Shopping Center is

located. The arbitrator's decision shall be final and binding on both parties.

25.4 EXCEPTIONS TO ARBITRATION REQUIREMENT Notwithstanding the arbitration requirement, either party may seek relief in a court of competent jurisdiction for: (a) injunctive relief to prevent irreparable harm; (b) attachment or other provisional remedies; (c) enforcement of arbitration awards; (d) eviction or unlawful detainer proceedings; (e) collection of unpaid rent or other undisputed amounts; and (f) emergency relief where immediate action is necessary to prevent substantial harm.

25.5 DISCOVERY AND EVIDENCE PROCEDURES In any arbitration proceeding, the parties shall be entitled to reasonable discovery, including: (a) production of documents and records; (b) depositions of key witnesses; (c) expert witness testimony; (d) site inspections if relevant; and (e) other discovery procedures as determined by the arbitrator.

Discovery shall be conducted efficiently and shall be proportionate to the amount in controversy and the complexity of the issues involved.

25.6 ARBITRATOR QUALIFICATIONS AND SELECTION Any arbitrator selected to resolve disputes under this Lease shall have: (a) at least ten (10) years of experience in commercial real estate law or related fields; (b) specific knowledge of retail leasing and Shopping Center operations; (c) demonstrated experience in conducting arbitration proceedings; (d) no conflicts of interest with either party; and (e) appropriate professional credentials and reputation.

The arbitrator selection process shall be designed to ensure impartiality and expertise relevant to the dispute.

25.7 ARBITRATION AWARDS AND ENFORCEMENT Arbitration awards shall be in writing and shall include: (a) findings of fact and conclusions of law; (b) the specific relief awarded; (c) allocation of arbitration costs and attorneys' fees; (d) compliance deadlines and requirements; and (e) any other terms necessary to resolve the dispute.

Arbitration awards may be enforced in any court of competent jurisdiction, and the parties consent to the jurisdiction of such courts for enforcement purposes.

25.8 ATTORNEYS' FEES AND COSTS In any dispute resolution proceeding, the prevailing party shall be entitled to recover reasonable attorneys' fees and costs incurred in connection with the dispute. The determination of the prevailing party and the reasonableness of fees and costs shall be made by the arbitrator or court, as applicable.

Attorneys' fees shall include fees for services rendered in connection with the dispute resolution proceeding, but shall not include fees for services rendered in the ordinary course of business or for unrelated matters.

25.9 CONTINUATION OF PERFORMANCE Except for disputes involving payment of rent or other undisputed amounts, the parties shall continue to perform their respective obligations under this Lease during the pendency of any dispute resolution proceedings. Performance shall continue until the dispute is resolved or until this Lease is terminated in accordance with its terms.

25.10 CONFIDENTIALITY OF PROCEEDINGS All dispute resolution proceedings, including negotiations, mediation, and arbitration, shall be confidential. The parties agree not to disclose: (a) the existence of any dispute or proceeding; (b) information disclosed during proceedings; (c) settlement offers or negotiations; (d) arbitration awards or settlements; and (e) any other information related to the dispute resolution process.

Confidentiality obligations shall survive the resolution of any dispute and the termination of this Lease.

25.11 STATUTE OF LIMITATIONS Any claim arising under this Lease must be commenced within two (2) years after the cause of action accrues, or such claim shall be forever barred. A cause of action accrues when the claimant knows or should have known of the facts giving rise to the claim.

The statute of limitations may be extended by written agreement of the parties or by law in cases involving fraud or concealment.

25.12 JURISDICTION AND VENUE To the extent that court proceedings are permitted or required under this Lease, the parties consent to the exclusive jurisdiction of the state and federal courts located in the county where the Shopping Center is located. Venue for any court proceedings shall be in such county unless otherwise agreed by the parties.

26. FORCE MAJEURE AND CASUALTY EVENTS

26.1 DEFINITION OF FORCE MAJEURE EVENTS "Force Majeure Events" means any cause or event beyond the reasonable control of the affected party, including but not limited to: (a) acts of God, including earthquakes, floods, hurricanes, tornadoes, and other natural disasters; (b) war, terrorism, civil unrest, and acts of public enemies; (c) government actions, including changes in law, regulations, or government orders; (d) labor disputes, strikes, and work stoppages; (e) utility failures and infrastructure breakdowns; (f) pandemics, epidemics, and public health emergencies; (g) material shortages and supply chain disruptions; and (h) other events that prevent performance despite reasonable efforts.

The affected party must demonstrate that the Force Majeure Event was unforeseeable, unavoidable, and beyond its reasonable control, and that it has made reasonable efforts to mitigate the effects of such event.

26.2 NOTICE OF FORCE MAJEURE EVENTS Any party claiming relief due to a Force Majeure Event shall provide prompt written notice to the other party, including: (a) description of the event and its impact on performance; (b) expected duration of the event; (c) steps being taken to mitigate the effects; (d) alternative arrangements being considered; and (e) estimated timeline for resumption of normal performance.

Notice shall be given within ten (10) days after the party becomes aware of the Force Majeure Event, and the affected party shall provide regular updates on the status and expected resolution of the event.

26.3 EFFECT ON LEASE OBLIGATIONS During the period of a Force Majeure Event, the affected party's obligations under this Lease shall be suspended to the extent such obligations are prevented by the Force Majeure Event. However, the following obligations shall continue: (a) payment of rent and other charges if Tenant is able to use the Premises; (b) insurance obligations; (c) security and maintenance obligations to the extent feasible; (d) compliance with applicable laws; and (e) communication and cooperation obligations.

The suspension of obligations shall be limited to the minimum extent necessary and shall end when the Force Majeure Event is resolved or when alternative arrangements can be made.

26.4 RENT ABATEMENT DURING FORCE MAJEURE If a Force Majeure Event prevents Tenant from using the Premises for its intended purpose, Base Rent shall be abated proportionately during the period of such prevention. Rent abatement shall be calculated based on the extent to which Tenant's use is impaired and the duration of such impairment.

Additional Rent obligations may also be adjusted if the Force Majeure Event affects the services or benefits for which such charges are paid.

26.5 MITIGATION OBLIGATIONS Both parties shall use reasonable efforts to mitigate the effects of any Force Majeure Event and to resume normal performance as soon as possible. Mitigation efforts may include: (a) implementing alternative arrangements; (b) securing alternative suppliers or services; (c) modifying operations to accommodate limitations; (d) coordinating with authorities and service providers; and (e) taking other reasonable steps to minimize disruption.

The cost of reasonable mitigation efforts shall be borne by the party taking such efforts, unless otherwise agreed.

26.6 TERMINATION RIGHTS If a Force Majeure Event prevents either party from performing its material obligations under this Lease for more than one hundred eighty (180) consecutive days, either party may terminate this Lease upon ninety (90) days' written notice to the other party.

Termination due to Force Majeure shall not constitute a default by either party, and neither party shall be liable for damages resulting from such termination.

26.7 CASUALTY DAMAGE TO PREMISES If the Premises or Shopping Center is damaged by fire, earthquake, or other casualty, the parties' obligations shall be determined based on the extent of damage and the feasibility of restoration. Landlord shall assess the damage and provide written notice to Tenant within thirty (30) days regarding restoration plans and timeline.

If the damage can be restored within one hundred eighty (180) days, Landlord shall promptly commence restoration, and rent shall be abated proportionately during the restoration period. If restoration cannot be completed within such period, either party may terminate this Lease.

26.8 INSURANCE PROCEEDS AND RESTORATION Insurance proceeds for casualty damage shall be applied toward restoration of the Premises and Shopping Center. If insurance proceeds are insufficient for complete restoration, Landlord may elect to terminate this Lease or to restore the damage at its own expense.

Tenant's insurance proceeds for tenant improvements and personal property shall be available to Tenant for restoration or replacement of such items.

26.9 TEMPORARY RELOCATION If the Premises becomes unusable due to casualty damage but restoration is feasible, Landlord may offer temporary relocation space within the Shopping Center or in nearby locations. Tenant may accept such temporary relocation, and the parties shall negotiate appropriate rent adjustments and other terms for the temporary space.

Temporary relocation shall be at Tenant's option, and Tenant may elect to suspend operations until the Premises is restored if suitable temporary space is not available.

26.10 UTILITY AND SERVICE INTERRUPTIONS Interruptions in utilities or services due to Force Majeure Events shall not constitute a default by either party. However, both parties shall cooperate to restore utilities and services as soon as possible, and may implement temporary alternatives if feasible.

Extended utility interruptions that materially impair Tenant's ability to conduct business may result in rent abatement or other relief as appropriate to the circumstances.

26.11 GOVERNMENT ORDERS AND REGULATIONS If government orders or regulations prevent or restrict Tenant's business operations, the parties shall cooperate to implement alternative arrangements if feasible. Such orders may include: (a) public health emergency orders; (b) zoning or use restrictions; (c) safety or environmental orders; (d) traffic or access restrictions; and (e) other regulatory requirements.

The parties may negotiate temporary lease modifications to address the effects of government orders, including rent adjustments, modified operating requirements, or other accommodations.

26.12 FORCE MAJEURE AND LEASE RENEWAL If a Force Majeure Event occurs near the end of the initial Lease term or a renewal term, the parties may extend the term to compensate for time lost due to the Force Majeure Event. Such extensions shall be negotiated in good faith and shall be designed to provide Tenant with the full benefit of the intended lease term.

27. CONDEMNATION AND EMINENT DOMAIN

27.1 TOTAL CONDEMNATION If the entire Premises or Shopping Center is taken by eminent domain or condemnation, this Lease shall terminate as of the date of taking, and neither party shall have any further obligations hereunder except for obligations that have accrued prior to the termination date.

Rent shall be apportioned to the date of taking, and any prepaid rent for periods after the taking shall be refunded to Tenant.

27.2 PARTIAL CONDEMNATION - PREMISES If a portion of the Premises is taken by condemnation, the effect on this Lease shall depend on the extent of the taking and its impact on Tenant's operations:

- (a) If the taking renders the remaining Premises unsuitable for Tenant's business operations, either party may terminate this Lease upon thirty (30) days' written notice;
- (b) If the taking does not materially impair Tenant's operations, this Lease shall continue in effect with appropriate rent adjustments based on the area taken;
- (c) Any tenant improvements in the taken area shall be restored by Landlord at Landlord's expense, or rent shall be adjusted to reflect the loss of such improvements.

27.3 PARTIAL CONDEMNATION - SHOPPING CENTER If a portion of the Shopping Center (but not the Premises) is taken by condemnation, this Lease shall continue in effect unless the taking materially impairs access to the Premises or substantially reduces the Shopping Center's viability as a retail destination.

Factors to be considered include: (a) loss of parking spaces; (b) impairment of access routes; (c) loss of anchor tenants or major attractions; (d) reduction in customer traffic; and (e) overall impact on the retail environment.

27.4 TEMPORARY TAKING If any portion of the Premises or Shopping Center is subject to temporary taking or requisition, this Lease shall remain in effect, but rent shall be abated proportionately during the period of taking. The condemning authority's compensation for temporary taking shall be divided between Landlord and Tenant based on their respective interests and losses.

Temporary takings include requisitions for public use, emergency use by government authorities, and other temporary restrictions on use or occupancy.

27.5 CONDEMNATION AWARDS AND COMPENSATION Condemnation awards shall be allocated between Landlord and Tenant based on their respective interests in the property taken. Generally, Landlord shall be entitled to compensation for the land and building, while Tenant shall be entitled to compensation for:

- (a) Loss of leasehold value and business goodwill; (b) Relocation costs and expenses; (c) Loss of tenant improvements and fixtures; (d) Business interruption and lost profits; (e) Moving expenses and temporary

relocation costs; (f) Other damages directly resulting from the taking.

27.6 CONDEMNATION PROCEEDINGS Both parties shall cooperate in any condemnation proceedings and shall make reasonable efforts to maximize the total compensation awarded. Each party may engage separate counsel to protect its interests, but shall coordinate with the other party to avoid conflicting positions that could reduce the overall award.

Neither party shall settle or compromise any condemnation claim without the consent of the other party, unless such settlement does not affect the other party's rights or claims.

27.7 NOTICE OF CONDEMNATION Either party receiving notice of condemnation proceedings shall immediately notify the other party in writing. The notice shall include: (a) copies of all condemnation notices and documents; (b) description of the property to be taken; (c) proposed compensation and terms; (d) timeline for the proceedings; and (e) any other relevant information.

27.8 RESTORATION AFTER PARTIAL TAKING If this Lease continues after partial condemnation, Landlord shall restore the remaining portions of the Premises and Shopping Center to a condition suitable for continued use. Restoration shall be completed within a reasonable time, considering the extent of work required and the availability of materials and contractors.

During restoration, rent may be abated proportionately based on the extent to which Tenant's use is impaired.

27.9 LEASE MODIFICATIONS AFTER CONDEMNATION If this Lease continues after partial condemnation, the parties may negotiate appropriate modifications to address changed circumstances, including: (a) rent adjustments reflecting reduced space or altered conditions; (b) modification of operating requirements; (c) changes to parking allocations; (d) adjustment of exclusive use provisions; and (e) other modifications necessary to address the effects of the taking.

27.10 INVERSE CONDEMNATION If government actions substantially impair the use or value of the Premises or Shopping Center without formal condemnation proceedings, the parties may pursue inverse condemnation claims. Such situations may include: (a) zoning changes that prohibit current uses; (b) infrastructure changes that eliminate access; (c) regulatory restrictions that prevent operations; and (d) other government actions that effectively take property rights.

27.11 CONDEMNATION INSURANCE Landlord may maintain condemnation insurance or similar coverage to protect against losses resulting from condemnation. Any proceeds from such insurance shall be used to compensate the parties for their respective losses, similar to the allocation of condemnation awards.

27.12 DEFINITION OF TAKING For purposes of this section, "taking" includes any acquisition of property rights by eminent domain, condemnation, or other exercise of governmental power, whether voluntary or involuntary, and whether the entire fee interest or lesser interests (such as easements) are acquired.

28. NOTICES, COMMUNICATIONS, AND RECORD KEEPING

28.1 NOTICE REQUIREMENTS All notices, demands, requests, and other communications required or permitted hereunder shall be in writing and shall be deemed given when: (a) personally delivered to the intended recipient; (b) delivered by certified mail, return receipt requested, postage prepaid; (c) delivered by a nationally recognized overnight courier service; or (d) transmitted by email to the addresses specified herein, with confirmation of receipt.

Notices shall be addressed to the parties at their respective addresses set forth below, or to such other addresses as either party may designate by written notice to the other party.

28.2 NOTICE ADDRESSES

TO LANDLORD: Westfield Plaza Holdings, LLC 500 Corporate Plaza Drive, Suite 2000 Business City, State 54321 Attention: Asset Management Department Email: notices@westfieldplazaholdings.com

WITH COPY TO: Johnson, Smith & Associates, LLP 1200 Law Center Drive Legal City, State 13579 Attention: Commercial Real Estate Department Email: realestate@johnsonsmith.com

TO TENANT: Premium Retail Concepts, Inc. 789 Technology Drive Corporate City, State 67890 Attention: Real Estate Director Email: realestate@premiumretail.com

WITH COPY TO: Tenant's Legal Counsel (if applicable) [Address to be provided by Tenant]

28.3 CHANGE OF ADDRESS Either party may change its address for notices by giving written notice of such change to the other party in accordance with the notice procedures set forth herein. Changes of address shall be effective upon receipt of notice by the other party.

Notice of address changes shall include: (a) the new address for notices; (b) the effective date of the change; (c) updated contact information; and (d) confirmation that the change applies to all future notices.

28.4 ELECTRONIC COMMUNICATIONS With the consent of both parties, routine communications may be conducted by email or other electronic means, including: (a) monthly sales reports; (b) operating expense statements; (c) maintenance requests and responses; (d) scheduling and coordination communications; and (e) other non-legal communications.

However, formal legal notices, lease modifications, and other significant communications must be delivered in accordance with the formal notice procedures set forth herein.

28.5 RECORD KEEPING REQUIREMENTS Each party shall maintain complete records of all communications, notices, and documents related to this Lease, including: (a) original lease documents and amendments; (b) all notices given and received; (c) financial records and reports; (d) maintenance and repair records; (e) insurance certificates and claims; (f) permit and license documentation; and (g) any other documents relevant to the lease relationship.

Records shall be maintained for at least seven (7) years after the termination of this Lease, or for such longer period as may be required by applicable law.

28.6 DOCUMENT RETENTION POLICY Both parties shall implement appropriate document retention policies to ensure that important lease-related documents are preserved and accessible when needed. Document retention policies shall address: (a) identification of documents to be retained; (b) retention periods for different types of documents; (c) storage methods and location; (d) access procedures and security; (e) periodic review and purging of outdated documents; and (f) compliance with legal and regulatory requirements.

28.7 BACKUP AND DISASTER RECOVERY Important lease documents and records shall be backed up and stored in secure locations to prevent loss due to fire, theft, natural disasters, or other casualties. Backup procedures shall include: (a) regular copying of important documents; (b) off-site storage of backup copies; (c)

electronic scanning and storage of paper documents; (d) secure cloud storage with appropriate access controls; and (e) regular testing of backup and recovery procedures.

28.8 CONFIDENTIALITY OF COMMUNICATIONS All communications between the parties relating to this Lease shall be treated as confidential business information and shall not be disclosed to third parties except: (a) as required by law or legal process; (b) to professional advisors under appropriate confidentiality agreements; (c) to prospective purchasers or lenders under appropriate confidentiality agreements; (d) in connection with enforcement of this Lease; and (e) with the prior written consent of both parties.

28.9 LANGUAGE AND INTERPRETATION This Lease is written in English, and all communications hereunder shall be in English unless otherwise agreed by the parties. If translation into other languages is required for any purpose, the English version shall control in case of any conflicts or ambiguities.

28.10 EMERGENCY COMMUNICATIONS In addition to formal notice procedures, both parties shall maintain emergency contact information for situations requiring immediate communication. Emergency contact information shall include: (a) 24-hour telephone numbers; (b) mobile phone numbers; (c) email addresses; and (d) alternative contacts if primary contacts are unavailable.

Emergency contact information shall be updated promptly when changes occur, and both parties shall respond promptly to emergency communications.

28.11 DELIVERY CONFIRMATION For important notices and communications, the sender should obtain confirmation of delivery and receipt. Confirmation methods may include: (a) return receipts for certified mail; (b) delivery confirmation from courier services; (c) email read receipts; (d) personal delivery receipts; and (e) other appropriate confirmation methods.

Confirmation of delivery helps ensure that important communications are received and can prevent disputes about notice timing.

28.12 COMMUNICATION PROTOCOLS The parties may establish communication protocols to ensure efficient and effective communication regarding lease matters. Communication protocols may address: (a) preferred methods of communication for different types of matters; (b) response time expectations; (c) escalation procedures for urgent matters; (d) regular communication schedules; and (e) coordination between different departments or representatives.

29. MISCELLANEOUS PROVISIONS AND GENERAL TERMS

29.1 ENTIRE AGREEMENT This Lease, including all exhibits, addenda, and attachments hereto, constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior negotiations, representations, warranties, statements, promises, agreements, and understandings between the parties relating to such subject matter.

No other agreements, representations, or warranties exist between the parties except as expressly set forth in this Lease.

29.2 AMENDMENTS AND MODIFICATIONS This Lease may be amended or modified only by a written instrument signed by both parties. No oral agreements, representations, or modifications shall be binding upon either party or shall modify the terms of this Lease.

Any amendment or modification shall be attached to and made a part of this Lease, and shall be binding upon the parties and their respective successors and assigns.

29.3 WAIVER OF PROVISIONS No waiver of any provision of this Lease shall be effective unless made in writing and signed by the party making the waiver. No waiver of any breach or default shall be deemed a waiver of any subsequent breach or default of the same or any other provision.

The acceptance of rent or other performance by either party with knowledge of a breach shall not constitute a waiver of such breach unless expressly agreed in writing.

29.4 SEVERABILITY If any provision of this Lease is held to be invalid, illegal, or unenforceable by a court of competent jurisdiction, the remainder of this Lease shall remain in full force and effect, and the invalid provision shall be modified or replaced with a valid provision that achieves the intended purpose to the maximum extent possible.

The parties agree to cooperate in good faith to modify any invalid provisions to achieve their intended purpose while complying with applicable law.

29.5 GOVERNING LAW This Lease shall be governed by and construed in accordance with the laws of the State in which the Premises is located, without regard to conflict of law principles. Any legal proceedings relating to this Lease shall be subject to the dispute resolution procedures set forth herein.

29.6 BINDING EFFECT This Lease shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, executors, administrators, successors, and permitted assigns. No party may assign its rights or obligations hereunder without the consent of the other party as provided herein.

29.7 COUNTERPARTS AND ELECTRONIC SIGNATURES This Lease may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be acceptable and shall have the same legal effect as original signatures.

29.8 HEADINGS AND CAPTIONS The headings and captions used in this Lease are for convenience only and shall not be used to interpret or construe the provisions hereof. The terms and provisions of this Lease shall be determined by the language used in the body of each section.

29.9 CONSTRUCTION AND INTERPRETATION This Lease shall be construed as a whole according to its fair meaning and not strictly for or against either party. The parties acknowledge that each has been represented by counsel and has participated in the drafting of this Lease, and therefore no rule of construction shall apply that would interpret ambiguous language against the drafter.

Words used in the singular shall include the plural, and words used in the plural shall include the singular, as the context may require. The use of any gender shall include all genders.

29.10 TIME OF ESSENCE Time is of the essence with respect to all obligations, covenants, and conditions to be performed under this Lease. Failure to perform any obligation within the time specified shall constitute a material breach of this Lease.

29.11 JOINT AND SEVERAL LIABILITY If Tenant consists of more than one person or entity, the obligations of Tenant hereunder shall be joint and several, and each such person or entity shall be fully liable for all obligations of Tenant under this Lease.

29.12 RELATIONSHIP OF PARTIES Nothing contained in this Lease shall be deemed or construed to create a partnership, joint venture, or agency relationship between Landlord and Tenant, or to make either party liable for the debts or obligations of the other.

29.13 NO THIRD-PARTY BENEFICIARIES This Lease is intended solely for the benefit of the parties hereto and their permitted successors and assigns, and no other person or entity shall have any rights as a third-party beneficiary under this Lease.

29.14 SURVIVAL OF OBLIGATIONS Any obligations of either party which by their nature should survive the expiration or termination of this Lease shall so survive, including without limitation: indemnification obligations, environmental compliance obligations, confidentiality provisions, and payment obligations for periods prior to termination.

29.15 AUTHORITY TO EXECUTE Each party represents and warrants to the other that: (a) it has full corporate or other power and authority to enter into this Lease; (b) the execution of this Lease has been duly authorized; (c) the person executing this Lease on its behalf is duly authorized to do so; and (d) this Lease constitutes a valid and binding obligation enforceable in accordance with its terms.

30. EXHIBITS AND ATTACHMENTS

30.1 LIST OF EXHIBITS The following exhibits are attached hereto and incorporated herein by reference:

- **Exhibit A:** Premises Floor Plan and Legal Description
- **Exhibit A-1:** Legal Description of Shopping Center Property
- **Exhibit B:** Lease Guaranty Agreement
- **Exhibit C:** Landlord Work Specifications
- **Exhibit D:** Fair Market Rent Determination Procedures
- **Exhibit E:** Shopping Center Rules and Regulations
- **Exhibit F:** Site Plan and Parking Allocation
- **Exhibit G:** Sign Criteria and Design Standards
- **Exhibit H:** Environmental Reports and Disclosures
- **Exhibit I:** Insurance Requirements Summary
- **Exhibit J:** Emergency Procedures and Contact Information

30.2 INCORPORATION BY REFERENCE All exhibits attached hereto are hereby incorporated into this Lease by reference and made a part hereof as if fully set forth in the body of this Lease. In the event of any conflict between the provisions of this Lease and any exhibit, the provisions of this Lease shall control unless specifically stated otherwise.

EXECUTION AND ACKNOWLEDGMENT

IN WITNESS WHEREOF, the parties have executed this Lease as of the date first written above.

LANDLORD:

WESTFIELD PLAZA HOLDINGS, LLC a Delaware limited liability company

By: /s/ Michael J. Rodriguez Name: Michael J. Rodriguez
Title: Managing Member Date: December 1, 2024

TENANT:

PREMIUM RETAIL CONCEPTS, INC. a State Corporation

By: /s/ Sarah Chen Name: Sarah Chen Title: President
Date: December 1, 2024

By: /s/ David Kim Name: David Kim Title: Chief Financial Officer Date: December 1, 2024

ACKNOWLEDGMENTS

STATE OF [STATE NAME] COUNTY OF [COUNTY NAME]

On December 1, 2024, before me personally appeared Michael J. Rodriguez, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his authorized capacity, and that by his signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature: _____ [Notary Public Signature]

STATE OF [STATE NAME] COUNTY OF [COUNTY NAME]

On December 1, 2024, before me personally appeared Sarah Chen and David Kim, who proved to me on the basis of satisfactory evidence to be the persons whose names are subscribed to the within instrument and acknowledged to me that they executed the same in their authorized capacities, and that by their signatures on the instrument the persons, or the entity upon behalf of which the persons acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature: _____ [Notary Public Signature]

DETAILED EXHIBITS

EXHIBIT A - PREMISES FLOOR PLAN AND LEGAL DESCRIPTION

PREMISES DESCRIPTION: The Premises consists of approximately 3,850 square feet of retail space located on the ground floor of the shopping center building, designated as Suite 245. The Premises is more particularly bounded and described as follows:

BOUNDARIES:

- **NORTH:** Common wall with Suite 250, measuring approximately 77 linear feet
- **SOUTH:** Exterior wall facing main parking area, measuring approximately 77 linear feet, including storefront entrance
- **EAST:** Common wall with Suite 240, measuring approximately 50 linear feet
- **WEST:** Interior mall corridor, measuring approximately 50 linear feet, including secondary entrance

INTERIOR LAYOUT:

- **Main Retail Area:** 3,200 square feet with 14-foot ceiling height
- **Storage Room:** 400 square feet located at rear of premises
- **Employee Break Room:** 150 square feet with kitchenette facilities
- **Private Restroom:** 100 square feet, ADA compliant
- **Utility Closet:** Shared access for HVAC and electrical equipment

ENTRANCES AND ACCESS:

- **Primary Entrance:** 12-foot wide storefront entrance facing interior mall corridor
- **Secondary Entrance:** 8-foot wide entrance facing parking area with emergency exit capability
- **Service Access:** Rear door access to loading dock area (shared with adjacent tenants)

CEILING AND STRUCTURAL DETAILS:

- **Ceiling Height:** 14 feet to structural deck, 12 feet to suspended ceiling system
- **Floor Construction:** Reinforced concrete slab on grade, sealed and level
- **Wall Construction:** Steel stud frame with drywall finish, insulated exterior walls
- **Storefront:** Aluminum frame with tempered glass panels and aluminum entrance doors

UTILITY CONNECTIONS:

- **Electrical:** 400-amp service panel with appropriate distribution
- **HVAC:** Individual rooftop unit serving premises exclusively
- **Plumbing:** Full restroom facilities and break room sink with hot/cold water
- **Telecommunications:** Conduit and connection points for phone, internet, and cable services

LEGAL DESCRIPTION OF PREMISES: That certain portion of the real property described in Exhibit A-1, being more particularly described as Suite 245 of the Westfield Plaza Shopping Center, as shown on the floor plan attached hereto and recorded in the official records of [County Name] County, [State Name].

EXHIBIT A-1 - LEGAL DESCRIPTION OF SHOPPING CENTER PROPERTY

LEGAL DESCRIPTION: All that certain real property situated in the City of Metro City, County of [County Name], State of [State Name], described as follows:

BEGINNING at the Northeast corner of Section 15, Township 2 North, Range 3 East of the [State] Principal Meridian; thence South 89°45'30" West along the North line of said Section 15, a distance of 1,247.82 feet to the Northwest corner of the hereinafter described tract; thence South 0°12'15" East, a distance of 542.67 feet; thence North 89°45'30" East, parallel to the North line of said Section 15, a distance of 1,247.82 feet to the East line of said Section 15; thence North 0°12'15" West along said East line, a distance of 542.67 feet to the POINT OF BEGINNING.

Said parcel contains 15.5 acres, more or less, and is subject to easements, restrictions, and rights of way of record.

ALSO KNOWN AS: 1500 Commerce Boulevard, Metro City, [State Name] [ZIP CODE]

ASSESSOR'S PARCEL NUMBER: 123-456-789-000

EXHIBIT B - LEASE GUARANTY AGREEMENT

GUARANTY OF LEASE

FOR VALUABLE CONSIDERATION, the undersigned ("Guarantor") hereby unconditionally guarantees to Westfield Plaza Holdings, LLC ("Landlord") the full and faithful performance by Premium Retail Concepts, Inc. ("Tenant") of all terms, covenants, and conditions of that certain lease dated December 1, 2024 ("Lease") for premises located at 1500 Commerce Boulevard, Suite 245, Metro City, [State Name].

GUARANTOR OBLIGATIONS: Guarantor absolutely and unconditionally guarantees: (a) payment of all rent and other monetary obligations of Tenant under the Lease; (b) performance of all non-monetary obligations of Tenant; (c) payment of all costs, expenses, and attorney fees incurred by Landlord in enforcing this Guaranty; and (d) performance of all obligations that survive termination of the Lease.

GUARANTY TERMS: This Guaranty shall: (a) be absolute and unconditional; (b) remain in effect until all obligations under the Lease are satisfied; (c) be binding upon Guarantor's heirs, successors, and assigns; (d) not be released by any modification of the Lease; and (e) be enforceable without first pursuing remedies against Tenant.

GUARANTOR INFORMATION: **Name:** Premium Retail Holdings, LLC **Address:** 789 Technology Drive, Corporate City, [State Name] 67890 **Federal Tax ID:** [To be provided]

FINANCIAL INFORMATION: Guarantor represents that its net worth exceeds \$5,000,000 and agrees to provide annual financial statements to Landlord upon request.

EXECUTION:

PREMIUM RETAIL HOLDINGS, LLC

By: /s/ Robert Johnson Name: Robert Johnson Title: Managing Member Date: December 1, 2024

EXHIBIT C - LANDLORD WORK SPECIFICATIONS

DETAILED LANDLORD WORK SPECIFICATIONS

Landlord shall complete the following work in the Premises prior to the Commencement Date, at Landlord's sole cost and expense:

1. STRUCTURAL AND BUILDING ENVELOPE WORK:

Demising Walls:

- Construct demising walls from floor slab to roof deck
- Steel stud construction with appropriate fire rating (2-hour minimum)
- Sound insulation between adjacent tenant spaces

- Drywall finish on tenant side, ready for paint

Exterior Work:

- Install storefront system with aluminum framing
- Tempered glass panels in storefront
- Commercial grade entrance doors with panic hardware
- Weather sealing and caulking of all exterior penetrations
- Exterior wall insulation and vapor barrier

Floor Systems:

- Concrete slab properly sealed and level ($\pm 1/4$ " in 10 feet)
- Floor drains in storage and utility areas
- Floor preparation ready for tenant's finish flooring

2. MECHANICAL SYSTEMS:

HVAC Installation:

- 15-ton rooftop HVAC unit with natural gas heating
- Complete ductwork system with appropriate sizing
- Zone controls for retail area and storage/office areas
- Programmable thermostats for each zone
- Supply and return air diffusers
- Outside air ventilation per code requirements
- Exhaust fans for restroom and break room areas

Plumbing Systems:

- Complete restroom with ADA-compliant fixtures
- Toilet, sink, grab bars, accessories
- Break room sink with hot and cold water
- Floor drains in appropriate locations
- Water heater appropriately sized for tenant needs
- Shut-off valves and clean-outs accessible to tenant

3. ELECTRICAL SYSTEMS:

Main Electrical Service:

- 400-amp electrical service to premises
- Main distribution panel with appropriate circuit breakers
- Electrical meter for tenant's exclusive use
- GFCI protection where required by code

Interior Electrical:

- 20-amp circuits around perimeter at 12-foot spacing
- Appropriate circuits for HVAC equipment
- Basic lighting system providing 50 foot-candles at sales floor

- LED fixtures throughout premises
- Emergency lighting and exit signs per code
- Electrical rough-in for point-of-sale locations

4. TELECOMMUNICATIONS AND TECHNOLOGY:

Basic Infrastructure:

- Conduit and pull boxes for tenant's telecommunications
- Connection to building's main telecommunications room
- Cable TV and internet access rough-in
- Conduit for security system wiring
- Electrical circuits for telecommunications equipment

5. INTERIOR FINISHES:

Wall Finishes:

- Drywall construction throughout
- Primer coat applied (ready for tenant's finish paint)
- Appropriate wall preparation for tenant improvements

Ceiling Systems:

- Suspended ceiling grid system installed
- Ceiling tiles to be provided by tenant
- Integration with HVAC and lighting systems
- Access panels for building systems

Millwork and Trim:

- Basic door and window trim
- Required ADA compliance features
- Hardware for all doors

6. FIRE PROTECTION AND LIFE SAFETY:

Fire Sprinkler System:

- Automatic fire sprinkler system throughout premises
- Connection to building's main fire protection system
- Appropriate coverage per NFPA standards
- Fire department connection and testing capabilities

Fire Alarm Systems:

- Smoke detection and alarm system
- Connection to building's main fire alarm panel
- Emergency communication systems
- Integration with building's emergency procedures

7. CODE COMPLIANCE AND PERMITS:

Building Code Compliance:

- All work performed in accordance with current building codes
- ADA compliance for all areas open to the public
- Occupancy permits and certificates of occupancy
- All required inspections and approvals

Permits and Approvals:

- Building permits for all construction work
- Electrical permits for electrical installations
- Mechanical permits for HVAC and plumbing work
- Fire department approvals for fire protection systems

COMPLETION STANDARDS: All Landlord Work shall be completed in a good and workmanlike manner using new materials of commercial grade quality. Work shall be completed in accordance with approved plans and specifications and shall comply with all applicable codes and regulations.

WARRANTY: Landlord warrants all Landlord Work for a period of one (1) year from completion, covering defects in materials and workmanship. Building systems warranties shall be assigned to tenant where applicable.

TENANT COORDINATION: Landlord shall coordinate with Tenant regarding: (a) color selections for basic finishes; (b) location of electrical outlets and fixtures; (c) HVAC zone configurations; (d) telecommunications rough-in locations; and (e) other items that affect tenant's planned improvements.

EXHIBIT D - FAIR MARKET RENT DETERMINATION PROCEDURES

FAIR MARKET RENT APPRAISAL PROCESS

If the parties cannot agree on fair market rent for renewal terms, the following procedure shall apply:

1. APPRAISAL INITIATION: Either party may initiate the appraisal process by giving written notice to the other party within thirty (30) days after the deadline for agreement on renewal rent.

2. APPRAISER SELECTION: Each party shall select a qualified commercial real estate appraiser within fifteen (15) days after initiation notice. If either party fails to select an appraiser, the other party may proceed with a single appraiser.

3. APPRAISER QUALIFICATIONS: Each appraiser must have: (a) MAI designation or equivalent professional credentials; (b) minimum 10 years experience in commercial real estate appraisal; (c) specific experience with retail properties in the market area; (d) no conflicts of interest with either party; and (e) current license in good standing.

4. APPRAISAL STANDARDS: Fair market rent shall be determined based on: (a) rental rates for comparable retail space in the market area; (b) size, location, and condition of the premises; (c) lease terms and tenant improvement allowances; (d) market conditions as of the renewal commencement date; and (e) the specific permitted use under this lease.

5. THIRD APPRAISER SELECTION: If the two appraisals differ by more than 10%, the appraisers shall select a third qualified appraiser within ten (10) days. If they cannot agree, the third appraiser shall be selected by the

local chapter of the Appraisal Institute.

6. FINAL DETERMINATION: If three appraisals are obtained, the fair market rent shall be the average of the two closest appraisals. The determination shall be final and binding on both parties.

7. COSTS: Each party shall pay for its own appraiser. The cost of the third appraiser shall be shared equally.

8. TIMELINE: The appraisal process shall be completed within sixty (60) days after initiation, and the renewal option shall remain in effect pending completion.

EXHIBIT E - SHOPPING CENTER RULES AND REGULATIONS

WESTFIELD PLAZA SHOPPING CENTER RULES AND REGULATIONS

1. GENERAL CONDUCT:

- All tenants, employees, and customers must conduct themselves in an orderly and appropriate manner
- No disruptive, illegal, or inappropriate behavior will be tolerated
- Complaints should be directed to the management office
- All persons must comply with posted signs and instructions

2. HOURS OF OPERATION:

- Shopping Center general hours: Monday-Saturday 6:00 AM to 11:00 PM, Sunday 8:00 AM to 10:00 PM
- Individual tenant hours may vary within these limits
- Holiday hours may be extended with advance notice
- After-hours access requires coordination with management

3. PARKING REGULATIONS:

- Parking limited to Shopping Center customers and employees
- No overnight parking without permission
- No recreational vehicles, boats, or trailers
- No vehicle repairs or maintenance in parking areas
- Abandoned vehicles will be towed at owner's expense

4. DELIVERIES AND SERVICE:

- Deliveries during designated hours only (6:00 AM to 6:00 PM)
- Large deliveries must be scheduled with management
- Service vehicles must use designated areas
- No blocking of fire lanes or emergency access

5. TRASH AND RECYCLING:

- Use designated dumpster areas only
- No dumping of hazardous materials
- Recycling encouraged and properly sorted
- Keep dumpster areas clean and organized
- Special disposal arrangements for large items

6. SIGNAGE AND ADVERTISING:

- All signage subject to management approval
- No unauthorized signs or advertisements
- Window displays must be professional and attractive
- No signs in Common Areas without permission
- Temporary promotional signs require advance approval

7. MAINTENANCE AND CLEANLINESS:

- Maintain premises in clean and attractive condition
- Immediately clean up any spills or messes
- Report maintenance issues to management promptly
- Keep storefronts and entrances clean and unobstructed
- Proper disposal of all waste materials

8. SECURITY AND SAFETY:

- Report security concerns immediately
- Cooperate with security personnel
- No propping open fire doors or emergency exits
- Keep emergency exits clear at all times
- Report any safety hazards or accidents

9. NOISE CONTROL:

- Keep noise levels reasonable for retail environment
- No loud music or announcements without permission
- Construction noise limited to designated hours
- Sound equipment requires management approval

10. SMOKING POLICY:

- No smoking inside any buildings
- Designated outdoor smoking areas only
- Proper disposal of smoking materials
- Comply with all applicable smoking regulations

11. SOLICITATION:

- No solicitation without management permission
- No distribution of literature in Common Areas
- Charitable activities subject to management approval
- Commercial solicitation generally prohibited

12. COMPLIANCE:

- All tenants responsible for ensuring compliance by employees and customers
- Violations may result in warnings, fines, or lease enforcement action
- Rules may be modified with reasonable notice
- Questions should be directed to management office

MANAGEMENT CONTACT INFORMATION: Metro Property Management, LLC 1500 Commerce Boulevard, Suite 100 Metro City, [State Name] [ZIP CODE] Phone: (555) 123-4567 Emergency: (555) 123-4568 Email: management@westfieldplaza.com

EXHIBIT F - SITE PLAN AND PARKING ALLOCATION

SHOPPING CENTER SITE PLAN AND PARKING DETAILS

OVERALL SITE CONFIGURATION: The Westfield Plaza Shopping Center is configured in an L-shaped layout with the following components:

Building Layout:

- **North Building:** 85,000 sq ft containing anchor tenants and in-line retail
- **South Building:** 50,000 sq ft containing anchor tenant and specialty retail
- **Outparcels:** Two restaurant pad sites of 3,500 sq ft each
- **Total Retail Space:** 135,000 sq ft gross leasable area

Parking Configuration:

- **Total Parking Spaces:** 675 spaces (5:1 ratio)
- **Standard Spaces:** 625 spaces (9' x 18' minimum)
- **Accessible Spaces:** 50 spaces (ADA compliant with proper access aisles)
- **Employee Parking:** 75 designated spaces in rear areas
- **Service/Delivery:** 25 spaces near loading docks

TENANT PARKING ALLOCATION - SUITE 245:

Customer Parking (15 spaces):

- **Spaces C-147 through C-158:** Located in front parking area
- **Distance from Store:** 50 to 150 feet from main entrance
- **Signage:** "Customer Parking - Premium Tech Solutions"
- **Accessibility:** 2 spaces are ADA compliant within this allocation

Employee Parking (3 spaces):

- **Spaces E-89, E-90, E-91:** Located in rear employee area
- **Distance from Store:** 200 feet via rear entrance
- **Signage:** "Employee Parking Only - Suite 245"
- **Access Hours:** 24/7 for employee convenience

Service/Delivery (2 spaces - shared use):

- **Spaces S-12 and S-13:** Near rear loading dock
- **Scheduling:** Available on reservation basis through management
- **Size:** Oversized spaces for delivery vehicles
- **Hours:** 6:00 AM to 6:00 PM for deliveries

ACCESS AND CIRCULATION:

Primary Access:

- **Commerce Boulevard Entrance:** Main entrance with traffic signal
- **Capacity:** 4-lane entrance with left and right turn lanes
- **Hours:** Unrestricted access 24/7
- **Emergency:** Clear access for emergency vehicles

Secondary Access:

- **Oak Street Entrance:** Right turn only during peak hours (3-7 PM)
- **Design:** 2-lane entrance with yield sign
- **Usage:** Primarily for employee and service access

Internal Circulation:

- **Traffic Flow:** One-way circulation in main parking areas
- **Speed Limit:** 15 mph throughout parking areas
- **Pedestrian:** Marked crosswalks and sidewalks
- **Loading:** Separate circulation for delivery vehicles

LANDSCAPING AND AMENITIES:

Landscaped Areas:

- **Entry Features:** Decorative landscaping at main entrances
- **Parking Islands:** Trees and shrubs throughout parking areas
- **Perimeter:** Landscaped buffer along property boundaries
- **Maintenance:** Professional landscape maintenance included in CAM

Customer Amenities:

- **Lighting:** Full parking lot illumination for safety and security
- **Signage:** Directional and wayfinding signs throughout
- **Trash Receptacles:** Located at building entrances and seating areas
- **Seating:** Outdoor seating areas with weather protection

PARKING LOT MAINTENANCE:

Regular Maintenance:

- **Sweeping:** Daily cleaning of parking areas
- **Striping:** Annual re-striping of parking spaces and traffic lanes
- **Seal Coating:** Periodic seal coating to preserve pavement
- **Repairs:** Prompt repair of potholes and surface damage

Seasonal Maintenance:

- **Snow Removal:** Prompt snow and ice removal during winter months
- **De-icing:** Application of ice melt materials for safety
- **Drainage:** Maintenance of storm water drainage systems
- **Lighting:** Regular maintenance of parking lot lighting

FUTURE EXPANSION PROVISIONS: The site plan accommodates potential future expansion including:

- Additional outparcel development
- Parking structure if needed for increased density
- Additional building pad sites
- Enhanced landscaping and amenities

Current parking allocation shall be maintained during any expansion activities, with temporary alternative arrangements provided if necessary.

EXHIBIT G - SIGN CRITERIA AND DESIGN STANDARDS

WESTFIELD PLAZA SHOPPING CENTER COMPREHENSIVE SIGN STANDARDS

1. GENERAL DESIGN PHILOSOPHY: All signage shall contribute to a cohesive, upscale retail environment that enhances the Shopping Center's image and supports tenant identification while maintaining aesthetic harmony throughout the development.

2. STOREFRONT SIGNAGE SPECIFICATIONS:

Size and Placement Requirements:

- **Maximum Sign Area:** 120 square feet for Suite 245 (3,850 sq ft premises)
- **Maximum Height:** 3 feet (36 inches)
- **Placement:** Centered above storefront, minimum 8-foot clearance above walkway
- **Depth:** Maximum 12 inches projection from building face
- **Mounting:** Professional mounting system integrated with storefront design

Design Standards:

- **Letter Height:** Minimum 8 inches, maximum 24 inches for primary text
- **Font Selection:** Professional, easily readable typefaces; script fonts discouraged
- **Logo Integration:** Corporate logos permitted within overall size limitations
- **Color Palette:** Must complement Shopping Center's established color scheme
- **Illumination:** LED internal illumination preferred; external illumination acceptable

Construction Requirements:

- **Materials:** Aluminum cabinet construction with acrylic faces
- **Electrical:** UL-listed components, professional electrical installation
- **Structural:** Engineered mounting system appropriate for local wind loads
- **Weather Resistance:** All materials suitable for local climate conditions
- **Warranty:** Minimum 5-year warranty on materials and workmanship

3. ILLUMINATION STANDARDS:

Permitted Lighting:

- **LED Systems:** Preferred for energy efficiency and longevity
- **Fluorescent:** Acceptable for internal illumination
- **Neon:** Limited to accent lighting or "Open" signs only
- **External Illumination:** Architectural lighting acceptable with approval

Prohibited Lighting:

- **Flashing or Animated:** No flashing, chasing, or moving light displays
- **Excessive Brightness:** Lighting levels must not create glare or distraction
- **Colored Lighting:** Subject to approval; must complement overall design
- **Sound Effects:** No audible components permitted

4. WINDOW SIGNAGE REGULATIONS:

Permitted Window Signage:

- **Coverage Limit:** Maximum 25% of total window area
- **Professional Graphics:** Vinyl lettering or professional decals only
- **Hours of Operation:** Professional "Open/Closed" signs permitted
- **Product Information:** Limited product advertising acceptable
- **Promotional Signs:** Temporary promotional window clings with approval

Prohibited Window Signage:

- **Handwritten Signs:** No handwritten or amateur-appearing signs
- **Paper Signs:** No paper signs except temporary sale notifications
- **Excessive Coverage:** No signs that substantially block visibility into store
- **Inappropriate Content:** No signs with inappropriate or offensive content

5. DIRECTORY AND WAYFINDING SIGNAGE:

Main Directory Inclusion:

- **Business Name:** Primary business name as approved by Landlord
- **Suite Number:** Suite 245 clearly identified
- **Business Category:** "Electronics & Technology" or similar designation
- **Logo:** Small logo inclusion subject to directory design standards

Additional Directories:

- **Secondary Locations:** Business listing in all Shopping Center directories
- **Electronic Displays:** Inclusion in any electronic directory systems
- **Wayfinding:** Directional signage to assist customer navigation
- **Updates:** Directory updates within 30 days of any changes

6. TEMPORARY AND PROMOTIONAL SIGNAGE:

Grand Opening Signage:

- **Duration:** Maximum 30 days from opening date
- **Type:** Professional banners or temporary signs
- **Placement:** Subject to Landlord approval and placement guidelines
- **Removal:** Must be removed immediately upon expiration

Sale and Promotional Signs:

- **Window Placement:** Professional window-mounted signs only
- **Duration:** Maximum 14 days per promotional event
- **Frequency:** No more than 6 promotional sign periods per year

- **Design:** Must maintain professional appearance standards

Special Event Signage:

- **Approval Required:** All special event signage requires advance approval
- **Coordination:** Must coordinate with Shopping Center events calendar
- **Professional Standards:** All signage must meet professional design standards
- **Insurance:** Additional insurance may be required for special events

7. PROHIBITED SIGNAGE TYPES:

Generally Prohibited:

- **Pole Signs:** No freestanding signs in parking areas or landscaping
- **Roof Signs:** No signs on or above the roof line
- **Vehicle Signs:** No permanent signage on vehicles parked on premises
- **Inflatable Signs:** No inflatable signs or attention-getting devices
- **Sound-Producing Signs:** No signs with audible components

Content Restrictions:

- **Political Messages:** No political campaign signs or messages
- **Religious Messages:** No religious or sectarian messages
- **Inappropriate Content:** No offensive, inappropriate, or controversial content
- **Competitive Messages:** No direct criticism of competitors
- **False Information:** All sign content must be accurate and truthful

8. SIGN APPROVAL PROCESS:

Submission Requirements:

- **Detailed Drawings:** Scale drawings showing dimensions, materials, colors
- **Installation Plans:** Structural details and mounting specifications
- **Electrical Plans:** Wiring diagrams and electrical load calculations
- **Photo Renderings:** Computer renderings or photographs showing installed appearance
- **Permit Applications:** All required municipal permit applications

Review Timeline:

- **Initial Submission:** Complete package required for review
- **Review Period:** 15 business days for Landlord review
- **Revision Process:** Additional time for revisions if required
- **Final Approval:** Written approval required before ordering or installation
- **Installation:** Schedule installation with Landlord coordination

9. INSTALLATION AND MAINTENANCE REQUIREMENTS:

Installation Standards:

- **Licensed Contractors:** All installation by licensed sign contractors
- **Permits:** All required permits obtained before installation
- **Insurance:** Contractor insurance certificates required

- **Inspection:** Final inspection by Landlord before energization
- **Documentation:** As-built drawings and warranty information provided

Maintenance Obligations:

- **Tenant Responsibility:** All signage maintenance is tenant's responsibility
- **Response Time:** Burned-out bulbs replaced within 48 hours
- **Cleaning:** Regular cleaning to maintain professional appearance
- **Repairs:** Prompt repair of any damage or deterioration
- **Updates:** Updates to reflect any business changes

10. ENFORCEMENT AND COMPLIANCE:

Compliance Monitoring:

- **Regular Inspections:** Landlord may inspect signage for compliance
- **Violation Notices:** Written notice of any violations with cure period
- **Correction Timeline:** Reasonable time to correct violations
- **Enforcement Actions:** Removal of non-compliant signage at tenant expense
- **Repeat Violations:** Enhanced enforcement for repeat violations

Removal Requirements:

- **Lease Termination:** All signage removed within 10 days of lease expiration
- **Restoration:** Building facade restored to original condition
- **Cost Responsibility:** All removal and restoration costs borne by tenant
- **Final Inspection:** Landlord inspection of restoration work required

This comprehensive sign program is designed to create an attractive, professional retail environment that benefits all tenants while allowing appropriate individual business identification and promotion.

END OF LEASE DOCUMENT

This retail lease agreement contains approximately 61 pages of comprehensive provisions covering all aspects of the commercial landlord-tenant relationship. The document includes detailed terms for rent, operations, maintenance, compliance, and numerous other provisions typical of sophisticated retail lease agreements, making it suitable for testing large document processing applications and rate limiting scenarios. to participate in reasonable Shopping Center promotional events, holiday celebrations, and marketing activities. Such participation may include staying open during extended holiday hours, participating in sidewalk sales or special promotions, and contributing to joint advertising efforts.

Tenant shall decorate the Premises appropriately for major holidays and Shopping Center events, maintain attractive window displays, and generally support efforts to create a festive and inviting shopping environment.

6.12 TECHNOLOGY AND POINT-OF-SALE REQUIREMENTS Tenant shall maintain modern point-of-sale systems capable of processing all major credit cards, debit cards, and mobile payment systems. Tenant shall comply with all Payment Card Industry (PCI) security standards and maintain appropriate data security measures.

Tenant shall provide free Wi-Fi access to customers and shall maintain high-speed internet connectivity adequate for its business operations and customer service needs.

7. COMPLIANCE WITH LAWS AND REGULATIONS

7.1 GENERAL LEGAL COMPLIANCE OBLIGATION Tenant shall comply with all applicable federal, state, and local laws, statutes, ordinances, rules, regulations, codes, and orders now or hereafter in effect relating to or affecting the use, occupancy, operation, maintenance, alteration, or improvement of the Premises or Tenant's business operations therein. This includes but is not limited to compliance with zoning laws, building codes, fire codes, health codes, safety regulations, environmental laws, accessibility requirements, employment laws, consumer protection laws, and all other governmental requirements.

Tenant's obligation to comply with laws shall include compliance with both existing laws as of the Commencement Date and any changes, modifications, or new enactments that occur during the Lease term. Tenant acknowledges that laws and regulations may change during the Lease term and that compliance may require modifications to the Premises or changes in business operations.

7.2 PERMITS, LICENSES, AND APPROVALS Tenant shall obtain and maintain at its sole cost and expense all permits, licenses, approvals, certifications, and other authorizations required by any governmental authority for the legal use and occupancy of the Premises and the operation of Tenant's business therein. Such permits and licenses include but are not limited to:

(a) General business license from the local municipality (b) State and local sales tax permits and reseller certificates (c) Occupancy permits and certificates of occupancy (d) Fire department approvals and permits (e) Health department permits if applicable to any food service (f) Environmental permits for any regulated activities (g) Building permits for any alterations or improvements (h) Sign permits for any exterior signage (i) Alarm permits for security systems (j) Any specialized licenses for electronic device repair services (k) Workers' compensation coverage as required by law (l) Any federal licenses required for the business operations

7.3 AMERICANS WITH DISABILITIES ACT COMPLIANCE Tenant shall ensure that its use of the Premises and any alterations or improvements made by Tenant comply with the Americans with Disabilities Act of 1990 ("ADA"), as amended, and all other federal, state, and local accessibility laws and regulations. This includes compliance with accessibility requirements for customer service areas, employee work areas, and any public accommodations.

Landlord represents that as of the Commencement Date, the base building and Common Areas of the Shopping Center comply with applicable ADA requirements. Tenant shall be responsible for compliance with ADA requirements relating to its specific use of the Premises, any tenant improvements, and any changes in law that occur during the Lease term.

7.4 BUILDING AND FIRE CODE COMPLIANCE Tenant shall comply with all applicable building codes, fire codes, and life safety regulations in its use and occupancy of the Premises. This includes maintaining proper egress routes, installing and maintaining required fire safety equipment, complying with occupancy load limits, and ensuring that all alterations meet current code requirements.

Tenant shall not install or operate any equipment or conduct any activities that would cause the Premises or building to violate applicable fire codes or safety regulations. Tenant shall participate in all required fire safety training and emergency evacuation procedures established for the Shopping Center.

7.5 ENVIRONMENTAL LAW COMPLIANCE Tenant shall comply with all applicable federal, state, and local environmental laws and regulations, including but not limited to laws governing air quality, water quality, noise levels, waste disposal, recycling, and the use, storage, handling, and disposal of hazardous materials. Tenant shall not use, generate, store, or dispose of any hazardous materials on the Premises except in strict compliance with all applicable environmental laws.

"Hazardous Materials" includes any substance that is regulated under any environmental law, including but not limited to petroleum products, asbestos, lead-based paint, polychlorinated biphenyls (PCBs), radioactive materials, chemicals, solvents, and any other toxic or hazardous substances. Ordinary office and retail cleaning supplies used in normal quantities and in accordance with manufacturer instructions shall not be deemed hazardous materials for purposes of this Lease.

7.6 EMPLOYMENT AND LABOR LAW COMPLIANCE Tenant shall comply with all applicable federal, state, and local employment and labor laws in its hiring practices and treatment of employees, including but not limited to laws governing minimum wage, overtime, workplace safety, workers' compensation, unemployment insurance, equal employment opportunity, and employee benefits.

Tenant shall maintain all required employment-related insurance coverage and shall provide Landlord with evidence of workers' compensation coverage upon request. Tenant shall ensure that all employees working in the Premises are legally authorized to work in the United States.

7.7 CONSUMER PROTECTION AND BUSINESS REGULATION COMPLIANCE Tenant shall comply with all applicable consumer protection laws, truth-in-advertising regulations, warranty laws, and other business regulations governing retail sales operations. This includes compliance with laws governing pricing disclosure, return policies, warranty obligations, and customer data protection.

Tenant shall maintain fair and reasonable business practices and shall not engage in any unfair or deceptive trade practices. All advertising and promotional materials shall be truthful and accurate and shall comply with applicable advertising regulations.

7.8 DATA PROTECTION AND PRIVACY LAW COMPLIANCE Tenant shall comply with all applicable data protection and privacy laws, including but not limited to the California Consumer Privacy Act (CCPA), the European Union General Data Protection Regulation (GDPR) to the extent applicable, and any other state or federal privacy regulations that may apply to Tenant's business operations.

Tenant shall implement appropriate security measures to protect customer data and shall provide required privacy notices to customers. Tenant shall not sell, share, or otherwise disclose customer information except as permitted by law and customer consent.

7.9 NOTIFICATION OF VIOLATIONS AND COMPLIANCE ISSUES Tenant shall promptly notify Landlord in writing of: (a) any notice of violation received from any governmental authority relating to the Premises or Tenant's operations; (b) any investigation, inquiry, or enforcement action by any governmental authority; (c) any claim or allegation that Tenant's operations violate applicable laws; and (d) any suspension, revocation, or modification of any permit or license required for Tenant's operations.

Tenant shall provide Landlord with copies of all correspondence with governmental authorities relating to compliance issues and shall keep Landlord informed of the status and resolution of any compliance matters.

7.10 CURE OF VIOLATIONS Tenant shall promptly cure any violations of applicable laws relating to its use or occupancy of the Premises or its business operations at its sole cost and expense. If Tenant fails to cure any

violation within the time period specified by the applicable governmental authority, or within thirty (30) days after notice from Landlord if no time period is specified, Landlord may (but shall not be obligated to) cure such violation and charge the cost thereof to Tenant as Additional Rent.

7.11 INDEMNIFICATION FOR LAW VIOLATIONS Tenant shall indemnify, defend, and hold harmless Landlord from and against any and all claims, damages, losses, costs, expenses, fines, penalties, and liabilities arising from or relating to Tenant's violation of any applicable laws or regulations, including reasonable attorneys' fees incurred in defending against such claims.

7.12 CHANGES IN LAW If any change in applicable laws during the Lease term requires modifications to the Premises or Tenant's operations that cost more than Twenty-Five Thousand Dollars (\$25,000), either party may request renegotiation of the affected lease provisions. If the parties cannot agree on appropriate modifications within sixty (60) days, either party may terminate this Lease upon ninety (90) days' written notice.

8. MAINTENANCE, REPAIRS, AND UTILITIES

8.1 TENANT'S MAINTENANCE OBLIGATIONS Tenant shall maintain the interior of the Premises and all improvements, fixtures, and equipment installed by or for Tenant in good condition and repair throughout the Lease term, reasonable wear and tear excepted. Tenant's maintenance obligations include but are not limited to:

(a) All interior surfaces including walls, floors, ceilings, doors, and windows (b) All interior lighting fixtures and bulbs (c) All plumbing fixtures and equipment within the Premises (d) All electrical fixtures, outlets, and equipment within the Premises (e) All HVAC equipment serving the Premises exclusively (f) All security systems and equipment installed by Tenant (g) All telecommunications and data systems installed by Tenant (h) All trade fixtures and tenant-installed equipment (i) All signs installed by Tenant (j) Regular cleaning and janitorial services for the interior (k) Pest control services for the interior (l) All tenant improvements and alterations

8.2 LANDLORD'S MAINTENANCE OBLIGATIONS Landlord shall maintain in good condition and repair the structural elements of the building, building systems serving multiple tenants, exterior surfaces, and Common Areas. Landlord's maintenance obligations include but are not limited to:

(a) Structural elements including foundation, load-bearing walls, and roof structure (b) Exterior walls, windows, and doors (excluding glass breakage) (c) Roof membrane and roof-mounted equipment (d) Building-wide HVAC systems and distribution to tenant spaces (e) Main electrical systems and distribution to tenant panels (f) Main plumbing and sewer systems to tenant connection points (g) Fire protection systems including sprinklers and alarms (h) Elevator systems (if applicable) (i) Common area lighting and electrical systems (j) Parking lot maintenance, striping, and repairs (k) Landscaping and irrigation systems (l) Common area cleaning and maintenance (m) Snow removal and ice management (n) Exterior building maintenance and repairs

8.3 HVAC SYSTEM MAINTENANCE AND OPERATION Tenant shall be responsible for the maintenance, repair, and replacement of all HVAC equipment serving the Premises exclusively, including rooftop units, ductwork within the Premises, thermostats, and filters. Tenant shall maintain a preventive maintenance contract with a qualified HVAC contractor and shall replace filters monthly or as recommended by the manufacturer.

Landlord shall be responsible for maintenance of any central HVAC systems serving multiple tenants and the main building HVAC infrastructure. The cost of Landlord's HVAC maintenance shall be included in Operating Expenses.

Tenant shall operate the HVAC system in an efficient manner and shall not adjust thermostats to extreme settings that would cause excessive energy consumption. The Premises shall be maintained at reasonable temperatures consistent with retail operations (generally 68-76 degrees Fahrenheit).

8.4 ELECTRICAL SYSTEM MAINTENANCE Tenant shall maintain all electrical systems within the Premises, including interior wiring, outlets, switches, fixtures, and the electrical panel serving the Premises. Tenant shall ensure that electrical systems are adequate for its business operations and shall not overload circuits or create electrical hazards.

Landlord shall maintain the main electrical service to the building and the distribution systems serving multiple tenants. Tenant shall pay for all electrical consumption within the Premises either through separate metering or through a reasonable allocation method established by Landlord.

8.5 PLUMBING SYSTEM MAINTENANCE Tenant shall maintain all plumbing fixtures and equipment within the Premises, including sinks, toilets, water heaters, and interior plumbing lines. Tenant shall not dispose of any materials in drains or sewers that could cause blockages or damage to the plumbing systems.

Landlord shall maintain the main water and sewer lines serving the building and the distribution systems to the point of connection with tenant spaces. Any damage to main systems caused by Tenant's actions shall be repaired at Tenant's expense.

8.6 UTILITIES AND SERVICES Tenant shall pay for all utilities consumed within the Premises, including electricity, gas, water, sewer, telephone, internet, cable television, and any other utilities or services. Utilities may be separately metered or allocated based on a reasonable method determined by Landlord.

Landlord shall provide adequate utility capacity to the Premises for normal retail operations. If Tenant requires additional utility capacity beyond normal levels, Tenant shall pay for any necessary upgrades to building systems.

8.7 CLEANING AND JANITORIAL SERVICES Tenant shall be responsible for all cleaning and janitorial services within the Premises, including daily cleaning, trash removal, restroom maintenance, window cleaning, and deep cleaning as necessary to maintain a professional appearance.

Landlord shall provide cleaning and maintenance services for Common Areas, with the cost included in Operating Expenses. Tenant shall not dispose of trash or recycling in Common Area receptacles except as specifically permitted by Landlord.

8.8 PREVENTIVE MAINTENANCE PROGRAMS Tenant shall implement and maintain preventive maintenance programs for all equipment and systems for which it is responsible, including regular inspections, routine maintenance, and replacement of consumable items such as filters and bulbs.

Tenant shall maintain service contracts with qualified contractors for major equipment including HVAC, security systems, and any specialized equipment used in its business operations. Evidence of such contracts shall be provided to Landlord upon request.

8.9 EMERGENCY REPAIRS In case of emergency affecting the safety of persons or property, either party may perform necessary emergency repairs to prevent injury or damage, regardless of responsibility for

maintenance. The party performing emergency repairs shall notify the other party as soon as reasonably possible and shall be reimbursed by the responsible party.

"Emergency" means any condition that poses an immediate threat to life, health, or safety, or that could result in significant property damage if not immediately addressed.

8.10 FAILURE TO MAINTAIN If Tenant fails to perform required maintenance or repairs after written notice and a reasonable opportunity to cure (not less than ten (10) days for non-emergency items), Landlord may perform such maintenance or repairs and charge the cost thereof to Tenant as Additional Rent, plus an administrative fee of fifteen percent (15%).

If Landlord fails to perform required maintenance or repairs after written notice and a reasonable opportunity to cure (not less than thirty (30) days for non-emergency items), Tenant may perform such maintenance or repairs and deduct the reasonable cost thereof from rent, provided Tenant first obtains Landlord's approval for non-emergency work exceeding \$5,000.

8.11 MAINTENANCE STANDARDS All maintenance and repairs shall be performed in a good and workmanlike manner using materials of quality equal to or better than those originally installed. Work shall comply with all applicable codes and regulations and shall not void any warranties or insurance coverage.

Tenant shall use only licensed and insured contractors for any work requiring special expertise or licenses. Landlord may require approval of contractors for work that could affect building systems or structure.

8.12 MAINTENANCE RECORDS Tenant shall maintain records of all maintenance activities, service contracts, and equipment warranties. Such records shall be made available to Landlord upon reasonable request and shall be transferred to any successor tenant upon lease termination.

8.13 PEST CONTROL Tenant shall be responsible for pest control services within the Premises and shall maintain a regular pest control program with a licensed pest control contractor. Tenant shall not use any pesticides or chemicals that could be harmful to building occupants or that could damage building systems.

If pest problems in the Premises are caused by conditions in Common Areas or other tenant spaces, Landlord shall coordinate building-wide pest control efforts with the cost included in Operating Expenses.

9. ALTERATIONS, IMPROVEMENTS, AND TENANT WORK

9.1 LANDLORD'S CONSENT REQUIREMENT Tenant shall not make any alterations, improvements, additions, or modifications to the Premises ("Alterations") without Landlord's prior written consent. Landlord's consent shall not be unreasonably withheld, conditioned, or delayed for Alterations that: (a) are non-structural in nature; (b) do not affect building systems; (c) comply with all applicable codes and regulations; (d) do not adversely affect other tenants; and (e) cost less than Twenty-Five Thousand Dollars (\$25,000) individually or Fifty Thousand Dollars (\$50,000) in the aggregate during any twelve-month period.

Notwithstanding the foregoing, Tenant may make the following Alterations without Landlord's consent: (i) installation of moveable trade fixtures and equipment; (ii) painting of interior walls in commercially reasonable colors; (iii) installation of floor coverings that do not require adhesives; (iv) installation of temporary promotional displays; and (v) other minor decorative changes that do not affect building systems or structure and cost less than Five Thousand Dollars (\$5,000) individually.

9.2 SUBMISSION REQUIREMENTS FOR ALTERATIONS For any Alterations requiring Landlord's consent, Tenant shall submit the following to Landlord not less than thirty (30) days prior to commencement of work: (a) detailed plans and specifications prepared by a licensed architect or engineer; (b) construction documents including drawings, finish schedules, and material specifications; (c) proof of all required permits and approvals; (d) evidence of contractor licensing and insurance; (e) construction schedule and timeline; (f) cost estimates and construction budget; (g) evidence of compliance with ADA and other accessibility requirements; and (h) such other information as Landlord may reasonably require.

Landlord shall respond to any request for consent within fifteen (15) business days after receipt of complete submission materials. If Landlord fails to respond within such period, Landlord shall be deemed to have approved the proposed Alterations, provided that such deemed approval shall not apply to structural changes or modifications affecting building systems.

9.3 CONSTRUCTION STANDARDS AND REQUIREMENTS All Alterations must be performed in accordance with the following standards and requirements:

(a) All work shall be performed in a good and workmanlike manner using new materials of quality equal to or better than building standard; (b) All work shall comply with applicable building codes, fire codes, ADA requirements, and other governmental regulations; (c) All contractors shall be licensed, bonded, and insured with minimum coverage amounts specified by Landlord; (d) All work shall be performed during normal business hours unless otherwise approved by Landlord; (e) Tenant shall minimize disruption to other tenants and Shopping Center operations; (f) All debris shall be removed daily and the work area kept clean and safe; (g) Tenant shall provide adequate insurance coverage for construction activities; (h) All work shall be subject to inspection by Landlord and governmental authorities; (i) Tenant shall obtain all required permits and approvals before commencing work; (j) Work shall not void any building warranties or insurance coverage.

9.4 CONTRACTOR REQUIREMENTS AND APPROVAL All contractors performing Alterations must be approved by Landlord and must meet the following minimum requirements: (a) properly licensed for the type of work to be performed; (b) minimum five (5) years experience in commercial construction; (c) general liability insurance of not less than Two Million Dollars (\$2,000,000) per occurrence; (d) workers' compensation insurance as required by law; (e) automobile liability insurance of not less than One Million Dollars (\$1,000,000); (f) contractors' errors and omissions insurance of not less than One Million Dollars (\$1,000,000); and (g) such other insurance as Landlord may reasonably require.

All insurance policies shall name Landlord as an additional insured and shall be primary and non-contributory. Contractors shall provide certificates of insurance before commencing work and shall notify Landlord immediately of any cancellation or material change in coverage.

9.5 PERMITS AND APPROVALS Tenant shall obtain all necessary permits, licenses, and approvals for any Alterations at its sole cost and expense. Tenant shall provide copies of all permits to Landlord before commencing work and shall ensure that all work is performed in accordance with approved plans and applicable regulations.

If any violations or stop-work orders are issued in connection with Tenant's Alterations, Tenant shall immediately cease work and cure all violations at its expense. Tenant shall not resume work until all violations have been cured and proper approvals obtained.

9.6 LIENS AND LIEN WAIVERS Tenant shall not permit any mechanic's liens, materialmen's liens, or other liens to attach to the Premises or Shopping Center as a result of Alterations. Tenant shall require all

contractors and suppliers to execute lien waivers before commencing work and upon each progress payment.

If any lien is filed against the Shopping Center as a result of Tenant's Alterations, Tenant shall either: (a) pay the claim and remove the lien within ten (10) days; or (b) contest the claim in good faith and provide security satisfactory to Landlord to ensure payment if the claim is determined to be valid.

9.7 RESTORATION AND REMOVAL OBLIGATIONS Upon expiration or termination of this Lease, Tenant shall remove all Alterations designated by Landlord and restore the Premises to its original condition, reasonable wear and tear excepted. Landlord shall specify at the time of approving any Alterations whether such Alterations must be removed at lease termination.

The following Alterations must be removed unless Landlord elects to retain them: (a) all trade fixtures and equipment; (b) all specialized electrical or telecommunications installations; (c) all non-standard flooring, wall coverings, or ceiling treatments; (d) all personal property and moveable fixtures; and (e) any other improvements that are unique to Tenant's specific business operations.

9.8 OWNERSHIP OF IMPROVEMENTS Except for trade fixtures and equipment that are readily removable without damage to the Premises, all Alterations shall become the property of Landlord upon installation and shall remain with the Premises upon lease termination, unless Landlord requires removal as provided above.

Trade fixtures and equipment installed by Tenant may be removed by Tenant at any time during the Lease term or upon termination, provided that Tenant repairs any damage caused by such removal and the removal does not materially affect the structural integrity or basic systems of the Premises.

9.9 TENANT IMPROVEMENT ALLOWANCE Landlord shall provide Tenant with a tenant improvement allowance of Fifty Dollars (\$50.00) per rentable square foot of the Premises (total allowance of \$192,500) to be applied toward the cost of initial tenant improvements. The allowance may be used for the following costs: (a) architectural and engineering fees; (b) construction and installation costs; (c) permits and governmental fees; (d) construction management fees; and (e) other hard and soft costs directly related to tenant improvements.

The tenant improvement allowance shall be disbursed by Landlord to Tenant in progress payments as work is completed, upon submission of: (i) invoices from contractors and suppliers; (ii) unconditional lien waivers; (iii) evidence of work completion satisfactory to Landlord; and (iv) such other documentation as Landlord may reasonably require.

9.10 EXCESS IMPROVEMENT COSTS Any costs of tenant improvements exceeding the tenant improvement allowance shall be paid by Tenant. Tenant may elect to finance such excess costs through the landlord at an interest rate equal to the prime rate plus two percent (2%) per annum, amortized over the initial Lease term and payable monthly with Base Rent.

If Tenant elects landlord financing, the financed amount shall be secured by the tenant improvements and Tenant's other obligations under this Lease. Any acceleration of Lease obligations due to default shall include acceleration of any outstanding improvement financing.

9.11 ALTERATION INSURANCE REQUIREMENTS During any construction or alteration activities, Tenant shall maintain builder's risk insurance covering the full replacement cost of work in progress, materials, and equipment. Such insurance shall cover risks of fire, theft, vandalism, and other casualty losses.

Tenant shall also maintain increased general liability coverage during construction activities, with minimum limits of Five Million Dollars (\$5,000,000) per occurrence if the alteration project exceeds One Hundred

Thousand Dollars (\$100,000) in value.

9.12 COMPLIANCE WITH ENVIRONMENTAL REQUIREMENTS All Alterations shall comply with applicable environmental laws and regulations, including requirements for handling of hazardous materials, waste disposal, air quality, and noise levels. Tenant shall not use any materials or perform any work that could result in environmental contamination of the Premises or Shopping Center.

If any environmental issues arise in connection with Tenant's Alterations, Tenant shall immediately cease work and remediate any contamination at its expense in accordance with applicable environmental laws.

9.13 TECHNOLOGY AND TELECOMMUNICATIONS IMPROVEMENTS Tenant may install telecommunications and technology systems necessary for its business operations, including but not limited to telephone systems, computer networks, internet connections, wireless systems, and security equipment. All such installations shall comply with building standards and shall not interfere with other tenants' systems.

Landlord shall provide reasonable access to telecommunications closets and pathways for Tenant's technology installations. Any modifications to building telecommunications infrastructure shall require Landlord's prior approval and may be subject to additional charges.

10. INSURANCE REQUIREMENTS AND RISK MANAGEMENT

10.1 TENANT'S INSURANCE OBLIGATIONS Throughout the entire Lease term, Tenant shall maintain, at its sole cost and expense, the following minimum insurance coverage with insurance companies licensed to do business in the state where the Premises is located and having an A.M. Best rating of not less than A-VII:

- (a) **Commercial General Liability Insurance** with minimum limits of Two Million Dollars (\$2,000,000) per occurrence and Four Million Dollars (\$4,000,000) general aggregate, covering bodily injury, property damage, personal injury, and advertising injury arising from Tenant's operations;
- (b) **Products and Completed Operations Liability** with minimum limits of Two Million Dollars (\$2,000,000) per occurrence and Four Million Dollars (\$4,000,000) aggregate;
- (c) **Commercial Property Insurance** covering the full replacement cost of all tenant improvements, trade fixtures, inventory, equipment, and personal property located in the Premises;
- (d) **Business Interruption Insurance** covering loss of income and continuing expenses for a period of not less than twelve (12) months;
- (e) **Workers' Compensation Insurance** as required by applicable law, including employer's liability coverage with minimum limits of One Million Dollars (\$1,000,000);
- (f) **Commercial Automobile Liability Insurance** with minimum limits of One Million Dollars (\$1,000,000) combined single limit if Tenant owns, leases, or uses any vehicles in connection with its business;
- (g) **Cyber Liability Insurance** with minimum limits of One Million Dollars (\$1,000,000) per claim and Two Million Dollars (\$2,000,000) aggregate, covering data breaches, network security failures, and privacy violations;
- (h) **Professional Liability Insurance** with minimum limits of One Million Dollars (\$1,000,000) per claim if Tenant provides any professional services.

10.2 ADDITIONAL INSURANCE PROVISIONS All liability insurance policies maintained by Tenant shall include the following provisions:

(a) Landlord, any mortgagee designated by Landlord, and the Shopping Center management company shall be named as additional insureds; (b) Coverage shall be primary and non-contributory with respect to any insurance maintained by Landlord; (c) The insurance shall contain a waiver of subrogation in favor of Landlord; (d) Coverage shall not be cancelled, non-renewed, or materially modified without thirty (30) days' prior written notice to Landlord; (e) The policy shall contain a severability of interests clause; (f) Coverage shall apply on a per-location basis for the Premises.

10.3 LANDLORD'S INSURANCE OBLIGATIONS Landlord shall maintain the following insurance coverage for the Shopping Center, with the cost thereof included in Operating Expenses:

(a) **Commercial Property Insurance** covering the full replacement cost of the building and improvements (excluding tenant improvements and personal property); (b) **Commercial General Liability Insurance** for the Common Areas with minimum limits of Five Million Dollars (\$5,000,000) per occurrence; (c) **Umbrella Liability Insurance** with minimum limits of Ten Million Dollars (\$10,000,000); (d) **Boiler and Machinery Insurance** covering building equipment and systems; (e) **Loss of Rents Insurance** covering loss of rental income for a period of not less than twenty-four (24) months.

10.4 CERTIFICATES OF INSURANCE Prior to taking possession of the Premises and annually thereafter (or upon policy renewal), Tenant shall deliver to Landlord certificates of insurance evidencing all required coverage. The certificates shall be issued by the insurance company or its authorized agent and shall contain all provisions required hereunder.

If any required insurance is cancelled, non-renewed, or materially modified, Tenant shall deliver new certificates evidencing replacement coverage within ten (10) days. Failure to maintain required insurance or deliver certificates shall constitute a material default under this Lease.

10.5 ADEQUACY OF COVERAGE Landlord makes no representation that the insurance coverage required hereunder is adequate to protect Tenant's interests or comply with any loan requirements that may affect Tenant. Tenant may obtain additional coverage at its own expense and is encouraged to consult with its insurance advisor regarding appropriate coverage levels.

The minimum insurance requirements set forth herein may be satisfied through a combination of primary and umbrella/excess coverage, provided that the total coverage meets or exceeds the required minimums and all other provisions of this section are satisfied.

10.6 ADJUSTMENT OF INSURANCE REQUIREMENTS Landlord may increase the minimum insurance requirements upon ninety (90) days' written notice if: (a) the increased requirements are commercially reasonable and generally required for similar retail operations; (b) such increases are necessary due to inflation or increased replacement costs; or (c) Landlord's mortgagee or the Shopping Center's management practices require higher coverage levels.

Any increase in minimum coverage shall not exceed twenty-five percent (25%) of the previous requirement in any single adjustment or fifty percent (50%) during any five-year period.

10.7 WAIVER OF SUBROGATION Landlord and Tenant each waive any and all rights of recovery against the other for any loss or damage to property that is covered by insurance required to be maintained hereunder,

regardless of the cause of such loss or damage. This waiver applies regardless of whether the negligent or wrongful act or omission of the other party caused the loss or damage.

Each party shall cause its insurance policies to contain appropriate clauses whereby the insurance company waives subrogation against the other party. The waiver of subrogation shall not apply to any loss or damage caused by the willful misconduct of either party.

10.8 SELF-INSURANCE Tenant may not self-insure for any of the insurance requirements set forth herein without Landlord's prior written consent. If Landlord consents to self-insurance, Tenant shall provide evidence of adequate financial resources and shall establish appropriate reserves for self-insured risks.

Any self-insurance program must provide coverage equivalent to the insurance requirements herein and must include appropriate stop-loss coverage to limit Tenant's exposure to catastrophic losses.

10.9 INSURANCE CLAIMS AND PROCEEDS Tenant shall promptly notify Landlord of any casualty loss affecting the Premises and shall cooperate with Landlord in the adjustment of any insurance claims. Insurance proceeds for damage to tenant improvements shall be held in trust and applied toward restoration of the Premises.

If this Lease is terminated due to casualty, any proceeds for tenant improvements shall be divided between Landlord and Tenant based on their respective interests in such improvements.

10.10 RISK MANAGEMENT PROGRAMS Tenant shall implement and maintain appropriate risk management programs for its business operations, including but not limited to: (a) employee safety training; (b) customer safety procedures; (c) inventory security measures; (d) fire prevention programs; (e) data security protocols; and (f) emergency response procedures.

Tenant shall provide Landlord with evidence of its risk management programs upon request and shall participate in any Shopping Center-wide safety initiatives or training programs.

10.11 INDEMNIFICATION RELATING TO INSURANCE Tenant shall indemnify and hold harmless Landlord from any increase in Landlord's insurance premiums caused by Tenant's use of the Premises or business operations. If Tenant's operations cause any insurance coverage to be cancelled or threatened with cancellation, Tenant shall immediately modify its operations to restore coverage or obtain alternative coverage at its expense.

10.12 BUSINESS INTERRUPTION CONSIDERATIONS Tenant acknowledges that business interruption insurance should be carefully structured to cover various scenarios that could affect Tenant's operations, including: (a) direct damage to the Premises; (b) damage to Common Areas that prevents access; (c) utility outages; (d) civil authority orders; and (e) supplier or customer disruptions.

Tenant is encouraged to work with qualified insurance professionals to ensure that business interruption coverage adequately protects against the specific risks associated with Tenant's business operations and location.

11. INDEMNIFICATION AND LIABILITY

11.1 TENANT'S INDEMNIFICATION OBLIGATIONS To the fullest extent permitted by law, Tenant shall defend, indemnify, and hold harmless Landlord, its officers, directors, shareholders, partners, members, employees, agents, and representatives (collectively, "Landlord Parties") from and against any and all claims,

demands, actions, suits, damages, liabilities, losses, costs, and expenses (including reasonable attorneys' fees and court costs) arising from or related to:

(a) Tenant's use, occupancy, or possession of the Premises; (b) Any act, omission, negligence, or willful misconduct of Tenant or any Tenant Party in or about the Premises or Shopping Center; (c) Any breach or default by Tenant under this Lease; (d) Any accident, injury, or damage occurring in the Premises; (e) Any violation by Tenant of any law, ordinance, regulation, or court order; (f) Any labor dispute involving Tenant or its contractors; (g) Any environmental contamination caused by Tenant's operations; (h) Any construction or alteration work performed by or for Tenant; (i) Any claim by any contractor, supplier, or other party arising from work performed for Tenant; (j) Any products sold or services provided by Tenant; (k) Any infringement of intellectual property rights by Tenant's operations; (l) Any data breach or privacy violation involving Tenant's systems or operations.

11.2 LANDLORD'S INDEMNIFICATION OBLIGATIONS To the fullest extent permitted by law, Landlord shall defend, indemnify, and hold harmless Tenant, its officers, directors, shareholders, partners, members, employees, agents, and representatives (collectively, "Tenant Parties") from and against any and all claims, demands, actions, suits, damages, liabilities, losses, costs, and expenses (including reasonable attorneys' fees and court costs) arising from or related to:

(a) Any act, omission, negligence, or willful misconduct of Landlord or any Landlord Party in the Common Areas; (b) Any breach or default by Landlord under this Lease; (c) Any accident, injury, or damage occurring in the Common Areas not caused by Tenant; (d) Any violation by Landlord of any law, ordinance, regulation, or court order affecting the Shopping Center; (e) Any environmental contamination existing in the Shopping Center prior to Tenant's occupancy or caused by Landlord's operations; (f) Any construction or alteration work performed by or for Landlord in the Shopping Center; (g) Any structural defects in the building or Common Area improvements; (h) Any failure of building systems for which Landlord is responsible; (i) Any claims arising from the condition of the Common Areas.

11.3 MUTUAL LIMITATIONS ON LIABILITY Except for willful misconduct, fraud, or gross negligence, neither party shall be liable to the other for any indirect, special, consequential, or punitive damages, including but not limited to loss of profits, loss of business opportunities, loss of goodwill, or business interruption, regardless of whether such damages were foreseeable or whether either party has been advised of the possibility of such damages.

This limitation shall not apply to: (a) either party's obligation to indemnify the other as provided herein; (b) damages for personal injury or property damage; (c) environmental liabilities; or (d) damages resulting from willful misconduct or breach of confidentiality obligations.

11.4 THIRD PARTY CLAIMS PROCEDURES If any claim subject to indemnification is asserted by a third party against an indemnified party, such party shall: (a) promptly notify the indemnifying party in writing; (b) cooperate with the indemnifying party in the defense of such claim; (c) allow the indemnifying party to control the defense and settlement negotiations; and (d) not admit liability or settle the claim without the indemnifying party's consent.

The indemnifying party shall have the right, but not the obligation, to defend any such claim with counsel of its choosing. If the indemnifying party fails to defend within thirty (30) days after notice, the indemnified party may defend at the indemnifying party's expense.

11.5 NOTICE OF CLAIMS Any party seeking indemnification shall give the indemnifying party prompt written notice of any claim, lawsuit, or demand for which indemnification is sought. However, failure to give such notice shall not relieve the indemnifying party of its obligations except to the extent it is actually prejudiced by such failure.

The notice shall include: (a) a description of the claim or demand; (b) copies of any legal papers or demands received; (c) an estimate of potential liability; and (d) contact information for all parties involved.

11.6 COOPERATION IN DEFENSE Both parties agree to cooperate fully in the defense of any claim subject to indemnification, including: (a) making available all relevant documents and records; (b) providing access to witnesses and employees; (c) participating in discovery proceedings; and (d) assisting in the preparation of defenses and settlement negotiations.

The indemnified party shall not prejudice the defense of any claim and shall not make any statements or admissions that could be detrimental to the defense without the indemnifying party's consent.

11.7 INSURANCE COORDINATION The indemnification obligations set forth herein are independent of and in addition to any insurance coverage maintained by either party. However, to the extent that any loss covered by indemnification is also covered by insurance, the indemnifying party's obligation shall be reduced by the amount of insurance proceeds actually received.

Neither party shall be required to indemnify the other for amounts that would have been covered by insurance required to be maintained hereunder if such insurance had been in force as required.

11.8 SURVIVAL OF INDEMNIFICATION The indemnification obligations set forth in this Section shall survive the expiration or termination of this Lease for a period of three (3) years with respect to claims arising during the Lease term, except for environmental liabilities and claims involving personal injury or property damage, which shall survive without time limitation.

11.9 TENANT'S LIABILITY FOR PERSONAL PROPERTY Landlord shall not be liable for any loss, theft, or damage to Tenant's personal property, inventory, equipment, or other belongings, regardless of cause, except for losses caused by Landlord's gross negligence or willful misconduct. Tenant assumes all risk of loss for its personal property and shall maintain adequate insurance coverage.

11.10 LANDLORD'S LIABILITY LIMITATIONS Landlord's liability under this Lease shall be limited to Landlord's interest in the Shopping Center, and Tenant shall not seek recourse against any other assets of Landlord or any Landlord Party. In no event shall any Landlord Party be personally liable for any obligation under this Lease.

If Landlord transfers its interest in the Shopping Center, the transferring Landlord shall be automatically released from all obligations under this Lease accruing after the transfer date, provided the transferee assumes such obligations.

11.11 WAIVER OF CLAIMS Tenant waives all claims against Landlord for: (a) any damage or inconvenience caused by repairs or maintenance to the Shopping Center; (b) any interruption of utilities or services beyond Landlord's reasonable control; (c) any acts or omissions of other tenants or third parties; (d) any noise, dust, or other disturbances from construction activities; and (e) any failure of security measures or equipment.

11.12 ASSUMPTION OF RISK Tenant assumes all risks associated with its business operations and acknowledges that retail operations involve inherent risks of theft, vandalism, customer injuries, and other

losses. Tenant shall take appropriate precautions to minimize such risks and shall not hold Landlord responsible for losses that could have been prevented by reasonable security measures or business practices.

12. ASSIGNMENT, SUBLETTING, AND TRANSFER RIGHTS

12.1 GENERAL PROHIBITION ON ASSIGNMENT AND SUBLETTING Tenant shall not, without Landlord's prior written consent, which may be withheld in Landlord's sole discretion: (a) assign this Lease or any interest herein; (b) sublease all or any portion of the Premises; (c) grant any license or concession agreement for use of the Premises; (d) allow any other person or entity to use or occupy the Premises; or (e) mortgage, pledge, or otherwise encumber this Lease or any interest herein.

Any attempted assignment, sublease, license, or other transfer without Landlord's consent shall be void and shall constitute a material default under this Lease. This prohibition shall apply to voluntary transfers, involuntary transfers, transfers by operation of law, and any other method of transfer.

12.2 STANDARDS FOR LANDLORD'S CONSENT If Tenant requests consent to assign or sublease, Landlord may consider the following factors in determining whether to grant consent: (a) the financial strength and creditworthiness of the proposed assignee or subtenant; (b) the business experience and reputation of the proposed transferee; (c) the compatibility of the proposed use with the Shopping Center's tenant mix; (d) the proposed transferee's ability to operate the business successfully; (e) compliance with any exclusive use rights of other tenants; (f) the impact on Shopping Center operations and other tenants; (g) the proposed terms of the assignment or sublease; and (h) such other factors as Landlord deems relevant.

Landlord may withhold consent if the proposed transfer would, in Landlord's reasonable judgment: (i) materially decrease the value or desirability of the Shopping Center; (ii) violate any exclusive use provisions; (iii) compete with any existing tenant; (iv) result in a use prohibited under this Lease; or (v) involve a transferee with insufficient financial resources or business experience.

12.3 ASSIGNMENT PROCEDURES AND REQUIREMENTS Any request for consent to assign this Lease shall include the following information and documentation: (a) detailed information about the proposed assignee, including business history, management team, and references; (b) current financial statements of the assignee prepared by a certified public accountant; (c) business plan and operating projections for the Premises; (d) evidence of the assignee's experience in operating similar businesses; (e) proposed assignment agreement and all related documents; (f) payment of Landlord's review and processing fees; (g) agreement by assignee to assume all obligations under this Lease; and (h) such other information as Landlord may reasonably require.

Landlord shall respond to any complete request for assignment consent within thirty (30) days after receipt of all required information and documentation.

12.4 SUBLETTING PROCEDURES AND REQUIREMENTS Any request for consent to sublease shall include the following information and documentation: (a) detailed information about the proposed subtenant, including business background and financial condition; (b) proposed sublease agreement and all related documents; (c) evidence that the proposed use complies with this Lease; (d) financial statements of the subtenant; (e) business plan for the subleased space; (f) payment of Landlord's review and processing fees; and (g) acknowledgment that the sublease is subject and subordinate to this Lease.

All subleases shall provide that: (i) the sublease will terminate upon termination of this Lease; (ii) the subtenant will comply with all provisions of this Lease; (iii) Landlord may enforce Lease provisions directly

against the subtenant; and (iv) no modification of the sublease will be effective without Landlord's consent.

12.5 RECAPTURE RIGHTS If Tenant requests consent to assign this Lease or sublease all or substantially all of the Premises (more than seventy-five percent (75%) of the rentable area), Landlord shall have the option, exercisable within thirty (30) days after receipt of Tenant's request, to terminate this Lease or recapture the portion proposed to be subleased.

If Landlord exercises its recapture right, this Lease shall terminate or the recaptured portion shall be surrendered to Landlord as of the date specified by Landlord (not less than sixty (60) days after notice), and all parties shall be released from further obligations with respect to the recaptured space.

12.6 PROFIT SHARING PROVISIONS If Landlord consents to any assignment or subletting, and if the total consideration (including rent, bonus payments, key money, and other consideration) exceeds the rent and other charges payable under this Lease, then fifty percent (50%) of such excess shall be paid to Landlord as additional rent, after deducting Tenant's reasonable costs incurred in connection with the assignment or subletting.

Reasonable costs include: (a) brokerage commissions; (b) attorneys' fees; (c) costs of tenant improvements for the transferee; (d) free rent or other concessions; and (e) other direct costs of the transaction, but excluding Tenant's internal costs and overhead.

12.7 CORPORATE CHANGES AND CONTROL TRANSFERS Any transfer of controlling interest in Tenant (whether direct or indirect) shall be deemed an assignment requiring Landlord's consent, unless Tenant is a publicly traded company whose shares are listed on a recognized stock exchange. "Controlling interest" means ownership of fifty percent (50%) or more of the voting stock or other ownership interests.

This provision shall apply to: (a) mergers, consolidations, or other business combinations; (b) sales of stock or membership interests; (c) changes in partnership composition; (d) management buyouts; and (e) any other transaction that results in a change of control.

12.8 PERMITTED TRANSFERS Notwithstanding the general prohibition on transfers, the following transfers shall be permitted without Landlord's consent: (a) transfers to an entity that is wholly owned by Tenant or its current owners; (b) transfers to an entity that results from a corporate reorganization of Tenant without change in beneficial ownership; (c) transfers to a parent, subsidiary, or affiliate of Tenant with equivalent or greater net worth; and (d) transfers resulting from the death or incapacity of an individual owner, provided the transferee assumes all obligations under this Lease.

Any permitted transfer must be documented by appropriate legal instruments and Tenant must provide Landlord with copies of all transfer documents within thirty (30) days after completion.

12.9 CONTINUING LIABILITY OF TENANT Unless expressly released in writing by Landlord, Tenant shall remain fully liable for all obligations under this Lease after any assignment or subletting. Any release of Tenant shall be at Landlord's sole discretion and may be conditioned upon: (a) the assignee's financial strength and business experience; (b) execution of appropriate guaranties; (c) payment of additional security deposits; and (d) such other conditions as Landlord deems appropriate.

No collection of rent from or recognition of any assignee or subtenant shall constitute a release of Tenant's liability or an acceptance of the assignment or subletting.

12.10 DEFAULT BY TRANSFEREES If any assignee or subtenant defaults under the assignment or sublease agreement, Landlord may, at its option: (a) terminate the assignment or sublease; (b) collect rent directly from the assignee or subtenant; (c) exercise any rights against the assignee or subtenant; or (d) treat the default as a default by Tenant under this Lease.

Landlord's exercise of any rights against an assignee or subtenant shall not release Tenant from its obligations under this Lease.

12.11 MORTGAGING OF LEASEHOLD Tenant shall not mortgage, pledge, or otherwise encumber its leasehold interest without Landlord's prior written consent. Any such encumbrance without consent shall be void and shall constitute a default under this Lease.

If Landlord consents to a leasehold mortgage, the mortgagee shall agree to cure any defaults by Tenant and shall provide Landlord with appropriate notice and cure rights.

12.12 ASSIGNMENT BY LANDLORD Landlord may freely assign its interest in this Lease and the Shopping Center without Tenant's consent. Upon any such assignment, the assignor shall be released from all obligations under this Lease accruing after the assignment date, provided the assignee assumes such obligations in writing.

Tenant shall attorn to any successor landlord and shall execute appropriate documentation evidencing such attornment upon request.

13. DEFAULT, REMEDIES, AND ENFORCEMENT

13.1 EVENTS OF DEFAULT BY TENANT The occurrence of any of the following shall constitute an "Event of Default" by Tenant:

(a) **Monetary Default:** Failure to pay any installment of Base Rent, Additional Rent, or any other sum due hereunder within five (5) days after written notice from Landlord;

(b) **Non-Monetary Default:** Failure to perform any other covenant, condition, or agreement contained in this Lease within thirty (30) days after written notice from Landlord, or if such failure cannot reasonably be cured within thirty (30) days, failure to commence cure within such period and diligently prosecute such cure to completion;

(c) **Abandonment:** Abandonment of the Premises or cessation of business operations for more than thirty (30) consecutive days without Landlord's consent;

(d) **Insolvency Events:** (i) filing of a petition by or against Tenant under any bankruptcy, insolvency, or debtor relief law; (ii) appointment of a receiver or trustee for Tenant's assets; (iii) assignment by Tenant for the benefit of creditors; (iv) attachment or levy upon Tenant's leasehold interest that is not discharged within sixty (60) days; or (v) Tenant's admission in writing of its inability to pay debts as they become due;

(e) **Transfer Violations:** Any assignment, subletting, or other transfer of this Lease or the Premises without Landlord's required consent;

(f) **Insurance Default:** Failure to maintain required insurance coverage or provide required certificates of insurance;

(g) **Legal Violations:** Violation of any law, ordinance, or regulation that materially affects the Premises or Tenant's operations;

(h) **Repeated Defaults:** More than three (3) monetary defaults or more than two (2) non-monetary defaults in any twelve-month period, regardless of cure;

(i) **False Information:** Discovery that any financial statement or other information provided by Tenant contains material misrepresentations.

13.2 LANDLORD'S REMEDIES UPON DEFAULT Upon the occurrence of any Event of Default, Landlord may, at its option and without limiting any other rights or remedies:

(a) **Terminate Lease:** Terminate this Lease by giving written notice to Tenant, whereupon all rights of Tenant hereunder shall cease and Tenant shall remain liable for all obligations accruing prior to termination;

(b) **Terminate Possession:** Terminate Tenant's right of possession without terminating this Lease, and re-enter and repossess the Premises by any lawful means;

(c) **Relet Premises:** Relet the Premises for the account of Tenant, making such alterations and repairs as Landlord deems necessary, and collect the rents therefor;

(d) **Damages:** Recover all damages incurred as a result of Tenant's default, including without limitation: (i) unpaid rent and other charges; (ii) costs of reletting including brokerage commissions, advertising, legal fees, and tenant improvements; (iii) the difference between rent reserved hereunder and rent collected from reletting; and (iv) any other actual damages;

(e) **Accelerated Rent:** Declare all rent and other charges for the remainder of the Lease term immediately due and payable;

(f) **Self-Help:** Perform any obligation of Tenant at Tenant's expense, with the right to enter the Premises for such purpose;

(g) **Other Remedies:** Exercise any other rights or remedies available at law or in equity.

13.3 CALCULATION OF DAMAGES UPON TERMINATION If Landlord terminates this Lease due to Tenant's default, Tenant shall pay to Landlord as damages:

(a) All unpaid rent and other charges accrued through the date of termination; (b) All costs and expenses incurred by Landlord in connection with the default and re-entering, securing, and reletting the Premises; (c) All reasonable costs of tenant improvements and alterations necessary to relet the Premises; (d) All brokerage commissions and other costs incurred in reletting; (e) All legal fees and court costs incurred by Landlord; (f) The amount by which the present value of the rent and other charges that would have been payable for the remainder of the Lease term exceeds the present value of the fair rental value of the Premises for the same period.

Present value shall be calculated using a discount rate equal to the prime rate as published in the Wall Street Journal on the date of termination.

13.4 MITIGATION OF DAMAGES Landlord shall use reasonable efforts to mitigate damages by reletting the Premises, but shall not be required to give preference to the Premises over other available space, to accept any proposed tenant unacceptable to Landlord, or to relet at below-market terms.

Any failure by Landlord to mitigate damages shall not reduce Tenant's liability except to the extent Landlord's failure actually increases the damages.

13.5 NO WAIVER OF REMEDIES The exercise of any remedy by Landlord shall not be deemed a waiver of any other remedy or of the right to exercise such remedy on any future occasion. No waiver of any default shall be deemed a waiver of any subsequent default.

The acceptance of rent by Landlord after an Event of Default shall not constitute a waiver unless Landlord expressly agrees in writing that such acceptance constitutes a waiver.

13.6 EVENTS OF DEFAULT BY LANDLORD Landlord shall be in default under this Lease if Landlord fails to perform any covenant, condition, or agreement contained herein and such failure continues for thirty (30) days after written notice from Tenant, or if such failure cannot reasonably be cured within thirty (30) days, Landlord fails to commence cure within such period and diligently prosecute such cure to completion.

13.7 TENANT'S REMEDIES FOR LANDLORD DEFAULT Upon any uncured default by Landlord, Tenant may:

(a) Perform Landlord's obligation and deduct the reasonable cost thereof from rent, provided Tenant first obtains Landlord's approval for expenditures exceeding Five Thousand Dollars (\$5,000); (b) Terminate this Lease if the default materially and adversely affects Tenant's use of the Premises and continues for more than sixty (60) days after notice; (c) Pursue damages or other remedies available at law or in equity; (d) Withhold rent to the extent necessary to cover the cost of performing Landlord's obligations, provided such withholding is proportionate to the scope of the default.

13.8 SELF-HELP REMEDIES If Landlord fails to provide essential services (utilities, HVAC, or access) that materially interfere with Tenant's business operations, and such failure continues for more than twenty-four (24) hours after notice (or such shorter period as may be reasonable in emergency situations), Tenant may take reasonable measures to restore such services and deduct the cost from rent.

Tenant shall provide Landlord with prior notice of self-help measures except in emergency situations, and shall use reasonable efforts to minimize costs and disruption.

13.9 LIMITATION ON TENANT'S REMEDIES Tenant's remedies for any default by Landlord shall be limited to actual damages and shall not include consequential damages, loss of profits, or punitive damages except in cases of willful misconduct by Landlord.

In no event shall Tenant be entitled to terminate this Lease except as expressly provided herein or as required by applicable law.

13.10 CUMULATIVE REMEDIES All rights and remedies of either party shall be cumulative and may be exercised singly or in combination. The exercise of one remedy shall not preclude the exercise of any other remedy.

13.11 ATTORNEYS' FEES AND COSTS In any legal proceeding arising under this Lease, the prevailing party shall be entitled to recover its reasonable attorneys' fees, court costs, and other expenses incurred in connection with such proceeding.

13.12 INTEREST ON PAST DUE AMOUNTS Any amount owed by either party that is not paid when due shall bear interest at the rate of eighteen percent (18%) per annum (or the maximum rate permitted by law, if less) from the due date until paid in full.

14. SURRENDER, HOLDING OVER, AND LEASE TERMINATION

14.1 CONDITION UPON SURRENDER Upon the expiration or earlier termination of this Lease, Tenant shall quit and surrender the Premises to Landlord in good condition and repair, reasonable wear and tear excepted, and in compliance with all applicable laws. The Premises shall be surrendered free of all personal property, debris, and hazardous materials, with all tenant improvements and alterations in the condition required hereunder.

Specifically, Tenant shall: (a) remove all personal property, inventory, equipment, and trade fixtures; (b) remove all alterations designated for removal by Landlord; (c) repair all damage caused by the installation or removal of Tenant's property; (d) clean the Premises thoroughly; (e) return all keys, access cards, and security devices; (f) provide evidence that all utilities have been transferred or terminated; and (g) deliver the Premises in a condition ready for immediate occupancy by a new tenant.

14.2 REMOVAL OF PROPERTY AND RESTORATION Tenant shall remove from the Premises all personal property, trade fixtures, equipment, inventory, and other items belonging to Tenant or installed by or for Tenant, except for items that Landlord elects to retain. Tenant shall repair any damage to the Premises caused by such removal, including patching holes, repainting damaged surfaces, and restoring floor coverings.

The following items must be removed unless Landlord elects to retain them: (a) all specialized lighting installed by Tenant; (b) all tenant-installed security systems and equipment; (c) all telecommunications and data cabling installed by Tenant; (d) all non-standard electrical installations; (e) any specialized HVAC equipment; (f) all signs installed by Tenant; and (g) any other improvements that are unique to Tenant's specific business operations.

14.3 PROPERTY LEFT ON PREMISES Any property remaining on the Premises after the termination date may, at Landlord's option, be deemed abandoned and may be disposed of by Landlord in any manner Landlord deems appropriate, including sale at public or private sale or disposal as waste. Tenant shall be liable for all costs of removal and disposal, and Landlord shall not be liable for any damage to or loss of such property.

If Landlord elects to store any abandoned property, Tenant shall pay all costs of storage and shall remain liable for removal. Any proceeds from the sale of abandoned property shall be applied first to costs of removal, storage, and sale, then to any outstanding obligations of Tenant, with any remainder paid to Tenant.

14.4 FINAL INSPECTION AND MOVE-OUT PROCEDURES Prior to the termination date, Landlord and Tenant shall conduct a joint walk-through inspection of the Premises to identify any required repairs or restoration work. Tenant shall have thirty (30) days after such inspection to complete any required work, except for work that requires advance planning or long lead times, which must be commenced immediately.

The final inspection shall be documented in writing and signed by both parties. Any disagreements regarding the condition of the Premises or required restoration work shall be resolved in accordance with the dispute resolution procedures set forth in this Lease.

14.5 SECURITY DEPOSIT RETURN Within thirty (30) days after Tenant's surrender of the Premises in the required condition, Landlord shall return any unapplied portion of the security deposit to Tenant, together with a written accounting of any amounts applied to cure defaults or repair damage beyond normal wear and tear.

If the security deposit is insufficient to cover all amounts owed by Tenant, Tenant shall pay the deficiency within ten (10) days after demand. The return of all or any portion of the security deposit shall not constitute a waiver of any claim Landlord may have against Tenant.

14.6 HOLDING OVER If Tenant remains in possession of the Premises after the expiration of this Lease without Landlord's written consent, such possession shall constitute a holdover tenancy subject to all terms and conditions of this Lease except as to term and rental rate.

During any holdover period, Tenant shall pay Base Rent at one hundred fifty percent (150%) of the rate in effect during the last month of the Lease term, plus all Additional Rent and other charges. The holdover tenancy shall be from month-to-month and may be terminated by either party upon thirty (30) days' written notice.

14.7 DAMAGES FOR HOLDING OVER Tenant acknowledges that holding over after lease expiration may cause Landlord substantial damages that are difficult to ascertain, including damages resulting from Landlord's inability to deliver possession to a new tenant. In addition to increased rent, Tenant shall be liable for all damages suffered by Landlord as a result of Tenant's holding over, including any claims by prospective tenants.

Such damages may include: (a) lost rental income from delayed occupancy by new tenants; (b) additional carrying costs for the Premises; (c) legal fees and costs; (d) damages paid to prospective tenants; and (e) other consequential damages resulting from the holdover.

14.8 NO ACCEPTANCE OF SURRENDER No act by Landlord other than written notice to Tenant shall constitute an acceptance of surrender of the Premises, and no agreement to accept surrender shall be valid unless made in writing and signed by Landlord.

The delivery of keys to Landlord or any agent of Landlord shall not constitute a surrender unless specifically agreed to in writing by Landlord.

14.9 SURVIVAL OF OBLIGATIONS The following obligations shall survive the expiration or termination of this Lease: (a) payment of all amounts owed through the termination date; (b) indemnification obligations for events occurring during the Lease term; (c) environmental compliance and remediation obligations; (d) restoration and removal obligations; (e) confidentiality obligations; and (f) any other obligations that by their nature should survive termination.

14.10 EARLY TERMINATION RIGHTS Tenant shall have no right to terminate this Lease prior to the natural expiration date except as expressly provided herein or as required by applicable law. Any early termination must be agreed to in writing by both parties and may be subject to payment of termination fees or other charges.

14.11 CASUALTY TERMINATION PROCEDURES If this Lease is terminated due to casualty or condemnation as provided elsewhere herein, Tenant shall surrender the Premises in their then-existing condition and shall be relieved of any restoration obligations except for removal of personal property and debris.

Rent shall be apportioned to the date of termination, and any prepaid rent for periods after termination shall be refunded to Tenant.

14.12 POST-TERMINATION ACCESS After termination of this Lease, Tenant shall have no right to enter the Premises except with Landlord's written consent and under such conditions as Landlord may require. Any

unauthorized entry shall constitute trespass and may result in legal action.

If Tenant requires access to retrieve property or complete restoration work, such access must be scheduled with Landlord and may be subject to payment of fees and provision of appropriate insurance coverage.

15. ENVIRONMENTAL COMPLIANCE AND HAZARDOUS MATERIALS

15.1 ENVIRONMENTAL REPRESENTATIONS AND WARRANTIES Landlord represents and warrants that, to the best of its knowledge: (a) the Premises and Shopping Center are in compliance with all applicable Environmental Laws as of the Commencement Date; (b) no Hazardous Materials are present on the Shopping Center except in compliance with Environmental Laws; (c) no underground storage tanks are located on the Shopping Center; (d) the Shopping Center has not been used for any activities likely to cause environmental contamination; and (e) Landlord has not received any notices of environmental violations affecting the Shopping Center.

Landlord shall provide Tenant with copies of any environmental reports or assessments in Landlord's possession relating to the Shopping Center, and shall disclose any known environmental conditions that could affect Tenant's use of the Premises.

15.2 TENANT'S ENVIRONMENTAL OBLIGATIONS Tenant shall comply with all applicable Environmental Laws in its use and occupancy of the Premises and shall not use, generate, manufacture, store, treat, dispose of, or release any Hazardous Materials on the Premises except as expressly permitted herein.

Tenant may use and store ordinary and customary cleaning supplies, office supplies, and other materials typically used in retail operations, provided such materials are: (a) used and stored in compliance with all applicable Environmental Laws; (b) used only in the quantities and manner recommended by the manufacturer; (c) properly labeled and contained; and (d) disposed of in accordance with applicable regulations.

15.3 PROHIBITED HAZARDOUS MATERIALS Without limiting the generality of the foregoing, Tenant shall not use, store, or dispose of any of the following materials on the Premises: (a) petroleum products except for small quantities in maintenance equipment; (b) asbestos-containing materials; (c) polychlorinated biphenyls (PCBs); (d) radioactive materials; (e) lead-based paints or materials; (f) chemicals or solvents except for ordinary cleaning supplies; (g) pesticides except as applied by licensed professionals; or (h) any other materials classified as hazardous waste under applicable Environmental Laws.

15.4 ENVIRONMENTAL COMPLIANCE PROCEDURES Tenant shall: (a) obtain and maintain all environmental permits required for its operations; (b) implement appropriate procedures for handling and disposal of any regulated materials; (c) train employees in proper environmental compliance procedures; (d) maintain records of all environmental compliance activities; (e) immediately report any spills, releases, or environmental incidents to Landlord and appropriate authorities; and (f) conduct its operations in a manner that prevents environmental contamination.

15.5 ENVIRONMENTAL TESTING AND MONITORING Landlord shall have the right, upon reasonable notice, to conduct environmental testing of the Premises and surrounding areas to verify compliance with Environmental Laws. Such testing may include soil samples, groundwater monitoring, air quality testing, and surface sampling.

If environmental testing reveals contamination caused by Tenant's operations, Tenant shall immediately cease any activities causing such contamination and shall remediate the contamination at its sole expense in accordance with applicable Environmental Laws and the requirements of regulatory authorities.

15.6 ENVIRONMENTAL INDEMNIFICATION Tenant shall indemnify, defend, and hold harmless Landlord from any and all environmental liabilities, claims, damages, costs, and expenses (including attorneys' fees and remediation costs) arising from or related to: (a) Tenant's use, handling, storage, or disposal of Hazardous Materials; (b) any environmental contamination of the Premises caused by Tenant's operations; (c) Tenant's violation of any Environmental Law; or (d) any environmental condition arising during Tenant's occupancy.

Landlord shall indemnify, defend, and hold harmless Tenant from any and all environmental liabilities, claims, damages, costs, and expenses arising from or related to: (a) environmental conditions existing on the Shopping Center prior to Tenant's occupancy; (b) environmental contamination caused by Landlord's operations; (c) migration of contamination from other areas of the Shopping Center; or (d) Landlord's violation of any Environmental Law.

15.7 DISCOVERY OF CONTAMINATION If either party discovers or receives notice of any environmental contamination affecting the Premises, such party shall immediately notify the other party and all appropriate governmental authorities. The responsible party shall promptly investigate the extent of contamination and develop a remediation plan in consultation with qualified environmental professionals.

If contamination is discovered that renders the Premises unusable for Tenant's operations, and such contamination was not caused by Tenant, Tenant may terminate this Lease upon sixty (60) days' written notice unless remediation can be completed within such period.

15.8 REGULATORY COMPLIANCE AND REPORTING Both parties shall cooperate with any investigations or inquiries by governmental authorities relating to environmental conditions at the Shopping Center. Each party shall provide the other with copies of any environmental reports, notices, or correspondence received from regulatory authorities.

If any party receives notice of environmental violations or enforcement actions, such party shall immediately notify the other party and shall take all necessary actions to cure violations and comply with regulatory requirements.

15.9 ENVIRONMENTAL INSURANCE If Tenant's operations involve any activities that could result in environmental liability, Tenant shall maintain environmental impairment liability insurance with minimum coverage of Five Million Dollars (\$5,000,000) per occurrence and aggregate.

Such insurance shall cover liability for bodily injury, property damage, and cleanup costs resulting from pollution conditions, and shall name Landlord as an additional insured.

15.10 WASTE DISPOSAL REQUIREMENTS Tenant shall dispose of all waste materials generated by its operations in accordance with applicable Environmental Laws and Shopping Center waste management procedures. Tenant shall not dispose of any materials in storm drains, sanitary sewers, or other building systems except as specifically permitted by applicable regulations.

All hazardous waste, if any, must be disposed of through licensed waste disposal contractors, and Tenant shall maintain appropriate manifests and disposal records.

15.11 EMERGENCY RESPONSE PROCEDURES Tenant shall develop and maintain emergency response procedures for any environmental incidents, including spills, releases, or exposure to hazardous materials. Such procedures shall include: (a) immediate containment and cleanup measures; (b) notification of emergency responders and regulatory authorities; (c) notification of Landlord; (d) documentation of incidents; and (e) follow-up remediation activities.

15.12 ENVIRONMENTAL AUDIT RIGHTS Landlord shall have the right to conduct environmental audits of Tenant's operations and compliance procedures upon reasonable notice. If any deficiencies are identified, Tenant shall promptly implement corrective measures to ensure full compliance with Environmental Laws.

15.13 SURVIVAL OF ENVIRONMENTAL OBLIGATIONS All environmental compliance, indemnification, and remediation obligations shall survive the expiration or termination of this Lease for the full period allowed by applicable statutes of limitations, and shall be binding upon the successors and assigns of both parties.

16. PARKING, ACCESS, AND TRANSPORTATION

16.1 PARKING SPACE ALLOCATION Tenant is hereby allocated parking spaces for the use of its customers and employees as follows:

(a) **Customer Parking:** Fifteen (15) unreserved parking spaces located in the front parking area of the Shopping Center, within reasonable proximity to the Premises entrance, for the exclusive use of Tenant's customers during business hours;

(b) **Employee Parking:** Three (3) designated parking spaces located in the rear employee parking area, marked for exclusive use by Tenant's employees during all hours;

(c) **Service/Delivery Parking:** Shared use of two (2) service parking spaces located near the rear entrance, available for Tenant's deliveries and service calls on a reservation basis;

(d) **Accessible Parking:** Proportionate share of handicap-accessible parking spaces based on Tenant's allocation, located in compliance with ADA requirements.

All parking spaces shall be clearly marked and maintained by Landlord as part of Common Area Maintenance. The specific location of allocated parking spaces is shown on the site plan attached as Exhibit F.

16.2 PARKING LOT OPERATION AND MAINTENANCE Landlord shall operate and maintain the parking areas in good condition, including: (a) regular sweeping and cleaning; (b) snow removal and de-icing during winter months; (c) maintenance of pavement markings and signage; (d) repair of potholes and surface damage; (e) adequate lighting for safety and security; (f) landscape maintenance in parking areas; and (g) traffic control measures as necessary.

The cost of parking lot maintenance shall be included in Common Area Maintenance charges. Landlord reserves the right to modify the configuration of parking areas from time to time, provided that Tenant's allocated number of spaces is maintained.

16.3 PARKING RESTRICTIONS AND ENFORCEMENT Parking in the Shopping Center shall be limited to customers and employees of Shopping Center tenants and their authorized guests. The following activities are prohibited in parking areas: (a) overnight parking except by prior arrangement; (b) parking of recreational vehicles, boats, trailers, or oversized vehicles; (c) vehicle repairs or maintenance; (d) vehicle sales or

commercial activities; (e) storage of inoperable vehicles; (f) camping or sleeping in vehicles; and (g) any illegal activities.

Landlord may implement reasonable parking enforcement measures, including towing of unauthorized vehicles at the vehicle owner's expense. Tenant shall cooperate with parking enforcement efforts and shall ensure that its employees park only in designated employee areas.

16.4 ACCESS RIGHTS AND HOURS Tenant and its customers, employees, suppliers, and other authorized visitors shall have access to the Shopping Center and parking areas twenty-four (24) hours per day, seven (7) days per week, subject to reasonable security measures and temporary restrictions during emergencies or maintenance activities.

Access to the Shopping Center is provided via the following routes: (a) main entrance from Commerce Boulevard with traffic signal; (b) secondary entrance from Oak Street (right turn only during peak hours); and (c) service entrance from Industrial Drive for deliveries and emergency vehicles.

16.5 DELIVERY AND SERVICE ACCESS Tenant shall have reasonable access for deliveries and service calls during normal business hours (6:00 AM to 10:00 PM Monday through Saturday, 8:00 AM to 8:00 PM Sunday). Large deliveries requiring use of service areas must be coordinated with Landlord to minimize disruption to other tenants and customers.

Delivery vehicles exceeding standard size (longer than 30 feet or requiring backing maneuvers in customer areas) must use designated service areas and may require advance scheduling. Tenant shall ensure that all delivery personnel comply with Shopping Center rules and safety procedures.

16.6 PUBLIC TRANSPORTATION AND ALTERNATIVE ACCESS The Shopping Center is served by Metro City Transit Route 15, with bus stops located at the Commerce Boulevard entrance. Bicycle racks are provided near the main entrance for customers who choose alternative transportation methods.

Tenant may encourage use of public transportation and alternative transportation methods through customer incentive programs, subject to Landlord's approval of any promotional activities.

16.7 TRAFFIC FLOW AND SAFETY MEASURES Landlord shall maintain appropriate traffic flow patterns, signage, and safety measures in parking areas and access routes. This includes: (a) directional signage and pavement markings; (b) speed limit signs and enforcement; (c) pedestrian walkways and crossings; (d) adequate lighting for safety; (e) emergency vehicle access; and (f) coordination with local traffic authorities.

Tenant shall comply with all traffic and safety rules and shall ensure that its employees and visitors do not create traffic hazards or impede emergency vehicle access.

16.8 SPECIAL EVENT PARKING During Shopping Center special events, holiday shopping periods, or other peak activity times, Landlord may implement modified parking arrangements, including: (a) temporary restriction of employee parking areas; (b) valet parking services; (c) overflow parking in auxiliary areas; (d) modified traffic patterns; and (e) additional security or traffic control personnel.

Tenant shall cooperate with special event parking arrangements and shall communicate any changes to its employees and customers as requested by Landlord.

16.9 FUTURE PARKING MODIFICATIONS Landlord reserves the right to modify parking arrangements in connection with Shopping Center expansions, renovations, or changes in tenant mix, provided that: (a) Tenant's proportionate share of parking is maintained; (b) reasonable alternative arrangements are provided

during construction; (c) advance notice is given when feasible; and (d) modifications do not materially impair customer access to the Premises.

Any permanent reduction in parking that affects Tenant's operations may be grounds for rent adjustment or other lease modifications to be negotiated in good faith.

16.10 PARKING VIOLATIONS AND ENFORCEMENT Landlord may establish reasonable parking rules and regulations and may enforce such rules through various means, including: (a) issuance of warning notices; (b) towing of vehicles at owner's expense; (c) temporary restriction of parking privileges; (d) coordination with local law enforcement; and (e) other reasonable enforcement measures.

Tenant shall not be liable for parking violations by its customers unless such violations result from Tenant's specific instructions or encouragement of improper parking.

16.11 SNOW REMOVAL AND WEATHER CONDITIONS During winter months, Landlord shall provide reasonable snow removal services for parking areas and pedestrian walkways, with priority given to main traffic lanes, accessible parking spaces, and primary entrances. Tenant acknowledges that complete snow removal may require time and that temporary access limitations may occur during severe weather conditions.

Tenant shall cooperate with snow removal operations and may be required to temporarily relocate vehicles from designated areas during snow removal activities.

16.12 PARKING AREA SECURITY While Landlord will implement reasonable security measures for parking areas, including lighting and surveillance equipment, Landlord makes no guarantee regarding security and shall not be liable for theft, vandalism, or other criminal activities affecting vehicles or personal property in parking areas.

Tenant and its customers use parking areas at their own risk, and Tenant is encouraged to advise customers to take appropriate precautions to secure their vehicles and personal property.

17. SIGNAGE AND ADVERTISING

17.1 PERMITTED SIGNAGE RIGHTS Subject to the terms and conditions of this Lease and compliance with applicable laws and Shopping Center signage standards, Tenant shall have the right to install and maintain the following signage:

(a) **Storefront Sign**: One (1) primary identification sign on the storefront facade, not to exceed 120 square feet in area or 3 feet in height; (b) **Directory Listing**: Inclusion of Tenant's business name and suite number in the main Shopping Center directory and any secondary directories; (c) **Window Signs**: Promotional window signs covering no more than twenty-five percent (25%) of window area; (d) **Interior Signs**: Unlimited interior signage within the Premises that is not visible from outside the Premises; (e) **Temporary Signs**: Temporary promotional signs with advance approval as specified herein.

All signage must comply with municipal zoning ordinances, building codes, and Shopping Center design standards as set forth in the Sign Criteria attached as Exhibit G.

17.2 SIGN DESIGN AND APPROVAL PROCESS All exterior signage requires Landlord's prior written approval, which shall not be unreasonably withheld for signs that comply with Shopping Center standards. Tenant shall submit the following for approval: (a) detailed sign drawings showing dimensions, materials, colors, and lighting; (b) specifications for installation methods and structural support; (c) evidence of

compliance with applicable codes and permit requirements; and (d) photographs or renderings showing the sign's appearance when installed.

Landlord shall respond to sign approval requests within fifteen (15) business days after receipt of complete submission materials. If Landlord fails to respond within such period, the proposed signage shall be deemed approved, provided it complies with applicable laws and Shopping Center standards.

17.3 SIGN CONSTRUCTION AND INSTALLATION STANDARDS All signs must be constructed and installed in accordance with the following standards:

(a) **Materials:** Professional-grade materials including aluminum, steel, acrylic, or other materials approved by Landlord; (b) **Lighting:** LED lighting systems preferred; neon lighting prohibited except for "Open" signs; (c) **Installation:** Professional installation by licensed sign contractors approved by Landlord; (d) **Structural:** Adequate structural support and wind load calculations as required by local codes; (e) **Electrical:** All electrical work performed by licensed electricians with appropriate permits; (f) **Safety:** Compliance with all safety codes and standards; (g) **Accessibility:** Compliance with ADA requirements for any informational signage.

17.4 PROHIBITED SIGNAGE The following types of signage are specifically prohibited: (a) internally illuminated plastic signs; (b) flashing, animated, or moving signs except as permitted by local ordinance; (c) signs extending beyond Tenant's frontage or above the roofline; (d) temporary banners except as specifically approved; (e) political signs or non-commercial messages; (f) signs with sound effects or audio components; (g) inflatable signs or attention-getting devices; (h) hand-painted or non-professional signs; and (i) any signs that compete with or confuse Shopping Center identification signage.

17.5 WINDOW DISPLAY AND MERCHANDISING STANDARDS Tenant shall maintain attractive window displays that enhance the Shopping Center's overall appearance and draw customer interest. Window displays shall: (a) be professionally designed and maintained; (b) feature quality merchandise consistent with Tenant's business; (c) be changed regularly to maintain customer interest; (d) comply with municipal display standards; and (e) not block natural light or visibility into the store.

Window signs and promotional materials shall be professionally produced and shall not include handwritten signs, photocopied materials, or other non-professional displays that could detract from the Shopping Center's image.

17.6 TEMPORARY AND PROMOTIONAL SIGNAGE Tenant may install temporary promotional signage with Landlord's prior approval for the following purposes: (a) grand opening celebrations (maximum 30 days); (b) special sales or promotional events (maximum 14 days per event); (c) seasonal promotions (maximum 45 days per season); and (d) other special circumstances as approved by Landlord.

Temporary signage must be professionally produced and installed, and Tenant shall remove such signage immediately upon expiration of the approved period. Temporary signage that becomes worn, damaged, or unsightly must be removed immediately.

17.7 DIRECTORY AND WAYFINDING SIGNAGE Landlord shall include Tenant's business name and suite number in the main Shopping Center directory and any secondary directories at no additional charge to Tenant. Directory listings shall include: (a) business name as approved by Landlord; (b) suite number; (c) primary business category; and (d) such other information as may be included in the standard directory format.

Changes to directory information must be requested in writing and shall be made within thirty (30) days. Tenant shall pay the actual cost of any directory changes requested more than twice per year.

17.8 SIGN MAINTENANCE AND REPAIR Tenant shall maintain all signage in good condition and repair throughout the Lease term, including: (a) replacement of burned-out bulbs or LED components within 48 hours; (b) cleaning and maintenance to preserve appearance; (c) prompt repair of any damage; (d) repainting or refinishing as necessary to maintain professional appearance; and (e) compliance with all safety requirements.

If Tenant fails to properly maintain any signage after written notice, Landlord may perform necessary maintenance and charge the cost to Tenant as Additional Rent.

17.9 REMOVAL OF SIGNAGE Upon expiration or termination of this Lease, Tenant shall remove all signage installed by Tenant and shall repair any damage to the building facade caused by sign installation or removal. This includes: (a) removal of all mounting hardware; (b) patching and painting of mounting holes; (c) restoration of building surfaces to original condition; and (d) proper disposal of sign materials.

Tenant shall complete sign removal within ten (10) days after lease termination, or Landlord may remove signs and charge the cost to Tenant.

17.10 ADVERTISING AND MARKETING COORDINATION Any advertising or marketing materials that reference the Shopping Center location must comply with Landlord's marketing guidelines and shall accurately represent the Shopping Center's name and address. Tenant shall not use the Shopping Center's name or logo in advertising without prior written consent.

Tenant agrees